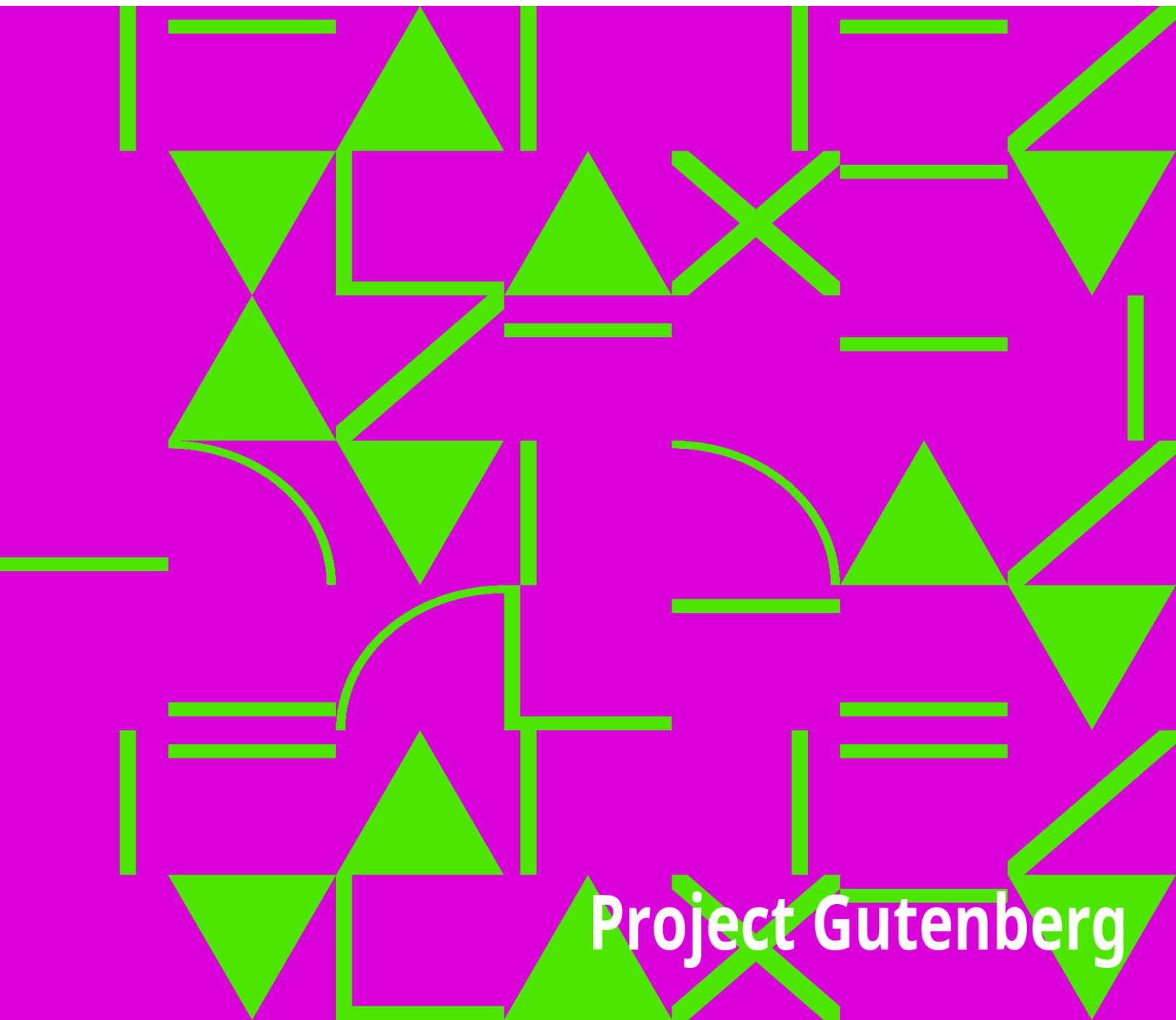


Heathen Slaves and Christian Rulers

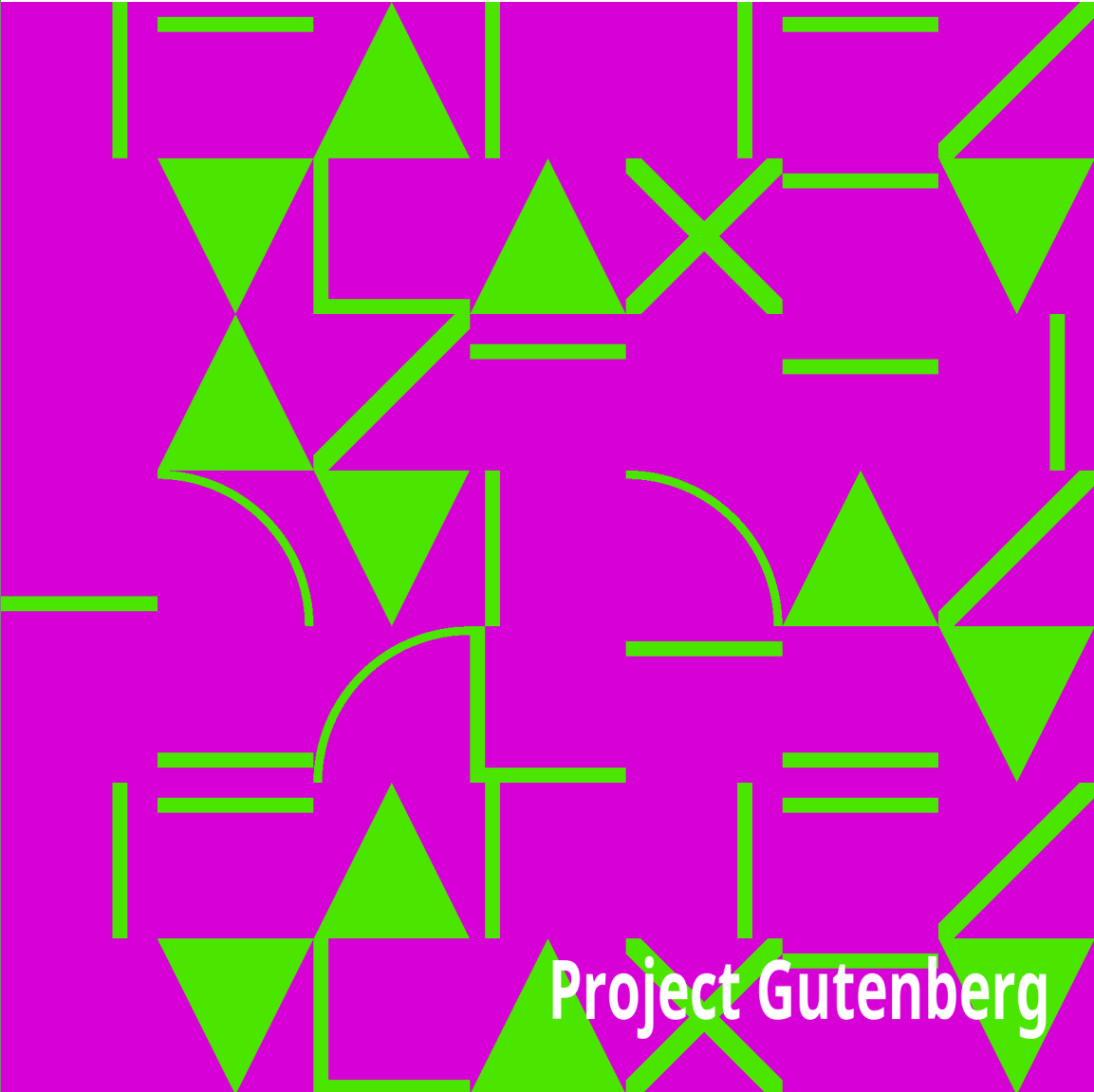
Elizabeth Wheeler Andrew and Katharine

An abstract geometric pattern consisting of various shapes in shades of blue, green, and yellow. The shapes include triangles, squares, rectangles, and curved lines, arranged in a complex, overlapping manner. The pattern is set against a dark blue background.

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Heathen Slaves and Christian Rulers

Elizabeth Wheeler Andrew and Katharine



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*** START OF THE PROJECT GUTENBERG EBOOK HEATHEN
SLAVES AND CHRISTIAN RULERS ***

HEATHEN SLAVES AND CHRISTIAN RULERS,

BY

ELIZABETH ANDREW AND KATHARINE BUSHNELL

1907

"Remember them that are in bonds as bound with them."

[Illustration: A Chinatown Slave Market and Den of Vice. (Built and owned by Americans.)]

**DEDICATED TO THE MEMORY OF MISS
MARGARET CULBERTSON MILITANT
SAINT AND SAINTED WARRIOR**

**WHO AT PERIL OF LIFE FOUGHT A GOOD FIGHT FOR THE RESCUE OF THE SLAVE
GIRLS OF CALIFORNIA**

—AND TO—

**MISS LAKE, MISS CAMERON AND MISS DAVIS WHO BY PATHS MADE SOMEWHAT
LESS DIFFICULT BY HER ACCOMPLISHMENT, HAVE NOT CEASED TO WAGE A
HOLY WAR FOR THE DELIVERANCE OF THE CAPTIVES.**

PREFACE TO THE FIRST EDITION.

"Heathen slaves and Christian rulers." No injustice is done to Christians in the title given this book. The word "Christian" is capable of use in two senses, individual and political. We apply the words "Hindoo" and "Mahommedan" in these two senses also. A man who has been born and brought up in the environment of the Hindoo or Mahommedan religions, and who has not avowed some other form of faith, but has yielded at least an outward allegiance to these forms, we declare to be a man of one or the other faith. Moreover, we judge of his religion by the fruits of it in his moral character. Just so, every European or American who has not openly disavowed the Christian religion for some other faith is called a "Christian." Furthermore, such men, when they mingle with those of other religions, as in the Orient, call themselves "Christians," in distinction from those of other faith about them. They claim the word "Christian" as by right theirs in this political sense, and it is in this sense that we employ the word "Christian" in the title of this book. The word is used thus when reckoning the world's population according to religions.

As we treat the Hindoo or Mohammedan so he treats us. Our Christianity is judged, and must ever be, in the Orient, by the moral character of the men who are called Christian; and the distinguishing vices of such men are regarded as characteristic of their religion. Official representatives of a Christian nation have gone to Hong Kong and to Singapore, and there,

because of their social vices, elaborated a system, first of all of brothel slavery; and domestic slavery has sheltered itself under its wing, as it were; and lastly, at Singapore coolie labor is managed by the same set of officials. What these officials have done has been accepted by the Oriental people about them as done by the Christian civilization. It cannot be said that the evils mentioned above have been the outgrowth of Oriental conditions and customs, principally. It has been rather the misfortune of the Orient that there were brought to their borders by Western civilization elements calculated to induce their criminal classes to ally themselves with these aggressive and stronger "Christians" to destroy safeguards which had been heretofore sufficient, for the most part, to conserve Chinese social morality.

Christian people, even as far back as Sir John Bowring, Governor of Hong Kong, and up to the present time, both at Hong Kong and Singapore, have acquiesced in the false teaching that vice cannot be put under check in the Orient, where, it is claimed, passion mounts higher than in the Occident, and that morality is, to a certain extent, a matter of climate; and in the presence of large numbers of unmarried soldiers and sailors it is simply "impracticable" to attempt repressive measures in dealing with social vice. These Christians have listened to counsels of despair,—the arguments of gross materialists,—and have shut their eyes to the plainly written THOU SHALT NOT of the finger of God in His Book.

Had there been the same staunch standing true to principle in these Oriental countries as in Great Britain the state of immorality described in the pages of this book could never have developed to the extent it did. But Christians yielded before what they considered at least unavoidable, and, not abiding living protests, must take their share of blame for the state of matters. A higher moral public opinion *could* have been created which would have made the existence of actual slavery an impossibility, with the amount of legislation that existed with which to put it down. There were a

guilty silence and a guilty ignorance on the part of the better elements of Christian society at Singapore and Hong Kong, which could be played upon by treacherous, corrupt officials by the flimsy device of calling the ravishing of native women "protection," and the most brazen forms of slavery "servitude." To this extent the individual Christians of these colonies are in many cases guilty of compromise with slavery; and to this extent the title of this book applies to them.

The vices of European and American men in the Orient have not been the development of climate but of opportunity. It is not so easy in Christian lands to stock immoral houses with slaves, for the reason that the slaves are not present with which to do it. Women have freedom and cannot be openly bought and sold even in marriage; women have self-reliance and self-respect in a Christian country; they have a clean, decent religion; women who worship the true God have His protecting arm to defend themselves, and through them other women who do not personally worship God share in the benefits. If free, independent women of God were as scarce in America as in Hong Kong the same moral conditions would prevail here, without regard to climate, for, *if women could be bought and sold and reduced by force to prostitution, there are libertines enough, and they have propensities strong enough to enter at once upon the business, even in America.* That which has elevated women above this slave condition is the development of a self-respect and dignity born of the Christian faith. But let us take warning. If the women of America have not the decent self-respect to refuse to tolerate the Oriental slave-prostitute in this country, the balance will be lost, libertines will have their own way through the introduction into our social fabric of their slaves, and Christian womanhood will fall before it. "Ye have not proclaimed liberty every one to his fellow, therefore I proclaim liberty to you, saith the Lord, to the sword, and the famine, and the pestilence."

Having yielded before counsels of despair, those who should have stood shoulder to shoulder with statesmen like Sir John Pope Hennessy and Sir John Smale in their efforts to exterminate slavery, rather, by their indifference and ignorance, greatly added to the obstacles put in their way by unworthy officials.

The story we have to relate cannot in any fairness be used as an arraignment of British Christianity excepting as we have already indicated as to local conditions. The record that British Christian philanthropists have made, under the leadership of the now sainted Mrs. Josephine Butler, in their world-wide influence for purity, needs no eulogy from our pen. It is known to the world. May Americans strive with equal energy against conditions far more hopeful of amendment, and we will be content to leave the issue with God.

It was our purpose when we undertook the task of writing a sketch which would enable Americans to understand the social conditions that are being introduced into our midst from the Orient, merely to make a concise, brief statement of social conditions in Hong Kong out of which these have grown, drawing our information from State Documents of the British Government that we have had for some time in our possession, and of which we have made a close study, as well as from our own observations of the conditions themselves as they exist at Hong Kong and Singapore. But almost at once we abandoned that attempt as unwise because likely to prove injurious rather than helpful to the object we have in view. The facts that we have to relate form one of the blackest chapters in the history of human slavery, and slavery brought up to the present time. Our statements if standing merely on our own word would be met at once with incredulity and challenged, and before we could defend them by producing the proof, a prejudice would be created that might prove disastrous to our hopes of arousing our country to the point of exterminating this horrible Oriental

brothel slavery by means of which even American men are enriching themselves on the Pacific Coast.

Therefore we have felt obliged to produce our proof at once and at first, and after that, if needed, we can write a more simple, concise account, in less official and less cumbersome form, more suitable for the general public to read,—not that the case could be stated in purer or cleaner language than that used in the quotations from official statements and letters, but the language might be more suited to public taste. But worth cannot be sacrificed to taste, and, as we have said, we feel compelled to publish the matter in its present form first of all.

We send it forth, therefore, with the earnest prayer that, while the book itself may have a limited circulation, yet, through the providence of God, it may arouse some one to attempt that which seems beyond our powers and opportunity,—some one who will feel the call of God; who has the training and the ability; some one who has the spirit of devotion and self-denial; some one of keen moral perceptions and lofty faith in the ultimate triumph of justice, who will lead a crusade that will never halt until Oriental slavery is banished from our land, and it can no more be said, "The name of God is blasphemed among the heathen because of you."

The documents from which we have quoted so extensively in this book are the following:

"Correspondence Relating to the Working of the Contagious Diseases Ordinances of the Colony of Hongkong." August 1881. C.-3093.

"Copy of Report of the Commissioners Appointed by His Excellency, John Pope Hennessy ... to inquire Into the Working of the Contagious Diseases Ordinance, 1867." March 11, 1880. H.C. 118.

"Correspondence Respecting the Alleged Existence of Chinese Slavery in Hongkong." March, 1882. C.-3185.

"Return of all the British Colonies and Dependencies in Which by Ordinance or Otherwise Any System Involving the Principles of the Late Contagious Diseases Acts, 1866 and 1869, is in force, with Copies of Such Ordinances or Other Regulations." June, 1886. H.C. 247.

"Copies of Correspondence or Extracts Therefrom Relating to the Repeal of Contagious Diseases Ordinances and Regulations in the Crown Colonies." September, 1887. H.C. 347

Same as above, in continuation, March, 1889. H.C. 59.

Same as above, in continuation, June, 1890. H.C. 242.

"Copy of Correspondence which has taken place since that comprised in the Paper presented to the House of Commons in 1890 (H.C. 242)," etc., June 4, 1894. H. C. 147.

"Copy of Correspondence Relative to Proposed Introduction of Contagious Diseases Regulations in Perak or Other Protected Malay States." June 4, 1894. H.C. 146.

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CHAPTER 1.

THE EARLY DAYS OF HONG KONG.

Time was when so-called Christian civilization seemed able to send its vices abroad and keep its virtues at home. When men went by long sea voyages to the far East in sailing vessels, in the interests of conquest or commerce, and fell victims to their environments and weak wills, far removed from the restraints of religious influences, and from the possibility of exposure and disgrace in wrongdoing, they lived with the prospect before them, not always unfulfilled, of returning to home and to virtue to die.

That day has passed forever. With the invention of steam as a locomotive power of great velocity, with the introduction of the cable, and later, the wireless telegraphy; with the mastery of these natural forces and their introduction in every part of the world, we see the old world being drawn nearer and nearer to us by ten thousand invisible cords of commercial interests, until shortly, probably within the lifetime of you and me, the once worn out and almost stranded wreck will be found quickened with new life and moored alongside us. The Orient is already feeling the thrill of renewed life. It is responding to the touch of the youth and vigor of the West and becoming rejuvenated; it is drawing closer and closer in its eagerness for the warmth of new interests. The West is no longer alone in seeking a union; the East is coming to the West. And that part of the East which first

responds to the West is the old acquaintance; the one that knows most about us, our ways and our resources; the element with which the long sea-voyager mingled in the days when it seemed more difficult for man to be virtuous, because separated so far from family and friends and living in intense loneliness. The element which now draws closest to us is that portion of the Orient with which the adventurer warred and sinned long ago, and which bears the deep scars of sin and battle.

As the old hulk is moored alongside, in order that the man of Western enterprise may cross with greater facility the gangplank and develop latent resources on the other side, the Easterner hurries across from his side to ours with no less eagerness, to pick up gold in a land where it seems so abundant to him. Almost unnoticed, the Orient is telescoping its way into the very heart of the Occident, and with fearful portent and peril, particularly to the Western woman.

This is not what is desired, but it will be inevitable. Exclusion laws must finally give way before the pressure. Already the Orient is knocking vigorously at the door of the Occident, and unless admission is granted soon, measures of retaliation will be operated to force an entrance. How to administer them the Orient already knows, for has not the door to his domicile been already forced open by the Western trader? The Orient is fast arming for the conflict.

The men of the days of sailing vessels, who went to the far East and made sport of and trampled upon the virtue of the women of a weaker nation, have not all died in peace, leaving their vices far off and gathering virtues about them to crown their old age with venerableness. Some have lived to see that whatsoever man soweth that shall he also reap. They have lived to see the tide setting in in the other direction, and the human wreckage of past vices swept by the current of immigration close to their

own domicile. Their own children are in danger of being engulfed in the polluting flood of Oriental life in our midst. After many days vices come home. Man sowed the wind; the whirlwind must be reaped. The Oriental slave trader and the Oriental slave promise to become a terrible menace and scourge to our twentieth century civilization. Herein lies great peril to American womanhood. Whether we wish it to be so or not,—whether we perceive from the first that it is so or not, there is a solidarity of womanhood that men and women must reckon with. The man who wrongs another's daughter perceives afterwards that he wronged his own daughter thereby. We cannot, without sin against humanity, ask the scoffer's question, "Am I my sister's keeper?"—not even concerning the poorest and meanest foreign woman, for the reason that *she is our sister*. The conditions that surround the Hong Kong slave girl in California are bound in time to have their influence upon the social, legal and moral status of all California women, and later of all American womanhood.

In considering the life history of the Chinese woman living in our Chinatowns in America, therefore, we are studying matters of vital importance to us. And in order to a clear understanding of the matter, we must go back to the beginning of the slave-trade which has brought these women to the West.

Four points on the south coast of China are of especial interest to us, being the sources of supply of this slave-trade. These are Macao, Canton, Kowloon and Hong Kong, and the women coming to the West from this region all pass through Hong Kong, remaining there a longer or shorter time, the latter place being the emporium and thoroughfare of all the surrounding ports.

The south coast of China is split by a Y-shaped gap, at about its middle, where the Canton river bursts the confines of its banks and plunges into the

sea. The lips of this mouth of the river are everted like those of an aboriginal African, and like a pendant from the eastern lip hangs the Island of Hong Kong, separated from the mainland by water only one-fourth of a mile wide. From the opposite or western lip hangs another pendant, a small island upon which is situated the Portuguese city of Macao. The mainland adjoining Hong Kong is the peninsula of Kowloon, ceded to the British with the island of Hong Kong. Well up in the mouth of the river on its western bank, some eighty miles from Hong Kong, is the city of Canton.

Let us imagine for a moment that the on-coming civilization of our country pushed the American Indians not westward but southward toward the Gulf of Mexico and along the banks of the Mississippi, and compressed them on every side until at last they were obliged to take to boats in the mouth of the Mississippi and live there perpetually, seldom stepping foot on land.

Now we are the better able to understand exactly what took place with an aboriginal tribe in China. These aborigines were, centuries ago, pushed southward by an on-coming civilization until at last, by imperial decree, they were forbidden to live anywhere except on boats in the mouth of the Canton river, floating up and down that stream, and sailing about Hong Kong and Macao in the more open sea.

They must have been always a hardy people, for the river population about Canton numbers today nearly 200,000 souls. In 1730, the severity of the laws regulating their lives was relaxed somewhat by imperial decree, and since then some of them have dwelt in villages along the river bank. But to the present day these people, known as the Tanka Tribe, or the "saltwater" people, by the natives, may not inter-marry with other Chinese, nor are they ever allowed to attain to official honors.

Living always on boats near the river's mouth, these were the first Chinese to come in contact with foreign sailing vessels which approached China in the earliest days. They sold their wares to the foreigners; they piloted their boats into port; they did the laundry work for the ships. In many ways they showed friendliness to the foreigners while as yet the landsman viewed the new-comers with suspicion. Their women were grossly corrupted by contact with the foreign voyagers and sailors.

Hong Kong was a long way off at the beginning of the nineteenth century, when Great Britain began to send Government-manufactured opium from India to China, and when China prohibited the trade the drug was smuggled in. When Chinese officials at last rose up to check this invasion by foreign trade, wars followed in which China was worsted, and the island of Hong Kong, together with the Kowloon peninsula, became a British possession as war indemnity. Hong Kong is a "mere dot in the ocean less than twenty-seven miles in circumference," and when Great Britain took possession its inhabitants were limited to "a few fishermen and cottagers."

The Tankas helped the British in many ways in waging these wars, and when peace was established went to live with them on the island. This action on the part of these "river people" is significant as showing as much or more attachment to the foreigner than to the other classes of Chinese. There seems always to be less conscience in wronging an alien people than in injuring a people to whom one is closely attached, and this sense of estrangement from other Chinese may account to some extent for the facility with which this aboriginal people engaged, a little later, in the trade in women and girls brought from the mainland to meet the demands of profligate foreigners.

Sir Charles Elliott, Governor of Hong Kong, wishing to attract Chinese immigration to the island, issued, on February 1st and 2nd, 1841, two proclamations in the name of the Queen, to the effect that there would be no interference with the free exercise on the part of the Chinese of their religious rites, ceremonies and social customs, "pending Her Majesty's pleasure."

Following the custom of all Oriental people, to whom marriage is a trade in the persons of women, when the Tankas saw that the foreigners had come to that distant part almost universally without wife or family, they offered to sell them women and girls, and the British seem to have purchased them at first, but afterwards they modified the practice to merely paying a monthly stipend. All slavery throughout British possessions had been prohibited only a few years before the settlement of Hong Kong, in 1833, when 20,000,000 pounds had been distributed by England as a boon to slave-holders.

Hong Kong's first Legislative Council was held in 1844, and its first ordinance was an anti-slavery measure in the form of an attempt to define the law relating to slavery. It was a long process in those days for the Colony to get the Queen's approval of its legislative measures, so that a year had elapsed before a dispatch was returned from the Home Government disallowing the Ordinance as superfluous, slavery being already forbidden, and slave-dealing indictable by law. On the same day, January 24th, 1845, the following proclamation was made: "Whereas, the Acts of the British Parliament for the abolition of the slave trade, and for the abolition of slavery, extend by their own proper force and authority to Hong Kong: This is to apprise all persons of the same, and to give notice that these Acts will be enforced by all Her Majesty's officers, civil and military, within this Colony."

The "foreigners," by which name, according to a custom which prevails to this day in the East, we shall call persons of British, European or American birth,—called a native mistress a "protected woman," and her "protector" set her up in an establishment by herself, apart from his abode, and here children were born to the foreigner, some to be educated in missionary schools and elsewhere by their illegitimate fathers and afterwards become useful men and women, but probably the majority, more neglected, to become useless and profligate,—if girls, mistresses to foreigners, or, as the large number of half-castes in the immoral houses at Hong Kong at the present time demonstrates, to fall to the lowest depths of degradation.

These "protected women," enriched beyond anything they had even known before the foreigner came to that part of the world, with the usual thrift of the Chinese temperament, sought for a way to invest their earnings, and quite naturally, could think of nothing so profitable as securing women and girls to meet the demands of the foreigners. Marriage having always been, to the Oriental mind, scarcely anything beyond the mere trade in the persons of women, it was but a step from that attitude of mind to the selling of girls to the foreigner, and the rearing of them for that object. The "protected women," being of the Tanka tribe, were well situated for this purpose, for they had many relations of kindred and friendship all up and down the Canton river, and the business of the preparation of slave girls for the foreigners and for foreign markets (as the trade expanded) gradually extended backwards up the Canton river, until many of its boats were almost given over to it. "Flower-boats" were probably never unknown to this river, but, besides their use as brothels, they became stocked with little girls under training for vice, under the incitement of an ever-growing slave trade. These little girls were bought, stolen or enticed from the mainland by these river people, to swell the number of their own children destined to the infamous slave trade. Chinese law forbids this kind of slavery, but, as we

have seen, the Tanka people were sort of outlaws, the river life facilitated such a business, and Hong Kong was near at hand.

In later years Dr. Eitel, Chinese interpreter to the Governor, stated:

"Almost every so-called 'protected woman,' i.e. kept mistress of foreigners here, belongs to the Tanka tribe, looked down upon and kept at a distance by all the other Chinese classes. It is among these Tanka women, and especially under the protection of these 'protected' Tanka women, that private prostitution and the sale of girls for concubinage flourishes, being looked upon as a legitimate profession. Consequently, almost every 'protected woman' keeps a nursery of purchased children or a few servant girls who are being reared with a view to their eventual disposal, according to their personal qualifications, either among foreigners here as kept women, or among Chinese residents as their concubines, or to be sold for export to Singapore, San Francisco, or Australia. Those 'protected women,' moreover, generally act as 'protectors' each to a few other Tanka women who live by sly prostitution."

When once a man enters the service of Satan he is generally pressed along into it to lengths he did not at first intend to go. So it proved in the case of many foreigners at Hong Kong. The foreigner extended his "protection" to a native mistress. That "protected woman" extended his name as "protector" over the inmates of her secret brothel; and into that house protected largely from official interference, purchased and kidnaped girls were introduced and reared for the trade in women. The sensitive point seems to have been that an enforcement of the anti-slavery laws would have interfered in many instances with the illicit relations of the foreigner, exposing him to ignominy and sending the mother of his children to prison. It was sufficient for the "protected" woman to say, when the officer of the law rapped at her door, "This is not a brothel, but the private family

residence of Mr. So-and-So," naming some foreigner,—perhaps a high-placed official,—and the officer's search would proceed no further.

It was claimed that this slavery, and also domestic slavery, which sprang up so suddenly after the settlement of Hong Kong by the British, was the outgrowth of Chinese customs, and could not be suppressed but with the greatest difficulty, and their suppression was an unwarrantable interference with Chinese customs, Sir Charles Elliott having given promise from the first that such customs should not be interfered with. But, as we have shown, that promise was only made, "pending Her Majesty's pleasure," which had been very plainly and pointedly expressed later as opposed to slavery.

As to the matter of "custom," Sir John Smale, Chief Justice of Hong Kong, said, in 1879, in the Supreme Court, on the occasion of sentencing prisoners for slave trading and kidnapping:

"Can Chinese slavery, as it *de facto* exists in Hong Kong, be considered a Chinese custom which can be brought within the intent and meaning of either of the proclamations of 1841 so as to be sanctioned by the proclamations? I assert that it cannot.... A custom is 'such a usage as by common consent and uniform practice has become a law.' In 1841 there could have been no custom of slavery in Hong Kong as now set up, for, save a few fishermen and cottagers, the island was uninhabited; and between 1841 and 1844, the date of the Ordinance expressly prohibiting slavery, there was no time for such a custom to have grown up; and slavery in every form having been by express law prohibited by the Royal proclamation of the Queen in 1845, no custom contrary to that law could, after that date, grow up, because the thing was by express law illegal. I go further, and I find that the penal law of China, whilst it facilitates the

adoption of children into a family to keep up its succession, prohibits by section 78 the receiving into his house by any one of a person of a different surname, declaring him guilty of 'confounding family distinctions,' and punishing him with 60 blows; the father of the son who shall 'give away' ... his son is to be subject to the same punishment. Again, section 79 enacts that whosoever shall receive and detain the strayed or lost child of a respectable person, and, instead of taking it before the magistrate, sell such child as a slave, shall be punished by 100 blows and three years' banishment. Whosoever shall sell such child for marriage or adoption into any family as son or grandson shall be punished with 90 blows and banishment for two years and a half. Whosoever shall dispose of a strayed or lost slave shall suffer the punishment provided by the law reduced one degree. If any person shall receive or detain a fugitive child, and, instead of taking it before the magistrate, sell such child for a slave, he shall be punished by 90 blows and banishment for two years and a half. Whosoever shall sell any such fugitive child for marriage or adoption shall suffer the punishment of 80 blows and two years' banishment.... Whosoever shall detain for his own use as a slave, wife, or child, any such lost, strayed or fugitive child or slave, shall be equally liable to be punished as above mentioned, but if only guilty of detaining the same for a short time the punishment shall not exceed 80 blows. When the purchaser or the negotiator of the purchase shall be aware of the unlawfulness of the transaction he shall suffer punishment one degree less than that inflicted on the seller, and the amount of the pecuniary consideration shall be forfeited to Government, but when he or they are found have been unacquainted therewith they shall not be liable to punishment, and the money shall be restored to the party from whom it had been received." The Chief Justice continues: "After reading these extracts

from the Penal Code of China—an old Code revised from time to time ... I cannot see how it can be maintained that any form of slavery was ever tolerated by law in Hong Kong, as it *de facto* exists here, or how the words of the two proclamations of 1841 could be said to bear the color of tolerating slavery under the British flag in Hong Kong. It is clear to me that the Queen's proclamation of 1845, which I have already quoted at full, declares slavery absolutely illegal here."

The truth, then, seems to be that a great demand had arisen for Chinese women at Hong Kong, the most direct cause being the irregular conduct of foreigners—officials, private individuals, soldiers and sailors—who gathered there at the time of the opium wars, and settled there in large numbers when Hong Kong became a British possession. This demand was responded to from the native side, for it was said: "When the colony of Hong Kong was first established in 1842, it was forthwith invaded by brothel keepers and prostitutes from the adjoining districts of the mainland of China, who brought with them the national Chinese system of prostitution, and have ever since labored to carry it into effect in all its details." [A] The demand that brought this supply was further added to from two sources, first, Chinese residents attracted to Hong Kong had made money there rapidly, and had fallen into profligate and luxurious manners of life, and second, Chinese going abroad to Australia, Singapore and San Francisco, created a demand for immoral women in these foreign lands which called for supplies from Hong Kong, and at Singapore the demand came also from the class of foreigners who resided there.

[Footnote A: Hong Kong was occupied by the British in 1841, but not ceded until 1842.]

The system of management of prostitution was originally Chinese, and differs much from anything known under Western civilization, in that the women are never what we speak of as "fallen women," because not the victims of seduction nor of base propensities that have led to the choice of such a life. They are either slaves trained for or sold into shame, or women temporarily held for debt by a sort of mortgage. To this Chinese system of prostitution, however, there was soon applied at Hong Kong a Government system of regulation or license under surveillance. This modified the system, intensified the slavery, and was the cause of reducing many women from the respectable ranks of Chinese life at once and arbitrarily to the lowest depths of degradation, as we shall explain and demonstrate in subsequent chapters.

The native woman, rented for a monthly stipend from her owners was called "protected" at Hong Kong. What charm this word "protection," and the title "Protector" has held for certain persons, as applied to the male sex! "Man, the natural protector of woman." Forsooth, to protect her from what? Rattlesnakes, buffalo, lions, wildcats no more overrun the country, and why is this relation of "protector" still claimed? Why, to protect woman from rudeness, and insult and sometimes even worse. But from whence comes that danger of rudeness and insult or worse from which man is to protect woman? From man, of course. Man is, then, woman's natural protector to protect her from man, her natural protector. He is to set himself the task of defending her from his injury of her, and he is charmed with the avocation. He will protect her as Abraham protected Sarah when he took her into Egypt. "Do so-and-so," said Abraham to Sarah, "that it may be well with me,—for thy sake." The history of the Chinese slave woman as she came in contact with the foreigner at Hong Kong and at Singapore proceeds all along a pathway labelled "protection," down to the last ditch of human degradation. "Well with me," was the motive in the mind of the "protector."

"For thy sake," the argument for the thing as put before the woman and before the world.

CHAPTER 2.

TREACHEROUS LEGISLATION.

In 1849 a man whose name is known the world over as a writer of Christian hymns, went to Canton as British Consul and Superintendent of trade. After a few years he returned to England, and in 1854 was knighted and sent out to govern the new colony of Hong Kong. It is he who wrote that beautiful hymn, among others, "Watchman, tell us of the night." He also wrote, "In the Cross of Christ I Glory." One is tempted to ask, in which Cross?—the kind made of gilded tin which holds itself aloft in pride on the top of the church steeple, or the Cross proclaimed in the challenge of the great Cross-bearer, "Whosoever doth not bear his Cross, and come after Me, cannot be my disciple"? The Cross is the emblem of self-sacrifice for the salvation of the world. Oh, that men really gloried in such self-sacrifice, and held it forth as the worthiest principle of life! Did Sir John Bowring hold aloft such a Cross as this, and, with his Master, recommend it to the world as the means of its elevation and emancipation from the blight of sin? We shall not judge him individually. His example should be a warning to the fact that even the most religious men can too often hold very different views of life according to whether they are embodied in religious sentiments or in one's politics. But nowhere are right moral conceptions more needed (not in hymn-book nor in church), as in the enactments by which one's fellow-beings are governed. Other religious men not so

conspicuous as Sir John Bowring, but of more enlightened days than his, have died and left on earth a testimony to strangely divergent views and principles, according to whether they were crystallized in religious sentiments, or in the laws of the land, and according to whether they legislated for men or for women.

On May 2nd, 1856, Sir John Bowring, Governor of Hong Kong, wrote to the Secretary of State for the Colonies at London submitting a draft of an Ordinance which was desired at Hong Kong because of certain conditions prevailing at Hong Kong which were described in the enclosures in his despatch. Mr. Labouchere, the Secretary of State for the Colonies at the time, replied to the Governor's representations in the following language: "The Colonial Government has not, I think, attached sufficient weight to the very grave fact that in a British Colony large numbers of women should be held in practical slavery for the purposes of prostitution, and allowed in some cases to perish miserably of disease in the prosecution of their employment, and for the gain of those to whom they suppose themselves to belong. A class of persons who by no choice of their own are subjected to such treatment have an urgent claim on the active protection of Government."

Hong Kong, the British colony, had existed but fourteen years when this was written. Only a handful of fishermen and cottagers were on the island before the British occupation. Its Chinese population had come from a country where, as we have seen, laws against the buying and selling, detaining and kidnaping human beings were not unfamiliar. Only eleven years had elapsed since the Queen's proclamation against slavery in that colony had been published to its inhabitants, and yet, during that time, slavery had so advanced at Hong Kong, against both Chinese and British law, as to receive this recognition and acknowledgment on the part of the Secretary of State at London:

1st, That it is a "grave fact that" at Hong Kong "large numbers of women" are "held in practical slavery."

2nd, That this slavery is "for the gain of those to whom they suppose themselves to belong."

3rd, That it is so cruel that "in some cases" they "perish miserably ... in the prosecution of their employment."

4th, That it is "by no choice of their own" that they prosecute their employment, and "are subjected to such treatment."

5th, That they have "an urgent claim upon the active protection of Government."

6th, That the service to which these slaves are doomed, through "no choice of their own," is the most degraded to which a slave could possibly be reduced, i.e., "prostitution."

When Mrs. Harriet Beecher Stowe wrote "Uncle Tom's Cabin," she sounded the note of doom for slavery in the United States. After that, slavery became intolerable. Many have remarked on the fact that the book should have so stirred the conscience of the Christian world, when there are depicted in it so many even engaging features and admirable persons, woven into the story of wrong. Her pen did not seem to make slavery appear always and altogether black. But there was the fate of "Uncle Tom," and the picture of "Cassie," captive of "Legree." It was not what slavery always was, but *what it might be*—the terrible possibilities, that aroused the conscience of Christendom, and made the perpetuation of African slavery an impossibility to Americans. The master *might* choose to use his power over the slave for the indulgence of his own basest propensities.

Almost at the same time of these stirring events connected with slavery in the United States, Mr. Labouchere penned the above words, admitting that slavery at Hong Kong had descended to that lowest level. Infamy instead of industry was the lot of these, engaged in the "prosecution of their employment," through "no choice of their own."

Can we anticipate what legal measures would be asked for at Hong Kong, and granted in London in order to relieve this horrible condition. It seems at once obvious that the following would be some of them at least:

1st, A clear announcement that this slavery was prohibited by the Queen's Anti-Slavery Proclamation of 1845, and would not be permitted.

2nd, Women who "supposed themselves to belong" to masters would be at once told that they were free agents and belonged to no one.

3rd, The master who dared claim the ownership of a former slave would be prosecuted and suitably punished.

4th, Any slave perishing miserably from disease would not only be healed at public expense, but placed where there was no further risk of contagion.

5th, Since such slaves had "an urgent claim on the *active* protection of the Government," they would be treated as wards of the State until safe from like treatment a second time.

6th, Since this slavery had sprung up in defiance of law, any official who at a future time connived at such crime would be liable to impeachment.

The Ordinance sent home for sanction, and approved of by Mr. Labouchere as needed for the "protection" of slave women, was proclaimed as Ordinance 12, 1857, after some slight modifications, and an official appointed a few months before, called the "Protector of Chinese," was charged with the task of its enforcement. This official is also called the Registrar General at Hong Kong, but the former name was given him at the first, and the official at Singapore charged with the same duties is always, to this day, called the "Protector of Chinese."

The new Ordinance embodied the following features:

1st, The registration of immoral houses.

2nd, Their confinement to certain localities.

3rd, The payment of registration fees to the Government.

4th, A periodical, compulsory, indecent examination of every woman slave.

5th, The imprisonment of the slave in the Lock Hospital until cured, and then a return to her master and the exact conditions under which she was "from no choice of her own," exposed to contagion, with the expectation that she would be shortly returned again infected.

6th, The punishment by imprisonment of the slave when any man was found infected from consorting with her, through "no choice of her own."

7th, The punishment by fine and imprisonment of all persons keeping slaves in an _un_registered house (which was not a source of profit to the Government).

This was the only sort of "active protection" that the Government of Hong Kong at that time provided to the slave. The matter of "protection" which concerned the "Protector of Chinese," related to keeping the women from becoming incapacitated in the prosecution of their employment, and to seeing that the hopelessly diseased were eliminated from the herd of slaves. The rest of the "protection" looked to the physical well-being of another portion of the community—the fornicators. If physical harm came to them from wilful sin, the Chinese women would be punished by imprisonment for it, though their sin was forced upon them. This was "protection" from the official standpoint.

Mr. Labouchere had replied with his approval of this Ordinance dealing with contagious diseases due to vice, as though the application for the measure had been made in behalf of the slaves of Hong Kong. Such was not the case. The enclosures in Sir John Bowring's despatch had been a sensational description of the urgent need of vicious men for the active protection of the Government from the consequences of their vices. Later, a Commission of Inquiry into the working of this Ordinance comments upon official statements as to the satisfactory consequences of the enactment of the measure in the checking of disease. The Commission demonstrates that in many instances their statements were absolute falsehoods, as proved by statements made by the same officials elsewhere. Since these officials are proved to have been so untruthful after the passing of the Ordinance, we can put no reliance on their statements previous to its enactments, and the more so because the statistics for Hong Kong in its early days are hopelessly confused with the general statistics for all China, wherever British soldiers or sailors were to be found. Therefore they are unavailable for citation. But as to statements made after the passage of the Ordinance, we append a compilation, as set forth by Dr. Birkbeck Nevins of Liverpool, England.

**SHAMELESS AND YET OFFICIALLY-SANCTIONED FALSEHOOD IN PUBLISHING
OFFICIALLY UTTERLY UNTRUE STATISTICS IN FAVOUR OF THE C.D. ACTS IN THE
BRITISH COLONY OF HONG KONG WITH THE SANCTION AND AUTHORITY OF THE
COLONIAL GOVERNOR.**

"Referring to the Colonial Surgeon's Department, we feel bound to point out that those portions of the *Annual Medical Reports* which refer to the subject of the Lock Hospital *have, in too many instances, been altogether misleading.*" (Report of Commission, p. 2, parag. 2.)

"In 1862 (five years after the Act had been in force) Dr. Murray was '*completely satisfied* with the *incalculable* benefit that had resulted to the colony from the Ordinance of 1857'"[A]

[Footnote A: An extreme form of C.D. Acts, without parallel in any other place under British rule.]

"In 1865 (after eight years' experience) he wrote, 'the *good* the Ordinance does *is undoubted*; but the good it might do, were all the unlicensed brothels suppressed, was incalculable.'"

"In 1867 (after ten years' experience) the *public* was informed that the Ordinance had been 'on trial for nearly ten years, and *had done singular service.*'"

Yet in this very same year—1867, April 19th—"Dr. Murray stated in an *Official Report not intended for publication*, but found by the Commission among other Government papers, and published, —"That venereal disease has been *on the increase*, in spite of all that has been done to check it, *is no new discovery*; it has already been brought before the notice of His Excellency." (Report, p. 35, pars. 4 and 5.)

What is to be thought of the character of such reports for the *Public*, and such an *Official Report*, "not intended to be published"?

This same Dr. Murray's Annual Report for the *Public* for 1867, was *actually put in evidence before the House of Lords' Committee* on venereal diseases—1868, page 135. "Venereal disease here has now become of *comparatively rare occurrence*." Yet the *Army Report* for the previous year (1866, page 115) states that "the admissions to hospital for venereal disease were 281 per 1000 men;" i.e., more than one man in four of the whole soldiery had been in hospital for this "comparatively rare" disease.

As regards the Navy, Dr. Murray says, "the evidence of Dr. Bernard, the Deputy Inspector-General of Hospitals and Fleets, is even more satisfactory. He writes (Jan. 27), 'I am enabled to say that true syphilis is now rarely contracted by our men in Hong Kong.'" Yet the "China station," in which Hong Kong occupies so important a position, had at the time 25 per cent. more *secondary (true) syphilis than any other naval station in the world, except one (the S.E. American)*; it had 101 of *primary (true) against 68 in the North American*, 31 in the S.E. American, and 22 in the Australian stations (*all unprotected*); and *gonorrhoea was higher than in any other naval station in the world*. This *official* misleading feature is to be found in other quarters than Dr. Murray's Reports; for in the *Navy Report* for 1873 (p. 282), Staff Surgeon Bennett, medical officer of the ship permanently stationed in Hong Kong, says—"Owing to the excellent working of the Contagious Diseases Acts, venereal complaints in the colony are reduced to a *minimum*. The *few cases* of syphilis are chiefly due to private prostitutes not known to the police."

In a representation made to the Secretary of State by W.H. Sloggett, Inspector of Certified Hospitals, October 7, 1879, we get an exact account of what led to the passage of the Contagious Diseases Ordinance of 1857. He says: "In 1857, owing to the very strong representations which had been made to the Governor during the previous three years, by different naval officers in command of the China Station, of the prevalence and severity of venereal disease at Hong Kong, a Colonial Ordinance for checking these diseases was passed in November of that year."

When Lord Kimberley was Secretary of State he wrote (on September 29, 1880) Governor Hennessy of Hong Kong in defence of the Ordinance of 1857,—at least as to the motive expressed by Mr. Labouchere for consenting to the passing of the Ordinance: "These humane intentions of Mr. Labouchere have been frustrated by various causes, among which must be included that the police have from the first been allowed to look upon this branch of their work as beneath their dignity, while the sanitary regulation of the brothels appears from recent correspondence to have been almost entirely disregarded." To this Governor Hennessy replied: "On the general question of the Government system of licensing brothels, your Lordship seems to think that I have not sufficiently recognized that the establishment of the system was a police measure, intended to give the Hong Kong Government some hold upon the brothels, in hope of improving the condition of the inmates, and of checking the odious species of slavery to which they are subjected. I can, however, assure your Lordship, whatever good intentions may have been entertained and expressed by Her Majesty's Government when the licensing system was established, that it has been worked for a different purpose." ... "The real purpose of the brothel legislation here has been, in the odious words so often used, the provision of clean Chinese women for the use of the British soldiers and sailors of the Royal Navy in this Colony."

The real object of the Ordinance, commended by the Secretary of State as answering to "an urgent claim" on the part of slaves "upon the active protection of the Government," the operation of which was placed in the hands of the so-called Protector of Chinese, was plainly described in the preamble of the Ordinance as making "provisions for checking the spread of venereal diseases within this Colony." No other object was stated.

The intention of the Government was that the Ordinance should be worked by the aid of the whole police force; but as early as 1860 we find the Protector, or Registrar General, D.R. Caldwell, reporting to the Colonial Secretary that "upon the first promulgation of the Ordinance, the Superintendent of Police manifested an indisposition to interfere in the working of the Ordinance, from a belief that it opened a door to corruption to the members of the force under him." Later, Mr. May, the superintendent of police alluded to, said before the Commission of Inquiry: "That he would not have permitted the police to have anything to do with the control or supervision of brothels under the Ordinance, being apart from the general objects of police duties, and from the great probability of its leading to corruption." Let this be told to Mr. May's lasting credit. Whereupon, on the Registrar General's application, the office of Inspector of Brothels was created.

We have referred several times to a certain Commission which was appointed to inquire into the working of the Contagious Diseases Ordinances of Hong Kong. This Commission was appointed by Governor Hennessy on November 12th, 1877, and was composed of William Keswick, unofficial member of the Legislative Council, Thomas Child Hallyer, Esq., "one of Her Majesty's Counsel for the Colony," and Ernest John Eitel, M.A., Ph.D., Chinese Interpreter to the Governor. We shall have frequent cause to quote from this Commission's report, and as it is the only Commission we shall quote, we shall henceforth speak of it merely as "the

Commission." This report says, concerning inspectors of brothels: "These posts, although fairly lucrative, do not seem to be coveted by men of very high class." For instance, we find in a report dated December 11, 1873, by the captain superintendent of police, Mr. Dean, and the acting Registrar General, Mr. Tonnochy, that they were not prepared to recommend anyone for an appointment to a vacancy which had just occurred, owing to the reluctance of the police inspectors to accept "the office of Inspector of Brothels." Mr. Creagh says, that the post is not one "which any of our inspectors would take. They look down on the post." "They are a class very inferior to those who would be inspectors with us. I don't believe anyone wishes it, but constables, or perhaps sergeants, would take the post for the pay." Mr. Dean would also "object to its being made a part of the duty of the general police to enforce the Contagious Diseases Acts." "My inspectors and sergeants," he says, "would so strongly object to taking the office that I should be unable to get anyone on whom I could rely.... The Inspector of Police looks down on the Inspector of Brothels." Dr. Ayres tells us: "You cannot get men fitted for the work at present salaries, and you have to put tremendous powers into the hands of men like those we have."

Yet into the hands of men lower in character than the lowest of the police force was committed, in large part, the operation of Ordinance 12, 1857, recommended by Mr. Labouchere as a sort of benevolent scheme for the defense of poor Chinese slaves under the British flag, who had "an urgent claim on the protection of Government."

CHAPTER 3.

HOW THE PROTECTOR PROTECTED.

Dr. Bridges, the Acting Attorney General at Hong Kong, who had framed the Contagious Diseases Ordinance of 1857, had given an assurance concerning it expressed in the following words: "There will be less difficulty in dealing with prostitution in this Colony than with the same in any other part of the world, as I believe the prostitutes here to be almost, without exception, Chinese who would be thankful to be placed under medical control of any kind; that few if any of the prostitutes are free agents, having been brought up for the purposes of prostitution by the keepers of brothels, and that whether as regards the unfortunate creatures themselves, the persons who obtain a living by these prostitutes, or the Chinese inhabitants in general, there are fewer rights to be interfered with here, less grounds for complaint by the parties controlled, and fewer prejudices on the subject to be shocked among the more respectable part of the community than could be found elsewhere." Mr. D.R. Caldwell, Protector, confirmed these views. But the views of the Chinese themselves had never been elicited, and immediately such prejudice was aroused among them that it was considered wise to subject only those houses resorted to by foreigners and their inmates, to medical surveillance. Says the report of the Commission: "So great has been the detestation of the Chinese of the system of personal examination, that it has been found

practically impossible to apply it to purely Chinese houses of ill-fame [that is, places resorted to by Chinese only], to the present day." At once, then, the business of the Ordinance, as far as disease was concerned, became restricted to a fancied "protection" of foreign men given over to the practice of vice. But, as we show elsewhere on the statements of the officials who operated the Ordinance (made confidentially, but not intended for publication), that object was not realized, and in the very nature of things, never will be, by such measures. When the State guarantees the service of "clean women" to men of vicious habits, it actively encourages those vicious habits; and since these diseases are the direct outcome of such vice, the more the vice itself is encouraged the more the diseases resulting therefrom will increase in frequency.

The treachery and perfidy of the profession that this Ordinance was in large measure one intended to "protect" poor slaves, is clearly exposed in this letter of Dr. Bridges. "There will be less difficulty" in operating the measure because the women are not "free agents!" The very success of the measure, their own language betrays, depended upon their servitude. Then were they likely to strike a blow at that slavery? Their measure would, then, of course, lead to an increase and not to a mitigation of the hardships of servitude. They had "fewer rights to be interfered with" in Hong Kong "than could be found elsewhere." Away with a measure of "protection" which finds its chief source of gratulation in the curtailed rights of the "protected!"

The much-vaunted "protection" of the slaves, through medical surveillance, became limited at once to a certain class who associated with foreigners, whose interests were supposed to be "protected" by that surveillance. Nevertheless from that time almost to the present hour whenever it has been proposed to discontinue the compulsory medical examination, officials have raised a cry of pity for the poor slave-girls who would be left without "protection."

Since each registered house was to pay a fee to the Colonial Government, which was turned into the fund to meet general expenses (although the express reading of the Ordinance was against this practice), this gave additional reason for registering all immoral houses, beyond their being listed for the compulsory examinations, hence all houses of prostitution were registered whether for foreigners or for Chinese.

The Commission's report says: "This Ordinance seems to have been worked with energy by all concerned. Dr. Murray, who assumed charge of the Lock Hospital on the 1st of May, 1857,... discharged his duty with undoubted zeal. The Magistrates certainly threw no obstruction in the way of the working of the Ordinance; and the Government having, at a very early stage, determined that its efficacy 'should have a fair trial,' it doubtless received it at all hands."

During the ten years this law was in operation, there were 411 prosecutions, of which 140 were convictions for keeping unregistered houses, or houses outside the prescribed bounds. Fines were inflicted for these offenses and others, adding considerably to the amount collected regularly each month from each registered house. The Superintendent of Police, having refused to allow his force to operate as inspectors of brothels, in 1860 the first inspector was appointed, and he engaged an English policeman named Barnes to render services as an informer. This man brought charges in two cases, as to unlicensed (unregistered) brothels. The second case ended in acquittal, manifestly on the ground that the charges were trumped up. In the same year another inspector, Williams, acted as informer, and secured a conviction against a woman. Later, an inspector by the name of Peam, who succeeded Williams, employed police constables as informers, and lent them money for the purpose. All these performed their tasks in "plain clothes," as was the practice through subsequent years. In 1861, constables (Europeans) acted frequently as

informers, and in one instance the Acting Registrar General,—in other words, the "Protector,"—played the role of informer. He took a European constable with him to a native house and caused him to commit adultery there, and on this evidence prosecuted the woman for keeping an unregistered brothel. During this year, an inspector named Johnson presented a woman with a counterfeit dollar, and because she accepted the money she was condemned as a keeper of an unregistered house, and fined twenty-five dollars. This sum she would be less able to pay than the average American woman ten times as much, so low are wages in that country.

In 1862, an inspector of brothels, a policeman, and the Bailiff of the Supreme Court, acted as informers; also in eleven cases European constables in plain clothes, and on two occasions a master of a ship. In 1863 the sworn belief alone of the inspector secured convictions in 10 cases. In 1864, as far as the records show, public money was first used by informers to induce women to commit adultery with them, in order to secure their conviction, fine them, and enroll their abodes as registered brothels. Inspector Jones and Police Sergeant Daly, having spent ten dollars in self-indulgence in native houses, the Government reimbursed them and punished the women.

In 1865, on three separate occasions, the "Protector," (Acting Registrar General Deane), "declared" houses, nine in number. Soon any sort of testimony was gladly welcomed, and Malays, East Indians and Chinese all turned informers, and money was not only given them with which to open the way for debauchery, but awards upon conviction of the women with whom they consorted. "The Chinese used for this work were chiefly Lokongs, [native police constables], Inspector Peterson's servant and a cook at No. 8 Police Station. The depositions show that in at least five cases the police and their informers received rewards. Three times their exertions were remunerated by sums of twenty dollars, although in one of these

instances the evidence was apparently volunteered. Arch and Collins [Europeans] once got five dollars each, and Chinese constables received similar amounts." In many of these cases the immorality on the part of the informers who brought the charges seems to have been unblushingly stated. "The zeal of inspectors of brothels and informers had been stimulated by occasional solid rewards from the Bench, and the numerous prosecutions commenced seldom failed to end in conviction and substantial punishment."

Ten years after the Ordinance of 1857 had been in operation, the Registrar General, C.C. Smith, wrote:

"There is another matter connected with the brothels, licensed and unlicensed, in Hong Kong, which almost daily assumes a graver aspect. I refer to what is no less than the trafficking in human flesh between the brothel-keepers and the vagabonds of the Colony. Women are bought and sold in nearly every brothel in the place. They are induced by specious pretexts to come to Hong Kong, and then, after they are admitted into the brothels, such a system of espionage is kept over them, and so frightened do they get, as to prevent any application to the police. They have no relatives, no friends to assist them, and their life is such that, unless goaded into unusual excitement by a long course of ill-treatment, they sink down under the style of life they are forced to adopt, and submit patiently to their masters. But cases have occurred where they have run away, and placed themselves in the hands of the police; who, however, can do nothing whatever toward punishing the offenders for the lack of evidence, the women being afraid to tell their tale in open court. Women have, it is true, willingly allowed themselves to be sold for some temporary gain; but that brothel-keepers should be allowed to enter into such transactions is of serious moment. I have myself tried to fix such a case on more than one brothel-keeper, but failed

to do so, though there was no doubt of the transaction, as I held the bill of sale. The only mode of action I had under the circumstances was to cancel the license of the house. In the interest of humanity, too, it might be enacted that any brothel-keeper should be liable to a fine for having on his or her premises any child under 15 years of age."

This statement as to the increase of slavery under this Ordinance is just what might have been expected, but it is especially valuable as made by the Registrar General who knew most about the matter, and it contains most damaging admissions against himself, for as the Colonial Secretary, W.T. Mercer, states in a foot-note in the State document printing the Registrar General's statement: "Surely the bill of sale here would have been sufficient evidence." It is plainly to be seen from such statements that after a few efforts to take advantage of anti-slavery laws at Hong Kong, after a few appeals to the police for protection and liberty, slave girls would learn by terrible experience to cease all such efforts. Think of the fate of a girl when thrust back into the hands of her cruel master or mistress, by the heartless indifference of the "Protector," after having ventured to go to the length of producing her bill of sale into slavery. We should remember these things, when we hear of American officials going through Chinatown and asking the girls if they wish to come away, and in case they do not at once declare they wish it, reporting that there are no slave girls in Chinatown. These poor creatures have been trained in a hard school, and have no reason to believe that any foreign officials have the least interest in helping to obtain their liberty. And if they cannot secure protection by complaint, far better never admit that there is reason for complaint.

Note the calm admission of the Registrar General that nothing was being done to prevent the rearing of children in these registered brothels, where every detail was subject to Government surveillance. "It might be enacted,"

says the "Protector," that such a brothel-keeper should be "liable to a fine!" But why, in the face of such frank acknowledgement of the existence of slavery, were not the Queen's proclamation against slavery, and the many other enactments of the same sort, enforced? Listen, and we will tell why. These officials believed *vice was necessary*, and as there was no class of "fallen women," in our understanding of the term, the Oriental prostitute being a literal slave, then *slavery was necessary* when it ministered to the vices of men. Hence the Government-registered brothels were filled with women slaves. As to the unregistered brothels, the "protected woman" protected that, and also the nursery of purchased and stolen children being brought up and trained for the slave market, excepting those children which, as we have seen, were being trained in the registered houses. If an officer attempted to enter the house of a "protected woman," he was told: "This is not a brothel. This is the private family residence of Mr. So and So," mentioning the name of some foreigner. Thus the foreigners who kept Chinese mistresses furnished, in effect, that protection to slavery that led the Chinese to go forward so boldly in their business of buying and kidnaping children. Even when women were brought into court for keeping unregistered brothels, and although they were keeping them, yet if they could show that they were "protected women," they had a fair show of being acquitted.

Legislative enactments directed to the object of making the practice of vice healthy for men are called, in popular language, "Contagious Diseases Acts," because that was the first name given them. But of late years all such laws have met with such bitter opposition, that, like an old criminal, the measures seek to hide themselves under all sorts of *aliases*. Mrs. Josephine Butler describes such legislation in general in the following simple, lucid manner:

"By this law, policemen,—not the local police, but special Government police, in plain clothes,—are employed to look after all the poor women and girls in a town and its neighborhood. These police spies have power to take up any woman they please, on *suspicion* that she is not a moral woman, and to register her name on a shameful register as a prostitute. She is then forced to submit to the horrible ordeal of a personal examination of a kind which cannot be described here. It is an act on the part of the Government doctor such as would be called an indecent or criminal assault if any other man were to force it upon a woman. And it is the *State* which forces this indecent assault on the persons of the helpless daughters of the poor.

"If a woman refuses to submit to it, she is punished by imprisonment, with or without hard labor, *until* she does submit.

"If, after she has endured this torture, she is found to be healthy and well, she is set free, with a certificate that she is *fit to practice prostitution*; but observe, she is never more a free woman, for her name is on the register of Government prostitutes, and she is strictly under the eye of the police, and is bound to come up periodically,—it may be weekly or fortnightly,—to be again outraged.

"If she is found to have signs of disease, she is sent to a hospital, which is practically a prison, where she is kept as long as the doctors please. She may be kept for weeks or months, without any choice of her own. When cured, she is again set free with her certificate. During the first years of this law, a certificate on paper was given to every woman who had passed through this cruel ordeal; on this paper was the name of the woman, and the date of the last examination. The Abolitionist party, however, represented so

strongly the shame of the whole proceeding, that the Government ordered that the piece of paper or ticket should not be given to the women any longer. But this change made no real difference, for it was well known that the women were forced to submit to the outrage of enforced examination.... You know that every criminal,—murderer, or thief, or any other,—has the benefit of the law; he or she is allowed an open trial, at which witnesses are called, and a legal advocate appears for the defense of the accused. But these State slaves are allowed no trial. It is enough that the police suspects and accuses them; then they are treated as criminals.... It will be clear to you that this law is not for simple healing, as Christ would have us to heal, caring for all, whatever their character or whatever their disease. This law is invented to *provide beforehand* that men may be able to sin without bodily injury (if that were possible, which it is not). If a burglar, who had broken into my house and stolen my goods, were to fall and be hurt, I would be glad to get him into a hospital and have him nursed and cured; but I would not put a ladder up against my window at night and leave the windows open in order that he might steal my goods without danger of breaking his neck.

"You will see clearly, also, the cowardliness and unmanliness of this law, inasmuch as it sacrifices women to men, the weak to the strong; that it deprives the woman of all that she has in life, of liberty, character, law, even of life itself (for it is a process of slow murder to which she is subjected), for the supposed benefit of men who are mean enough to avail themselves of this provision of lust.

"Besides being grossly unjust, as between men and women, this law is a piece of class legislation of an extreme kind. The position and wealth of men of the upper classes place the women belonging

to them above any chance of being accused of prostitution. Ladies who ride in carriages through the street at night are in no danger of being molested. But what about working women? what about the daughters, sisters and wives of working men, out, it may be, on an errand of mercy at night? and what, most of all, of that girl whose father, mother, friends are dead or far away, who is struggling hard, in a hard world, to live uprightly and justly by the work of her own hands,—is she in no danger of this law? Lonely and friendless, and poor, is she in no danger of a false accusation from malice or from error? especially since under this law *homeless* girls are particularly marked out as just subjects for its operation; and if she is accused, what has she to rely on, under God, except that of which this law deprives her, the appeal to be tried 'by God and my country,' by which it is understood that she claims the judicial means of defense to which the law of the land entitles her?

"I will only add that this law has a fatally corrupting influence over the male youth of every country where it is in force. It warps the conscience, and confuses the sense of right and wrong. When the State raises this immoral traffic into the position of a lawful industry, superintended by Government officials, what are the young and ignorant to think? They cannot believe that that which the Government of the country allows, and makes rules for, and superintends, is really wrong."

Such measures as these have acquired a foothold in the United States more than once, but have been driven out again. They are proposed every year almost, at some State Legislature, and often have been proposed at several different legislatures during a single year. They are in operation, to some extent at least, under the United States flag at Hawaii, in the Philippines, and at Porto Rico. The enforcement of the Acts must depend to

a large extent upon the co-operation of the male fornicator with the police and officers of the law, and places good women and girls terribly in the power of malicious or designing libertines.

It appears from official records, that in Hong Kong, during six months in 1886-7, out of 139 women denounced by British soldiers and sailors as having communicated contagion, 102 were on examination found free from disease, and only 37 to be diseased; and during a similar period in 1887-8, out of 103 women that were denounced, 101 were on examination found free from disease and only two diseased. We can judge from this of both the worthlessness of the measure for tracing diseased women, and the mischievousness of the measure as an aid to libertines in getting girls they are endeavoring to seduce so injured in reputation that they can easily capture their prey.

As a sanitary measure, the Acts have invariably proved a failure, as shown by honestly handled statistics. There have, to be sure, been many doctors, some of high scientific qualifications, who have produced statistics strongly tending to prove the sanitary benefits of such measures on superficial survey. But these statistics have afterwards been shown to be mistakenly handled or designedly manipulated to make such a showing. This is not a medical book, and any extended treatment of figures as to disease would be entirely out of place in it, so we will content ourselves by saying that during late years physicians of prominence from every part of the world have assembled twice at Brussels for Conferences in regard to this matter. These physicians are in large numbers Continental doctors, the very ones who have had most to do in enforcing such measures. Each time the number of opponents to the Contagious Diseases Acts has rapidly increased, after listening to the testimony from all sides as to their inutility; in fact, the whole force of opinion at each of these Conferences, in 1899

and 1902, was against State Regulation, though there was a division of opinion as to the substitute for it.

In 1903, the Minister of the Interior of France, the country where these Acts originated, nominated an extra-Parliamentary Commission to go thoroughly into these questions. This Commission held its numerous sittings in 1905, and in the end by almost a two-thirds' majority condemned the existing system of regulation in France, and furthermore rejected the alternative proposal of notification with compulsory treatment, by sixteen votes to one. In reporting on the Conferences held in Brussels, the *Independence Belge* said, in a leading article: "Regulation is visibly decaying, and the fact is the more striking because the country that instituted it (France) is at present the one that meets it with the most ardent hostility."

CHAPTER 4.

MORE POWER DEMANDED AND OBTAINED.

In 1866 the Governor of Hong Kong, Sir Richard Graves MacDonnell, determined upon the repeal of Ordinance 12, 1857, in order to inaugurate "a more vigorous policy of coercion," (says the Commission's report): "The key note of the new regime was struck by the Governor's first minute on the subject, dated 20th October, 1866, in which he wrote he was 'anxious early to introduce to the Council an amended Brothel Ordinance, conferring *necessarily* almost despotic powers on the Registrar General.'" ... Be it said to the honor of Attorney General (now Sir Julian) Pauncefote, that in the face of this he urges the most weighty objections to the policy of "subjecting persons to fine and imprisonment without the safeguards which surround the administration of justice in a public and open court." But these objections were not allowed to prevail.

It appears that some hesitation was felt on the part of the home authorities in giving approval to the new ordinance. It may have been the warning given by Attorney General Pauncefote, it may have been something else. Whatever it was, the Commission informs us: "The Ordinance 10 of 1867 received its final sanction when the conclusion arrived at by the Colonial Government was before the home authorities, showing that in the event of the ordinance becoming law, *revenue would be*

derived from the tainted source of prostitution among the Chinese." (The italics are the authors').

Ordinance 10, 1867 now came into operation, with the following additional powers in the hands of the "Protector" of Chinese, the Registrar General:

1st, Not only were keepers of unregistered houses to be fined or sent to prison, but the women—"held in practical slavery for the purposes of prostitution"—when found in unregistered houses were also subject to fine and imprisonment.

2nd, The Registrar-General, otherwise the "Protector" of Chinese, could break into any house suspected of being a brothel, and arrest the keeper thereof without warrant. And he could authorize his underlings to do the same.

3rd, The Registrar General could exercise both judicial and executive powers in the prosecution of the duties of his office.

4th, All outdoor prostitutes could be arrested without warrant, fined and imprisoned.

The new law possessed one virtue over the old. It frankly, and more honestly, employed the word "licensed," where the old law said "registered," brothels.

The report of the Commission says:

"Although the new Ordinance conferred such extensive and unusual powers on the Registrar General and Superintendent of Police as to breaking into and entering houses and arresting keepers without warrant, no serious difficulty whatever, so far as the records

show,—and we have paid special attention to the point,—seems to have been experienced under the previous enactments in bringing the keepers of such houses before the court.... Nor can we in the second place find among the foregoing records proof of the necessity of the transfer to the Registrar General of the judicial powers.... As a matter of fact, witnesses do not seem to have been at all squeamish in divulging repulsive details in open Court, nor, on the other hand, do the magistrates ever seem to have shown too exacting a disposition as to the nature or amount of the evidence they required to sustain convictions; and the astonishing system of detection which had grown up had met, so far as we can see, with neither discouragement nor remonstrance."

We pause to lift our hearts to God in prayer before venturing to lift the curtain and disclose even a faint outline of the reign of terror now instituted over poor, horror-stricken Chinese women of the humbler ranks of life at Hong Kong. But, in order that we may understand the conditions under which the slave women coming to our Pacific Coast have lived in times past, the recital is necessary. Happy for us if we never needed to know any of these dark chapters of human history and human wrongs! Sad indeed for the thoughtless, and bringing only harm, if such an account as we have to give should be read merely out of curiosity or for entertainment. There is either ennoblement or injury in what we have to say, according to the spirit brought to the task of reading it. Think quietly, then, dear reader, for one moment. From what motive will you read our recital? We do not write what is lawful to the merely inquisitive. Then, will you continue to read from a worthier motive? If not, we pray you, close the book, and pass it on to someone more serious minded. Our message is only for those who will hear with the desire to help. But do not say: "I am too ignorant as to what to do, I am too weak, or I am too lowly, and without talents or influence." No, you are not. There is a place for you to help. God will show it to you, if this

book does not suggest a practicable plan for you. What we wish to accomplish, and what we must accomplish, if at all, by just such aid as you can give, sums itself up in this: We must make our officers of the law understand that *the question of slavery has been settled once for all* in the United States, by the Civil War, and we will have none of it again. It will never be tolerated under the Stars and Stripes; and when you can think of nothing else to do, you can always go aside and cry to the Judge of all the earth to "execute righteousness and judgment for all that are oppressed," as He has promised to do, if we but call upon Him.

Now read on with a heart full of courage, not caring for the haunting pain that will be left when you lay the book aside. What others have had to suffer, you can at least endure to hear about, in order to put a check upon like suffering in the future, and in our own land, too. A country bathed in blood as ours has once been has met already its terrible judgment for not throttling the monster, Slavery, in its infancy, before it cost so much blood and treasure. We will be wiser another time, and refuse to trifle with such great wrongs. We cannot brave the Omnipotent wrath in a second judgment for the same offense, lest He say to us: "Ye have not hearkened unto Me, in proclaiming liberty, everyone to his brother, and every man to his neighbor; behold, I proclaim a liberty unto you, saith the Lord, to the sword and to the pestilence and to the famine."

From the first days of the enactment of this measure, and all the way through until 1877, the inspectors of brothels had standing orders to enter any native house that they suspected of containing any women of loose character, and arrest its inmates in accordance with the following plan: The inspector would secure an accomplice, called an informer, or often more than one. The accomplice would enter a native house plentifully supplied with marked money out of the Secret Service Fund. This accomplice was often a friend or relative of the family he called upon. He would often offer

them a feast and drinks, and send to a near-by restaurant and procure them at Government expense. After feasting and drinking, he would try to induce some woman of the house to consort with him, showing her a sufficient sum of money to fairly dazzle her eyes. This he could well afford to do, for the Government put the money in his hands to offer, and if the woman accepted, it would not be a loss to the Government, for it would be taken back again afterwards. Perhaps some poor half-starved creature would yield to the tempter; perhaps some heathen man would press his wife to accept the offer, in his greed for the money; perhaps some foolish young girl would think she had suddenly come into great fortune in having a man of such great wealth proposing marriage to her. It must not be forgotten that the poorest people in China often marry in a manner which is *almost devoid of all ceremony*, and yet it is considered perfectly right and honorable, and the couple remain faithful to each other afterwards. It is not unlikely, then, a young woman might, with the consent of her parents, look upon such a proposal as this as about to eventuate in real marriage, if it were so put before her. No such thing as courting ever takes place in China, previous to marriage. In other cases, doubtless, the informer who had thus intruded himself for the basest reasons into a native house, might really find a woman of loose character there. It were certainly more to the credit of such a woman that she was in hiding, and preferred it to flaunting her shame in a licensed house of infamy. What business have Governments hounding down these women, tearing away their last shred of decency and obliging them if inclining to go wrong to sink at once to the lowest depths of infamy? But that is what the attempt to localize vice in one section of a town, or to legalize it always means. When the informer at Hong Kong had insinuated himself into a native house and by means of the bait of "marked money" caught a victim and sinned with her, at once he threw open the window and summoned the Inspector, who was in waiting outside, who would rush in and arrest all the women and girls in the house, down to children often only

13 or 14 years old. This was not all according to law, but it seems to have been the regular practice. Says Mr. Lister, who was Registrar General for the first year after the Ordinance of 1867 came into operation: "As a general rule, the first thing I knew of a case of an unlicensed brothel coming before me was the finding of a string of women in my office in the morning." "Almost despotic powers" had been put into the hands of the "Registrar General," and these were some of the results. The "marked money" that had caught the victim would now be sanctimoniously taken away from her and restored to the Secret Service Fund. The woman would be fined or imprisoned, and the other inmates of the house put through trial as accused of being "common prostitutes" and inmates of an unlicensed brothel, and if the Registrar General so decided, the house from which they came declared in the Government Gazette as a licensed house of prostitution. The keepers of licensed brothels, slave-dealers, procurers and such characters hung around the court room to help these women pay their fines, and so get them under bonds to work off these fines by prostitution. Sometimes the women sold their children instead of themselves. If boys, for "adoption," as it is called; a form of slavery which is permitted in Hong Kong. If girls, into domestic slavery or worse, probably with the thought that they could buy them back soon, but if the mother herself went the daughter would be sure to be caught by kidnapers, or fall into prostitution anyway, as the only means she would have of getting along without her mother's protection. Mr. Lister said before the Commission: "I became suspicious of the whole system of convictions against houses for Chinese. I was certain that the informers could not be depended on for one moment. My inspector employed his own boatmen as informers. I became convinced that *I could lock up the whole Chinese female population by this machinery.*" Married men were often knowingly hired on Government money to commit adultery with native women, then the money would be taken away from the woman and she could not even have that toward her fine, while the man would be

given a further reward for hunting down an "unlicensed woman." Quickly, strong organizations of brothel-keepers were formed, and the whole infernal system from that day to this of brothel slavery passed under the secret management of "capitalists"—Chinese merchants of large means.

We have made a general statement as to abuses; now for some specified details. Sometimes the inspectors took their turn as informers, and often men of higher official rank did so, even to the Registrar General himself. In 1868, Inspectors Peterson and Jamieson visited houses as informers, dressed in plain clothes. Jamieson went once disguised as a soldier. Inspectors Burns, Sieir and Deane were also employed as informers, this year. In one case, a woman escaped the persecution of an informer who had intruded into her house by means of ladder; in another case, a woman risked her life getting out of the window upon a flimsy shade adjusted to keep the sun out; in another, a woman managed to escape to the roof; one poor creature let herself down to the ground from an upper window by means of a spout. When women were ready to take such risks as these (and undoubtedly the official records would mention only a few such cases out of the many) rather than be compelled to keep open houses of prostitution, one would have thought it would have counted as some proof of the respectable character of the women,—but it does not seem to have been reckoned so. The women were generally driven into the business of keeping an open house of prostitution anyway, and the Government benefited in cash by just so much more.

"It may be mentioned here," says the report of the Commission, from which we cull these cases, "that from this date (July 6th, 1868) the practice has apparently prevailed of apprehending all the women found in unlicensed brothels" (in more correct language, those houses penetrated into by informers and reported to the Registrar as brothels). These accusations were not always true, by any means. Seven women were apprehended at

one time during this year, on the charge of a watchman, that they kept and were inmates of an unlicensed brothel, "the chief witness being a child 10 years old ... five of the women were married, and two, children of 13 and 14 years old, are described as unmarried." They were all, even the children, convicted, and sent to the Lock Hospital for the indecent examination, in order to determine if they were in proper health to practice vice. Afterwards the Registrar concluded that the case had been got up by the watchman to extort money from the women. But the establishment of their innocence did not put them right again. Think of the horrible ordeal and the dirty court details through which these young girls had been put, on the testimony of a child of ten, and of a watchman determined that they should learn to give him money when he demanded it, or he would drive them into prostitution. One wonders how many hundreds of respectable families were thus bled of their small incomes by the vile informers who were being rewarded by Government for their extortion. Imagine the terror that respectable Chinese women suffered, knowing that any man might denounce them, out of malice, and thereby reduce them to the very worst conceivable form of slavery! Within a few years, nearly all the respectable Chinese women had disappeared from Hong Kong. Chief Inspector Whitehead testified before the Commission: "When an unlicensed brothel [i.e., a native house accused of being such] is broken up, the women have to resort to prostitution in most cases for a living." During 1869, one poor woman signed a bond to deport herself for five years rather than be taken to the Lock Hospital. But the "protected women," with their nursery of children they were raising for brothel slavery, being the mistresses of foreigners, were not persecuted in this manner, so, by a kind of mad infatuation the Government seemed bent on encouraging and developing immoral women and driving decent women either into prostitution, or, by the reign of terror, out of the Colony. In 1869, five women were charged before the Registrar General, and three of them were discharged as innocent. Then the Registrar General decided *to make*

the punishment of the first of the remaining two depend upon the state of health of the second. This second was examined and found diseased, and in consequence of that fact, the first one was fined fifty dollars or two months' imprisonment! The Commission speaks of this as a "somewhat curious" case. We wonder how the punished woman described it. Afterwards, the case was reopened, and "evidence was given calculated to throw the gravest doubts on the credibility of the informers" against these five women. What was then done? Were the informers punished for giving false evidence designed to work incalculable injury to five innocent women? Not at all. A few days later the same informers were employed again as witnesses, and secured the conviction of three more women. In one case, in 1870, it was proved that an informer had entered a house and made an indecent assault upon a woman, doubtless expecting to get his reward as usual. But he was fined ten pounds instead. But how many others may have done the same thing under circumstances where a sufficient number of witnesses to the assault could not be produced. And then, the man would be rewarded and the woman forced at once to take up her residence in a licensed house of shame. The Acting Registrar General played the part of informer during 1870, and punished as judge the woman he accused before himself,—for the law, as we have said, that came into force in 1867 gave the Registrar General both prosecuting and judicial powers. He probably also induced the woman on Government money to commit adultery with him. Then as the judge he would confiscate the money again, and give her a fine of fifty dollars instead. We wonder if he likewise gave himself a "substantial award from the bench," as the Registrar General was accustomed to give other informers when they succeeded in getting evidence sufficient for conviction. It is noticed by the Commission that one woman this same year escaped by the roof at the peril of her life. No one knows how many more may have done the same.

An inspector, Peterson, and a constable, Rylands, each induced women on the street to accept money of them, and these women were punished as prostitutes in hiding and not registered. Two prosecutions during this same year are mentioned as having been instituted from malice. One woman jumped from her window and severely injured herself, trying to escape Inspector Douglass. One woman dared to assault an informer who was after her, and was punished by ten days' imprisonment, with hard labor. Inspector Jamieson brought charges against three women for obstructing him in the discharge of his official duties, and was himself found guilty of illegal conduct.

In the records of 1871 is the case of two men who had a falling out, Alfred Flarey and Police Constable Charles Christy, for some reason not mentioned. Each of these men kept a private mistress. Flarey went to an inspector, and obtained money to be used in tempting the mistress of Christy. He then accused her before the courts, she was condemned, and paid a fine of ten dollars. On the following day, Christy appeared in court against the mistress of Flarey, with two fellow-policemen, to describe their own vileness in order to get revenge on Flarey by depriving him of his mistress and reducing her to the level of a common prostitute. The woman was discharged, indicating that it was a trumped up case. The Commission's report, in describing the details declares: "The law, in these two instances, was put in motion obviously for the vilest of purposes."

In 1872, Inspector Lee, who had become an inspector in 1870, and of whom we shall have more to say, acted himself as informer, and employed his boy twice in the same capacity. Inspector Horton acted as informer eleven times, and Inspector King four times. During this year the Registrar General so far forgot that there was even a sanitary pretext for the Ordinance for the law he was set to operate as to employ as an informer one Vincent Greaves, whom he knew to be diseased. From about this time on,

many cases of conviction were secured against women where it was evident the matter had gone no further than that they had accepted the marked money of the informers, or, as was actually proved in some cases, this marked Government money had been secreted by the informers in the rooms occupied by women. Inspector Lee in one instance found the money on a table in a room into which an informer had insinuated himself. The woman denied having ever accepted it of him, yet she was convicted on that evidence alone. With rewards offered to men of the lowest character, who would secure the conviction of women so that the latter could be forced into the life of open prostitution, all the presumptive evidence should have turned such a case as this against the informer. Many similar cases of the conviction of women of being keepers and inmates of secret brothels, were secured on this sort of evidence. One young girl of 14 was entrapped by marked money being found in her toilet table. The court records showed that this was the second time she had been entrapped in this manner. This second time she was convicted and sent to the Lock Hospital where, upon examination, exceptional conditions demonstrated beyond doubt that she was still a virgin. But what of the many young girls with whom exceptional conditions did not exist, when *they* were brought to the examination table?

During the year 1873, two women were severely injured by jumping out of their windows to escape the informers. One fractured her leg.

The cook of Inspector King testified in the Registrar General's court: "Yesterday I received orders of Mr. King to go to Wanchai, and see if I could catch some unlicensed prostitutes." This man was employed, and his employer orders him off to this wicked business, and he must either obey or take his discharge. A Chinese servant ordered to go commit adultery by the man who employed him as his cook. These things were constantly done by employers of Chinese men. Yet these native servants are all married men, for they marry so young in the Orient. And Government money was

furnished them besides to pay for the debauchery, and if they brought in a good case for prosecution they got a reward in money besides. So this cook is ordered off by his master to "catch some unlicensed prostitutes," with the same *sang froid* as though ordered to go catch some fish for dinner. The cook seemed to know where to get the most ardent assistance for the task his employer had set him, for he says: "I got the assistance of a man who is master of a licensed brothel in Wanchai." To be sure; who would be so interested in capturing women and getting them condemned to go and live in a house licensed by the Government as the man in the town at the head of the licensed house? The cook was given a dollar as bait, with which to catch the woman. Inspector Lee, who followed up the men to make sure of the capture, found the dollar given by King to his cook "lying on the bed" in the room occupied by the women, and they were convicted on no other evidence than this and Lee's "suspicions."

Private Michael Smith of the 80th Regiment was given four dollars by Inspector Morton and instructed to go to a certain Mrs. Wright at her quarters, and try to debauch her; he drank brandy with her [at Government expense?] from 10 p.m. until 5 a.m., but failed in his errand. Why did she not turn him out of the house? Women were frequently fined for daring to resent the aggressions of these informers. In one case a man was struck for trying to obstruct the arrest of a girl of 14, and later was punished. This girl was proved to be a virgin afterwards. Many women and girls, against whom there was no sufficient evidence, were sent to the Lock Hospital for examination in order to determine in that manner their character. In half-a-dozen cases or so, it is recorded that the result determined the virginity of the person. But such a test as this rests upon the accidental presence of an exceptional condition among even virgins, and what became of those who did not answer to the exceptional test, and yet were as pure as the rest? They would everyone of them be consigned to the fate of a brothel slave.

One informer, "with the assistance of public money, and in the interests of justice," according to the Commission's report, sinned with a child of fifteen in order to get her name on the register. Inspector Horton bargained for the deflowering of a virgin of 15, "in the interests of justice," with the owner of the slave child. The child as well as the owner were then taken to the Lock Hospital, where the latter was proved to be a virgin. A Chinese informer consorted with a girl named Tai-Yau "against her will, which led to his being rewarded, and to her being fined one hundred dollars." She was unable to pay the fine, and sold her little boy in part payment for it, in order to escape a life of prostitution.

But need we go into further painful details? There are hundreds more of such cases of cruel wrong on record, and God alone knows how many thousands of cases there are that have never been put on record. We only aim to give a case here and there in illustration of the many forms of cruelty practiced upon innocent women in order to force them into prostitution, and to demonstrate that brothel slavery at Hong Kong cannot truthfully be represented as the outcome of Chinese customs which foreign officials have found difficulty in altering.

But why should Americans be called upon to acquaint themselves with such loathsome details? In order that Americans may have some just conception of their duty toward the large number of these poor, unhappy slaves who have been brought from Hong Kong to their own country.

CHAPTER 5.

HOUNDED TO DEATH.

Sir John Pope Hennessy went to Hong Kong as Governor of the Colony in the early Spring of 1877. In the following October a tragedy occurred, which drew his attention to the administration of the Registrar General, and he set himself to the task of trying to right some of the wrongs of the Chinese women.

The case last mentioned in the previous chapter related to a woman by the name of Tai-Yau, whom an informer humbled "against her will," which led to his being rewarded and her being fined \$100, to pay which she sold her little boy. This seems to have been the only way open for her to escape a life of prostitution. To make this point clear, we will here insert the explanation of conditions given by Dr. Eitel in a communication for the information of Governor Hennessy at a little later period than the incident we are about to relate. He speaks of Chinese women who secretly practiced prostitution [but, as we have shown, many respectable Chinese women suffered also], as

"preyed upon by informers paid with Government money, who would first debauch such women and then turn against them, charging them before the magistrate under the Ordinance 10, 1867, before the Registrar General as keepers of unlicensed brothels in

which case a heavy fine would be inflicted, to pay which these women used to sell their children, or sell themselves into bondage worse than ordinary slavery, to the keepers of brothels licensed by the Government. Whenever a so-called sly brothel was broken up these keepers would crowd the shroff's office [money exchanger's office] of the police court or the visiting room of the Government Lock Hospital to drive their heartless bargains, *which were invariably enforced with the weighty support of the inspectors of brothels*,^[A] appointed by Government under the Contagious Diseases Ordinance. The more this Ordinance was enforced, the more this buying and selling of human flesh went on at the very doors of Government offices."

[Footnote A: We italicise this to call attention to the active part officials took in encouraging slavery.]

We can then readily imagine Tai-Yau as sentenced to pay her fine of one hundred dollars, and nothing to pay with. The money exchanger's office next the court room was crowded with slave-dealers, waiting to offer to pay the fines of such unhappy creatures, and she probably turned to them. If she were sent to jail what would become of her little boy? And if she sold herself to the licensed brothel-keepers, as the inspectors of brothels were urging her to do, the fate of her boy would be even worse. She could see a hope that if she sold the boy for "adoption," a form of slavery the Hong Kong Government permitted, of which we will tell more,—then if she had her freedom she could at least hope to redeem him some time. So the little fellow was sold for about forty dollars, and she went away sixty dollars in debt,—probably to the brothel-keepers, who would never let her out of their sight until, through the debt and the interest thereon, they would in time be enabled to seize her as their slave. But she went out hoping for some honest way of earning the money, or else she would have bargained with them at

once to work off the debt by prostitution. But what could a Chinese woman do in the face of such a debt? A painter's wages at Hong Kong at this time were five dollars a month. A woman's wages at any respectable occupation would not have been more than half that amount. Ten cents a day would be a fair computation. And all the time she would be trying to earn the money the debt would be increasing by the interest on it; and her little boy would increase more rapidly in value than in years.

All this occurred in November, 1876. About the first of October, 1877, nearly a year later, she engaged a single room for herself and a servant[A] at 42 Peel street, of a woman named Lau-a Yee. Mrs. Lau, the landlady, had the top floor of a little house. Another family had the first floor, and the street door leading up to Mrs. Lau's apartments ended in a trap door which was shut down at night. There were also folding doors half way up the stairway, not reaching to the ceiling, however, that could be locked at night to make the place doubly secure from intruders. The little upper flat consisted of only three rooms. Mrs. Lau occupied the front room, and her servant woman slept on the floor in the passage-way, and took care of Mrs. Lau's little child. This servant woman had a friend come over from Canton to spend the night with her and seek for employment. The middle room was occupied by Tai Yau, the woman who had sold her little boy into slavery, and her servant. The back room was vacant. Tai Yau was about twenty-six years old, and her servant nearly sixty.

[Footnote A: The evidence does not make it clear how so poor a woman should have a servant. Might she not in reality have been acting the part of "pocket-mother" to the girl?]

On the evening of October 16th, 1877, Inspector Lee gave ten one dollar bills to his interpreter, telling him to go out and use it in catching unlicensed women. The interpreter found two friends and gave one three dollars and

the other seven dollars to help him in his errand. Think of it! The man to whom the three dollars were given was a worthless fellow who in his own words, lived "on his friends." When he worked he earned about 14 cents a day. The other man to whom was given seven dollars for a night of pleasure, earned five dollars a month when he worked at his trade—painting.

These men went to an opium shop where they found a pander. Apparently they did not know where to find unlicensed women without his help. Two other men joined them, and they all went to No. 9 Lyndhurst Terrace, the interpreter lingering about in waiting somewhere outside. When two of the men learned that they had been brought with the purpose of using their testimony against the women they withdrew. There were three women in the house. One was of loose morals, or at any rate she trifled with temptation; the other two managed to withdraw. A supper of fowls, stuffed pigs' feet, sausages, eggs, and plenty of native wine was brought in, and they feasted, the men getting under the influence of drink. A-Nam, the pander, went out and hunted up two more girls for the feast. Perhaps these suspected a plot, for they withdrew. Then A-Nam went again, and returned with Tai-Yau.

It was about nine o'clock when A-Nam came to 42 Peel street and called Tai Yau out. Mrs. Lau saw her go out with him, but was not uneasy, for she had seen him there before as a friend of Tai Yau. Is it not quite likely it was from him she borrowed the money? He was the kind of man whose profession would lead him to hang around the Registrar's court in order to get on the track of unlicensed women and to get them in his power. If such were the case, and she owed him money, she would be terribly in his power. [A] She went away with him to the feast near by at No. 9 Lyndhurst Terrace, and at twelve o'clock she returned in company with A-Nam and a strange man. Mrs. Lau was up and worshipping in her room. She came and

said to Tai Yau: "Who is this?" seeing the strange man sitting on a chair. "What is this strange man doing here?" Tai Yau replied, "Oh, he is a shopman and is my husband."

[Footnote A: Chief Inspector Whitehead testified before the Commission: "When an unlicensed brothel is broken up the women have to resort in most cases to prostitution for a living." Though the wrong done Tai Yau had been "against her will," yet it had brought her into court upon the charge of being a "common prostitute," and thrown her heavily into debt. It is not unlikely she now found it almost beyond her power to resist becoming enslaved as a prostitute.]

The name of the man with A-Nam was A-Kan, and A-Kan had been a witness against her when she had been condemned before and fined \$100. Now he was here in her room again at this time of night, with the man who had brought them together.

Meanwhile Inspector Lee and the interpreter who had given this A-Kan seven dollars to entrap an unlicensed woman, were hunting along the street below to trace the house into which A-Kan had managed to get an entrance. They began to call "A-Kan! A-Kan!" Someone, probably quite innocently said, "I think the man you are looking for went into the house opposite. I saw some one enter there." This was all the clue they had, yet on that evidence alone, Inspector Lee began to pound on the street door of the house, No. 42. A woman on the first floor looked out, and the Inspector ordered her to open the street door. If she recognized him as an officer she would not have dared refuse. The inspector and the interpreter went up the stairs, but encountered folding doors half way up, locked across the stairs. The Inspector managed to get over them and unlock them from the inside, and on they went, and paused to listen beneath the trap door. They did not hear A-Kan's voice, and did not know whether he was there. They had only

the conjecture of the woman across the street to proceed upon, nevertheless they had forced their way into this private abode occupied by women, knowing nothing whatever about the place, whether it was respectable or not. At this moment Mrs. Lau heard voices of men on her stairs, and said in alarm to A-Kan, "The inspector is coming, looking for you, isn't he?" A-Kan said "Yes." Then Tai Yau threw herself at the feet of A-Kan and begged for mercy, saying: "I was arrested before and fined a hundred dollars. I sold my son to pay the fine, and you must not say anything now." He sanctimoniously shook his head, as though weighing his responsibility, saying: "I don't know, I don't know." She did not recognize him, but he was the very man who had before informed against her and secured her conviction, when she was humbled "against her will." He now opened the trap door to let the inspector and his interpreter in. Tai Yau exclaimed to Mrs. Lau, "He is coming to arrest women for keeping an unlicensed brothel, let us flee!" Tai-Yau ran up a ladder through a scuttle out upon the flat roof of the house, her old servant following and Mrs. Lau behind. The inspector and interpreter followed, while the informer escaped from the house. Mrs. Lau managed to reach the hatch of the next house, No. 44, and ran down that into the street, hotly chased by the inspector. He said in his testimony: "I pursued the woman down the trap, and followed her right into the street. I pursued and she ran up the steps of Peel street and up to Staunton street, and a Lokong [Chinese constable] caught her about ten yards from Aberdeen street." Then the occupants of the ground floor of 44 Peel street called to Inspector Lee and told him that some people had fallen from the roof into their cook-house, and Inspector Lee said in his testimony: "I went into the cook-house and saw the deceased [the old servant of Tai Yau] lying on the granite on her face, with her head close to an earthenware chatty [water-bottle] which I pointed out, and the bundle of clothing with a Chinese rule lying on the top of her head, or on the back of the neck. Close beside her was another woman lying on the other side of the chatty with her

feet against the wall and her head out toward the cook-house door. I had a Chinese candle. I took up the bundle of clothes off deceased's head, and turned her on her back, and there were no signs of life apparent. The other woman was bleeding from the face, and her face and neck were covered with blood. She was moving as if in great pain. I sent for the ambulance at once, and by this time the whole street was aroused." The two women, Tai Yau and the old servant, had fallen through a smoke-hole in the roof.

Tai Yau had a fractured jaw and left thigh, besides internal injuries. She lived but ten days. The verdict rendered in each of these cases was nearly the same. That of Tai Yau's calamity reads in part:

"Mok Tai-Yau, on the morning of the 17th of October, in the year aforesaid, being on the roof of a house, known as 44, Peel Street, Victoria, and having fled there in consequence of the entry of an Inspector of Brothels into the house known as 42, Peel Street, where she lived, accidentally and by misfortune fell down an open area, known as a smoke-hole, unto the granite pavement beneath, and by means thereof did receive mortal bruises, fractures and contusions, of which she died.... The jury aforesaid are further of opinion that Inspector Lee, the aforesaid Inspector of Brothels, exceeded his powers by entering the house, No. 42, Peel Street, without a warrant, or any direct authority from the Registrar General or the Superintendent of Police, and would strongly recommend that the whole system of obtaining convictions against keepers of unlicensed brothels be thoroughly revised, as the present practice is, in our opinion, both illegal and immoral."[A]

[Footnote A: Inspector Lee testified on this occasion that he sometimes had chased women over the roofs of as many as twenty contiguous houses.]

On Nov. 1st, 1877, Governor Hennessy wrote to the Colonial Office, London:

"I have taken the responsibility of putting a stop to a practice which has existed in this Colony since September, 1868, when Sir Richard MacDonnell sanctioned the appropriation of Government money for the pay of informers who might induce Chinese women to prostitute themselves, and thus bring them under the penal clauses of the Contagious Diseases Ordinance. For many years past this branch of the Registrar General's office has led to grave abuses. It has been a fruitful source of extortion, but what is far worse, a department of the State, as one of the local papers now points out, which is supposed to be constituted for the protection of the Chinese, has been employing a dangerously loose system, whereby the sanctity of native households may be seriously compromised. I had no idea that the Secret Service Fund was used for this loathsome purpose until my attention was drawn to an inquest on the bodies of two Chinese women who were killed by falling from a house in which one of the informers employed by the Registrar General was pursuing his avocations.... I am taking steps to institute a searching inquiry into the whole subject. The European community are ashamed at the revelations that have been made at the inquest, and amongst the Chinese the practice that has been brought to light is, viewed with abhorrence."

This was the incident which led to the appointment of the Commission of Inquiry into the working of the Contagious Diseases Ordinance, the report of which Commission we have already had occasion to quote from more than once.

Later, Governor Hennessy wrote to the Colonial Office:

"Whilst the Attorney General is of opinion that, strictly speaking, there is a *prima facie* case of manslaughter made out against Inspector Lee, and that possibly a conviction might be obtained, he advises against a prosecution. I do not concur with the Attorney General in the reasons he gives for not instituting a prosecution in this case."

During the year previous, 1876, Ordinance No. 2 had been passed, depriving the Registrar General of the much-abused judicial powers he had exercised since 1867, and transferring them to the police magistrates.

Speaking of the incident of Tai Yau having sold her boy to pay her fine, Governor Hennessy wrote the Colonial Office, under date of December 6th, 1877:

"I am now informed that the Commissioners have obtained from the records of the Registrar General's department and from Mr. Smith's evidence the clearest proof that this practice of selling human beings in Hong Kong was well known to the department. One of the records has been shown to me in which a witness swears, 'I bought the girl Chan Tsoi Lin and placed her in a brothel in Hong Kong'; and on that particular piece of evidence no action was taken by the department."

Lord Carnarvon was Secretary of State for the Colonies at this time, and his replies to Sir John Pope Hennessy were small encouragement to the course the Governor had taken. He criticises his "somewhat unusual course" in the appointment of a Commission "composed of private persons to inquire into the administration of an important department of the Government." He says: "I am unable to concur in the suggestion made in your despatch as to the advisability of prosecuting Inspector Lee." He implies that in his opinion "Inspector Lee was acting strictly within his

powers on this unfortunate occasion." "It is quite possible," Lord Carnarvon continues, "that there may be abuses connected with the Contagious Diseases Ordinance which ought to be removed; but I would point out that such abuses arise from the imperfections in the system as established by law.... While ready to give consideration to the subject of amending the system, if necessary, I fail at present to observe wherein the officers ... have exceeded the duty imposed upon them by law."

From such responses as these we readily learn that it was not alone in Hong Kong that these outrageous abuses of every principle of justice in dealing with Chinese women failed to arouse more than a lukewarm interest in their behalf, and all the way through Sir John Pope Hennessy, with one or two notable exceptions, so far as the records go, was shown but scant sympathy in his efforts to correct these abuses.

On April 2nd, 1878, Sir Harcourt Johnstone asked in the House of Commons the Secretary of State for the Colonies, "whether his attention has been directed to a recent outrage committed ... at Hong Kong, which is now forming the subject of inquiry by a Commission appointed by the Governor. And if he will cause special investigation to be made as to the manner in which the revenue derived from licensing houses of ill-fame is raised and expended for the service of the Colony."

In answer to this question, the Commission reported that, "the monies raised both by the licenses from houses of ill-fame, and from the fines inflicted under the provisions of these Ordinances, have been expended in the general services of the Colony; and that the actual revenue derived from this source, since and including 1857 down to the end of 1877, amounted to \$187,508, to which must be added the Admiralty allowance from 1870 to 1877, amounting to \$28,860, and fines estimated at \$5,000, making a total of \$221,368.00."

After July 1st, 1878, the fund derived from brothels was used for the operation of the provisions of the Contagious Diseases Ordinance only.

Later, on July 28, 1882, Governor Hennessy received in London a large deputation of gentlemen interested in the abolition of the Contagious Diseases Ordinance of Hong Kong. To these he addressed the following words descriptive of the condition of things at Hong Kong unearthed by the Commission:

"I saw in the Colony abuses existing which have effect far beyond the range of Hong Kong. Let me instance one or two only. We get from Great Britain some European police. They are men selected with care for good conduct, and they are sometimes married men; their passages and their wives' passages have been paid to Hong Kong, where married police quarters are provided. But what transpired when that Commission was held? The Registrar General had recorded in his book, morning after morning, the evidence of informers *selected from that police force, whom he had employed to commit adultery* with unlicensed Chinese women; and borne of these men were married police, whose wives were brought to Hong Kong; so that in point of fact, he was *not only encouraging adultery but paying for it with the money of the State*. Well, I stopped that, of course.... At the head of the Registrar General's Department in Hong Kong, we appoint an officer, as we believe, of the highest character. One of the gentlemen so employed puts on a false beard and moustache, he takes marked money in his waistcoat pocket, and proceeds to the back lanes of the Colony, knocks at various doors, and, at length, gains admission to a house. He addresses the woman who opens the door and tells her he wants a Chinese girl. There is an argument as to the price, and he agrees to give four dollars. He is shown up to the room, and gives her the money. What I am now

telling you is the gentleman's own evidence. He records how he flung up the window and put out his head and whistled. The police whom he had in attendance in the street, broke open the door and arrested the girl. She is brought up the next day to be tried for the offence; but, before whom? Before the Acting Registrar General—before the same gentleman who had the beard and moustache the night before. He tries her himself, and on the books of the Registrar General's office (I have turned to them and read his own evidence recorded in his own handwriting) there is his own conviction of the girl, of the offence, and his sentence, that she be fined fifty dollars and some months' imprisonment! I mention this for this reason—that the officer who did this was appointed because he was supposed to be a man of exceptionally high moral tone, and good conduct and demeanour. But what would be the effect on any man having to administer such an Ordinance? There was laid before my Legislative Council a case of one of the European Inspectors of brothels, and I was struck by this fact in his evidence. He says: 'I took the marked money from the Registrar General's office, and followed a woman, and consorted with her, and gave her the money; and the moment I had done so, I put my hand in my pocket and pulled out the badge of office, and pointed to the Crown, and arrested the woman.' She was henceforth 'a Queen's woman'."

CHAPTER 6.

THE PROTECTOR'S COURT AND SLAVERY.

The justification for the passage of the Contagious Diseases Ordinance at the beginning, as set forth in Mr. Labouchere's dispatch on the 27th of August, 1856, to Sir John Bowring was, that the "women" "held in practical slavery" "through no choice of their own," "have an urgent claim on the *active protection* of Government." It has been claimed again and again by officials at Hong Kong and Singapore that protection is in large part the object and aim of the Ordinance. For instance: In 1877, Administrator W.H. Marsh, of Hong Kong, learning that there was a likelihood of the Contagious Diseases Ordinance being disallowed by the Home Government, wrote to the Secretary of State for the Colonies:

"It is the unanimous opinion of the Executive Council that the laws now in existence have had, when they have been properly worked, a most beneficial effect in this Colony ... in putting the only practical check on a system of brothel slavery, under which children were either sold by their parents, or more frequently were kidnaped and sold to the proprietors of brothels. These unfortunate girls were so fully convinced that they were the goods and chattels of their purchasers, or were so terrified by threats, that they rarely if ever made any complaints even when interrogated. It was very

seldom that sufficient evidence could be obtained to punish such nefarious traffickers."

A document enclosed in this letter to the Colonial Secretary at London, signed by the Acting Colonial Secretary at Hong Kong, the Colonial Surgeon, and the Registrar General, states: "Perhaps the strongest argument in favor of the Ordinances is the means they place in the hands of the Government for coping with *brothel slavery*." From the moment Mr. Labouchere put this false claim to the front it has been the chief argument advanced by officials eager for the Contagious Diseases Ordinance as a method of providing "clean women," in order to win to their side the benevolent-minded.

On this point the Commission reported: "In regard to the only result worthy of a moment's consideration, viz., that referred to by Mr. Labouchere's dispatch, of putting down the virtual slavery of women in brothels, the conclusions of those in the best position to form trustworthy opinions is not encouraging." Mr. Smith, who took over charge of the Registrar General's office in October, 1864, and who had many years of experience in that position, is quoted as saying: "I think it is useless to try and deal with the question of the freedom of Chinese prostitutes by law or by any Government regulation. From all the surroundings the thing is impracticable." Mr. Lister, another Registrar General, says: "I don't think the new Ordinance had any real effect, or could have had any effect upon the sale of women. I don't think any good is done by preventing women emigrating to San Francisco or other places, as their fate is just the same whether they go or not."

The Commissioners state:

"The well-meant system devised by the Registrar General's Department which requires every woman personally to appear

before an Inspector at the office, and declare her willingness to enter a licensed brothel, and that she does so without coercion, before she can be registered, may probably act as some check upon glaring cases of kidnaping, so far as the licensed brothels are concerned. But it seems clear that for the supply of such establishments, there is no need to resort to kidnaping, in the ordinary acceptance of the term. There can be no doubt that, with the exception of a comparatively few who have been driven by adversity to adopt a life of prostitution, when arrived at a mature age, the bulk of the girls, in entering brothels, are merely fulfilling the career for which they have been brought up, and even if they resent it, a few minutes' conversation with a foreigner, probably the first many of them have ever been brought into communication with, is but little likely to lead them to stultify the results of education, according to whose teachings they are the property of others and under the necessity of obeying their directions. The idea that they are at liberty not to enter a brothel unless they wish it, must, to girls so brought up, be unintelligible. To what other source indeed could they turn for a livelihood? Who can tell, moreover, what hopes or aspirations have been instilled into the minds of these girls? The life on which she is about to enter has probably not been painted to her in its true colors. Why should they shrink from it? As a matter of fact they never do.... Mr. Smith, however, thinks, with regard to these women, Government supervision does ameliorate their condition somewhat. The women are periodically seen in their houses by the inspectors, and the cleanliness and comfort of the houses is carefully looked after.' With the internal cleanliness and comfort of brothels, we think the Government has little to do. But the amelioration of the inmates is a matter which certainly stands on a different footing, and is one in which the Government has a deep interest."

The Report goes on to state that the Commissioners do not endorse the views of Mr. Smith as to the amelioration of the condition of the inmates of brothels, through Governmental registration and supervision, and states:

"Young girls, virgins of 13 or 14 years of age, are brought from Canton or elsewhere and deflowered according to bargain, and, as a regular business, for large sums of money, which go to their owners.... The regular earnings of the girls go to the same quarters, and the unfortunate creatures obviously form subjects of speculation to regular traders in this kind of business, who reside beyond our jurisdiction. In most of the regular houses, the inmates are more or less in debt to the keepers, and though such debts are not legally enforceable, a custom stronger than law forbids the woman to leave the brothel until her debts are liquidated, and it is only in rare cases that she does so." "As to the brothel-keepers, there is nothing known against them, and they are supported by capitalists. Mr. Lister speaks of them as 'a horrible race of cruel women, cruel to the last degree, who use an ingenious form of torture, which they call prevention of sleep,' which he describes in detail.... It seems that although the Brothel Ordinances did not call into being this 'horrible,' 'cruel,' and 'haughty' race of women, they have armed them with obvious powers, which they would not otherwise have possessed, and there is consequently reason to apprehend that Government supervision accentuates in some respects rather than relieves the hardships of the servitude of the inmates."

The records furnish many instances to prove that the Registrar General's Department was not operated with the least idea of relieving the slave from her bondage. These are culled from the court records. We will condense some of them.

1. Three sisters were brought by their foster-mother from Macao to Hong Kong, on the promise of a feast; they were taken to the house of an old brothel-keeper, to whom the foster-mother sold the girls, receiving ten dollars apiece for them, to bind the bargain, and she went away, leaving the girls with this old woman, who began immediately to urge them to become prostitutes; they cried and refused, asking to be allowed to go to their foster-mother who had brought them up,—not suspecting that they had been already sold by her into shameful slavery. The old woman locked them up, and beat one of the girls, who had resisted her cruel fate. Their meals were all taken into the room where they were kept close prisoners from that time. Brought into court, the foster-mother was set at liberty, although the history was fully set forth, and the old woman declared: "She pledged the girls in my house, by receiving thirty dollars from me.... I have a witness who saw the money paid." The brothel-keeper was convicted only of assault for beating the girl, and sentenced to three months' imprisonment with hard labor. No reference was made to her own admissions as to buying these girls, and endeavoring to force them into prostitution. Ten days later, her case was brought up again, and the remaining portion of her sentence was remitted, and she was fined twenty-five dollars. No record is made as to what became of these hapless girls; it is to be assumed that they were sent back to the brothel.

2. Two girls brought before the Registrar General, both of whom pleaded for protection against their owner, stating that she intended to sell them to go to California. One of these had been bought by this woman for eighty dollars; the girl saw the price paid for her; the other said her mother was very poor, and sold her for twenty dollars. Each declared she had been living under the "protection" of a foreigner until recently, and that she had not "acted as a prostitute";

they now feared being "sold into California" by the woman in charge. The Inspector said: "There has been at times a number of women residing in the house, and I do not know what has become of them. I believe that they have been sent to California by the defendant." One of the girls being recalled, and seeming to have gained courage, witnessed that she had been in the house when several women had been brought there and after some time had been sent away to California. She had been present when bargains were struck for the women, the price being various; bought here, the women cost from fifty to one hundred and fifty dollars, and when sold in California they were to be disposed of from two hundred and fifty to three hundred and fifty each.[A] She said the woman had "made a great deal of money. She has told me so." She also said some were unwilling to go, but were afraid to resist. She said between ten and twenty women had passed through the woman's hands, to her knowledge. The brothel-keeper's reply was, that the last witness owed her money, and had taken some ornaments which belonged to her—together with a denial that she had bought anybody or sent anyone to California. What was the outcome of this dreadful arraignment of crimes against Chinese girls? The woman was "ordered to find security (two sureties of \$250 each) for her appearance in any court, for any purpose and at any time within twelve months." No record as to the fate of the two girls who had sought "protection" of the authorities.

[Footnote A: The market price of a Chinese girl at the present time (1907) in California is \$3000.]

3. Two young girls were found in a licensed house of shame, whose names were not on the list, the keeper and a woman, Ho-a-ying, who had brought the girls from Canton to Hong Kong, were

summoned before the Registrar General. Ho-a-ying represented the girls as sisters, and that she visited them in Canton and found their mother dead, and that she brought them to Hong Kong because of their appeal to her to find them work, and that she put them into defendant's brothel. She contradicted herself in her testimony as to the name and house of the girls' mother, and the girls themselves declared that they were not sisters, and had never seen each other until they met on the steamer at Canton the day before. One of the girls declared: "I was sold by Ho-a-ying to the mistress of the brothel. I heard them talking about it, and so I know it. Ho-a-Ying also told me that I had been sold. I do not know for what sum." The brothel-keeper stated that Ho-a-Ying came and asked if she wanted two girls, as she had two who had come from Canton. "The girls were brought, and after being in the house a short time the Inspector came. I purposed having their names entered on the following morning." The brothel-keeper was fined five dollars for keeping an incorrect list of inmates. Ho-a-Ying was convicted of giving false testimony, and fined fifty dollars; in default, three months' imprisonment. No information as to the disposal of the girls, and no punishment for this bargaining in human flesh.

4. Six Chinese persons from licensed brothel No. 71, Wellington Street, were arraigned before the Registrar General, charged with buying and selling girls for evil purposes, and also with selling girls to go to California, and with disturbing the peace. The Inspector described the house thus: "I found all the defendants on the first floor. I found six girls in the house and three children. The floor was very crowded ... four of the girls were in a room by themselves at the back of the house. They were all huddled up together, and seemed frightened. The defendants were in the front part of the house. The girls at the back part of the house could not have got out

without passing through the room where the defendants were. This house has been known to me for a long time as one where young girls were kept to be shipped off to California."

A watch-repairer and jeweler who had resided opposite this place for three or four years declared that he knew the first defendant, A-Neung, and that she had lived there some years, on the first floor; that he had seen a number of girls going in and out of the house, seeming to arrive by steamer, some in chairs and some walking, and that he knew from what he had seen of her and the girls that she was a buyer and seller of girls. A carpenter living below in the same house deposed: "I have always seen a number of young girls being taken in and out of the house. The age of the girls ranged from 10 to 20 years. There was always a great deal of crying and groaning amongst the girls up-stairs. I have not heard any beating, but the girls were constantly crying. The crying was annoying to me and the other people in the shop. The people living in the neighborhood have, together with myself, suspected that the girls were bought and sold to go to California." Another neighbor deposed to knowing the third defendant as "in the habit last year of taking young girls of various ages, from 10 to 20, about the Colony for sale. I knew this defendant wanted to sell the girls, as she asked me if I knew any woman who wanted to buy them. She comes from Canton." A girl from Wong-Po found in No. 71 brothel, told of being taken to Canton at eleven years of age and sold by her sister as a servant to the Lam family. After being in this family three or four years, her mistress and the second defendant, Tai-Ku, a relation of her mistress and daughter to the first defendant (A-Neung, keeper of the brothel), took her to a "flower-boat," and the next day by steamer to Hong Kong, and she was taken to the house of A-Neung. Her mistress stayed in the house three days, and sold her to the first and second defendants (mother and daughter) for \$120. She added: "This was in the tenth month last year.... I was never allowed to go out. I have never been out of the house since I came to Hong Kong [nearly six

months]. First, second and third defendants never went out of the house together [some one always being on guard]. Last year Tai-Ku and A-Neung told me that I should have to go to San Francisco. This year I was again told that I was going to San Francisco. I said I did not want to go. Tai-Ku then beat me." Another girl only 19 years old, married about four years, declared that in consequence of a quarrel between herself and another wife of her husband, he sold her to Sz-Shan, fifth defendant, for \$81, who brought her from Tamshui by steamer to Hong Kong, and took her to A-Neung's house, where she was being held for sale. She finished her testimony thus: "Several men have been up to the house to see me. They were going to buy me if they liked me." A letter was produced by the Inspector, which he found in A-Neung's house, from Canton to the writer's sister-in-law in Hong Kong, urging that as the owner had lost money on the "present cargoes," a higher price must be set on them and the sale hastened, as soon as the letter should arrive, and word returned that they had been disposed of; also directing that "after the transaction, one cue-tassel and one shirting trouser" were to be taken back and sent to Canton by the hand of a friend at first opportunity. (This as a pledge of good faith.)

A-Neung, first defendant, declared that she was "a widow, supported by her son-in-law now in California. Mine is a family house. The girls are visitors at my house." The second defendant, Tai-Ku, daughter of the preceding, declared herself to be a married woman, and that her husband was in California, on a steamer; that the girls were not hers, and that she was "not in the habit of sending girls to California." The third defendant deposed that she came from Canton to ask A-Neung for some money, and added: "I never buy and sell girls." Fourth defendant claimed to be utterly ignorant of the girls being sent to California, and said she was supported by Tai-Ku; the fifth defendant declared she knew nothing of the buying and

selling of girls; and the sixth defendant claimed she had gone to the house to obtain the payment of a debt; she was discharged.

The sentence was:—First, second, third, fourth and fifth defendants to find two securities, householders, in \$500 each, to appear at any time within the next six months, to answer any charge in any court in the Colony.

Whether the girls were sent to California to swell the number of wretched slaves on the Pacific Coast, or remained in slavery in Hong Kong, there is no record to be found; nor, even with abundant evidence concerning this licensed brothel which the Inspector himself declared he was long familiar with as a place "where young girls were kept to be shipped off to California," and with the evident collusion between A-Neung and Tai-Ku with the son-in-law and husband respectively of the two women, situated most favorably on a steamer for managing this wicked business at the California end of the line, and with all the testimony of the neighbors and the girls, yet no effort was made by the Registrar-General to punish these people for trafficking in human flesh.

5. An old man complained before the Registrar-General, that his granddaughter, A-Ho, had got into debt because of sickness, and in order to pay the money, she was induced by an uncle of Su-a-Kiu to apply to the latter for help. Su-a-Kiu promised to advance her the money, \$52, if A-Ho would serve her eight months in a brothel kept by a "friend" of the woman in Singapore. A-Ho's stress was so great that she entered into these hard terms, the woman paying her \$52 at the steamer, as it was going, and A-Ho handed it to her grandfather to pay her debt. A-Ho left on the "26th of the 8th moon" for Singapore. On the evening of "the fourth day of the 10th moon" he

received a letter from A-Ho to the effect that she had been sold for \$250, to another party. When the grandfather went to Su-a-Kiu and asked her why she had sold his granddaughter, she cajoled him by promising to take him to Singapore to see A-Ho. Later, the man who lived with Su-a-Kiu, came and threatened to accuse him of extortion, acknowledging of himself that he "lived by selling women into brothels of Singapore." The grandfather reported the case to the Registrar-General. The woman Su-a-Kiu stated: "I took A-Ho to Singapore. I took her to the "Sai-Shing-Tong Brothel" in Macao Street. She is still in that brothel." The Registrar-General ordered her to find security in the sum of \$100 to appear to answer any charge within the next three months. The grandfather was also ordered to find similar security in the sum of \$70.

The girl A-Ho, in seeking to pay her debt contracted through sickness, by servitude for eight months, was entrapped and sold as a slave for life, and the Registrar-General, when acquainted with the facts, seems to have taken no steps to punish this slave-trader. Governor Hennessey, in calling the attention of the Home Government to these, out of many similar ones, says: "The accompanying extracts from the printed evidence [taken by the Commission] show that the Registrar-General's Department was not ignorant of the fact that Chinese women were purchased for Hong Kong brothels, and that the head of the Department thought it useless to try to deal with the question of the freedom of such women.... That the buying and selling was not confined to places outside the Colony is clear from the evidence of other witnesses, and from the notes of cases taken by the Registrar-General himself. It will also be seen that where the persons guilty of such offences were sometimes punished, it was generally for some minor offence, such as not keeping a correct list of inmates, or for an assault."

Doubtless slavery would spring into prominence in almost any land when once it became known that in places actually licensed by Government, such as were the houses of ill-fame at Hong Kong, where the inspectors made almost daily visits, slaves could be held with impunity, and that when slave girls made a complaint, and their cases were actually brought into court, charging the buying and selling of human beings, the officers of the law would ignore the complaints.

CHAPTER 7.

OTHER DERELICT OFFICIALS.

The Registrar General was not the only official at Hong Kong who did not believe in the extermination of slavery, as we shall proceed to show, although the Governor had strong sympathy from the Chief Justice.

On May 30th, 1879, Sir John Smale, Chief Justice of the Colony of Hong Kong, wrote a letter for the information of the Governor, Sir John Pope Hennessy, to the effect that he had sentenced, on the previous day, two poor women to imprisonment with hard labor, for detaining a boy 13 years old. The women sold the little boy to a druggist for \$17.50. The relatives traced their lost boy, came from Canton and claimed him, but the druggist refused to give him up, producing a bill of sale, and the boy was not given up until they appeared in the police court. The Chief Justice adds:

"I am satisfied from the evidence that the great criminal is this druggist, and that it is an opprobrium to the administration of justice to punish these poor women as I have done, and allow the druggist to escape. I therefore ask His Excellency to direct that proceedings be forthwith taken against the man, and that the case be conducted at the magistracy by the Crown Solicitor, so that he may be committed for trial before the Supreme Court."

He then speaks of a case of a woman whom he sentenced on May 6th, 1879, to two years' imprisonment with hard labor for stealing a female child. He adds:

"The woman was merely a middle woman, and received a small sum, but it came out in the evidence that Leung A-Luk had bought the child for \$53, and was actually confining her in a room where the child was discovered. She was the great criminal. It is an opprobrium to justice to punish this poor woman, and to allow Leung A-Luk to go unpunished. I am aware that, according to precedents here and at home, it is within the province of the presiding judge to direct prosecutions such as these to be instituted, but I think it more convenient to ask His Excellency, as the head of the Executive (whose province it especially is to originate criminal proceedings) to direct prosecution. To let these chief offenders go unprosecuted, and to punish such miserable creatures, exposes the court to the contempt of the community, and tends to destroy all respect for the administration of justice in the Chinese community."

Accordingly the Governor forwarded this request on the part of the Chief Justice to the Attorney General, saying: "It is clear from the evidence and from documents published by the Contagious Diseases Commission that practices of this kind have prevailed unchecked, or almost unchecked, for many years past in this Colony." The Governor then referred to a case in point that he had submitted to the former Attorney General, but he "did not seem disposed to enforce the rights of the father, on the ground that he had sold the child." The Governor concludes: "I did not agree with his view of the law."

The last case was referred back to the Acting Police Magistrate to know why the woman, Leung A-Luk, was allowed to go unprosecuted. The Police

Magistrate replied: "It appeared to me that 4th defendant (Leung A-Luk) being a well-to-do woman, and having no children of her own, had purchased the girl with a view to adopting her." He adds: "When Acting Superintendent of Police last year, I wished to prosecute a man for detaining a child ... but as it was shown that the boy had been sold by his father some months previously, the Attorney General considered the purchaser was *in loco parentis*, [in the place of a parent] and could not be purchased."

On the two cases to which the attention of the Governor had been brought, the Attorney General reported:

"With the greatest respect for the Chief Justice, I doubt the policy of prosecuting the woman he refers to, having regard to the fact that the magistrate had discharged her for want of testimony, and looking to his further report. The magistrate should always be supported if possible; and if he discharged the woman, and put her at the bar as a witness, and she was used again at the Supreme Court, it might look like a breach of good faith to treat her now as a criminal.... As to the druggist's case, I think that the only thing that can be said is that it would look to be a breach of faith to proceed against him now."

When the case was referred to the Crown Solicitor, he said:

"As to the druggist the parties had now left the Colony, and there were no witnesses against him. The purchase by Chinese of young orphans, and indeed of others whose parents are too poor to keep them, is a social custom amongst the natives, and is of constant occurrence in Hong Kong. These 'pocket-children,' as they are usually termed, are often treated with great affection, and are far better off than they were previous to their being so bought."

It was the 30th of May when the Chief Justice called the Governor's attention to these cases. It was July before the Attorney General and the Crown Solicitor seem to have paid any attention to the cases. It was no wonder, then, that some of the witnesses could not be found. Meanwhile the Governor had left the Colony for a trip to Japan, and W.H. Marsh was acting in his place. On July 16th, he returned answer to the Chief Justice that he had now received a report on the cases from the Attorney General, the committing magistrate and the Crown Solicitor, and

"I regret to inform you that ... I do not see my way to directing the prosecutions of the two persons indicated by you; first ... because I do not agree with you in looking upon them as the principal criminals; and, secondly, because I think that after the evidence of these persons has been taken both before the committing magistrate and the Supreme Court without any warning having been given them that their evidence might be used against them, it would appear like a breach of faith to treat them now as criminals." "Should the prosecution of these persons result in their acquittal, which seems to me not improbable, I fear that the good effect produced by the severe reprimand, which I understand that your Honor administered publicly to all the parties concerned in these two cases, might be to a great extent neutralized." (!)

On September 29th, 1879, the Chief Justice sentenced more criminals for trafficking in children. A Japanese girl, Sui Ahing, eleven years old, was brought to the Colony by a Chinaman who had bought the child in Japan of its parents. Needing money to go on to his native place, this Chinaman borrowed \$50 of a native resident at Hong Kong, and left the child as security for the debt. The wife of the man in whose custody the child was left beat the child severely and she ran out of the house. She was found wandering on the street late at night, and the finder took her and sold her to another Chinese party, who threatened to send her to Singapore as a

prostitute. It was plain the last purchaser intended either to send her to Singapore or keep her at Hong Kong for vile purposes. This case illustrates well the frequency with which children are sold and re-sold in that country. The parties to the last transaction, the finder of the child and the purchaser of the child from the finder, were both found guilty, one of selling, the other of buying a child for the purposes of prostitution. His Lordship, the Chief Justice, said:

"I will call upon the prisoners at another time. This is a case of far larger proportions than the guilt or innocence of the two prisoners at the bar. I take shame to myself that the appalling extent of kidnaping, buying and selling slaves for what I may call ordinary servile purposes, and the buying and selling young females for worse than ordinary slavery, has not presented itself before to me in the light it ought. It seems to me that it has been recognized and accepted as an ordinary out-turn of Chinese habits, and thus that until special attention has been excited it has escaped public notice. But recently the abomination has forced itself on my notice. In some cases convictions have been had; in two notable instances, although I called for prosecution, the criminals escaped. They were Chinese in respectable positions, and I was given to understand that buying children by respectable Chinamen as servants was according to Chinese customs, and that to attempt to put it down would be to arouse the prejudices of the Chinese. The practice is on the increase. It is in this port, and in this Colony especially, that the so-called Chinese custom prevails. Under the English flag, slavery, it has been said, does not, cannot ever be. Under that flag it does exist in this Colony, and is, I believe, at this moment more openly practiced than at any former period of its history. Cyprus has been under our rule for about a year, and already, both in the House of Commons and in the House of Lords, questions have been asked, and the Members of

the present Ministry have assured the country that slavery in every form shall be speedily put down there. Humanity is of no party, and personal liberty is held to be the right of every human being under English law, by, I believe, every man of note in England. My recent pleasant personal experience in England assures me of that. But here in Hong Kong, I believe that domestic slavery exists in fact to a great extent. Whatever the law of China may be, the law of England must prevail here. If Chinamen are willing to submit to the law, they may remain, but on condition of obeying the law, whether it accords with their notions of right or wrong or not; and, if remaining they act contrary to the law, they must take the consequences.... I shall deal with these people when I shall have more fully considered the case."

During the proceedings of the trial of these two prisoners, the Attorney General had declared his intention not to call the former owners of the child, Wai Alan, the woman who beat the child, or Pao Chee Wan, her husband. The Chief Justice now said:

"I now direct you, Mr. Attorney General, to prosecute these two people, Pao Chee Wan and Wai Alan." Attorney General:—"My Lord, I intimated before that this matter was under consideration; I do not think I am at liberty to say under whose consideration." His Lordship:—"I direct the prosecution, and will take the responsibility. It is the course in England and I will pursue it here." The Attorney General:—"You have publicly directed it; and I will report it to the proper quarter." His Lordship:—"The Attorney General at home is constantly ordered by the Court to prosecute. On my responsibility alone I do this." The Attorney General:—"May I ask your Lordship to say on what charge?" His Lordship:—"Under Sections 50 and 51 of No. 4 of 1865, and also for assault." The

Attorney General continued to raise objections, when the Chief Justice said: "I have said as much as I choose to say, and I will not be put to question by the Attorney General. If you have any difficulty, come to the Court in Chambers."

Governor Hennessy, in reporting the incident to the Secretary of State at London, adds: "I sent a note to the Attorney General, saying I thought that the prosecution suggested by the Chief Justice should take place; but it was found that the accused parties were not in the Colony." After this manner many cases brought to the attention of the officers of the law by parents or guardians of children of kidnaping and trading in girls and children failed to secure the attention they deserved. It seems to us not at all amazing, when one reads this past history, that by the time Chinese girls have seen and learned all that they must in the Colony of Hong Kong, when brought to this country they are utterly incredulous as to the good faith of police and other officials. They must enter a complaint at the risk of their lives, and if the officer of the law will not prosecute the case in spite of all its difficulties (which are largely imaginary on the part of lukewarm officials), then the girl must be returned to the master she has informed against, to be in his power for him to vent his wrath upon her. A case in point occurred in Oakland only a few months ago, and we had a chance to interview the girl. The Captain of Police went through the brothels of Oakland's Chinatown, accompanied by some missionary ladies, in order to discover if possible any girls who would acknowledge that they wished to come away. Every girl was questioned, in the absence of the keepers, and not one, or perhaps only one, said she wished to come away. There were some one hundred and fifty Chinese slave girls in Oakland at this time, and one might say they all had a chance to escape, and of their own will chose to remain. But was that the truth? Not at all; the result did not prove at all that one, and only one wished to come away. It proved merely that only one was inspired with sufficient confidence and courage, after her long, hard experience with foreigners, to

say what she wished. It is the universal testimony of all the girls who have been rescued, so we have been told, by those who have been engaged in this rescue work for many years—that every slave in Chinatown plans and dreams of nothing else but of the day when, having served long enough to buy her freedom, she will be granted it by her master or mistress, and then she can be honorably married. But unless her freedom is purchased for her by some lover, the cases are rare, indeed, that a girl is allowed to earn her own freedom, though they are kept submissive by constant promises that the goal is just ahead of them. A few days after the Oakland papers had triumphantly asserted that it had been demonstrated that there was not a single slave girl in Chinatown—a statement that everyone who had any intelligence on the subject, including the newspapers themselves, knew to be false—a lady in mission work received a cautious hint in a round-about way that one of the girls she had seen when the rounds were made desired to be set at liberty. "How did you learn this?" we eagerly and quite naturally asked the missionary. She replied that on no account could she tell a human being how the intelligence was conveyed to her, as it might cost others very dearly, even to the sacrifice of life, if the knowledge leaked out. "But," she said, "I will show you the girl and you may talk with her yourselves." We gathered from the girl that she was a respectable widow, the mother of two children, living with her parents not far from Hong Kong on the mainland. As they were very poor, she went to Hong Kong to work at sewing to help support the family. An acquaintance there told her that she could earn as much as thirty dollars a month at sewing in California, and he could secure her passage for her at economical cost. She returned to her home and consulted her parents, and they thought the chance a good one, so bidding her little ones good bye, she returned to Hong Kong and paid for the ticket, being instructed that a certain woman would meet her at the wharf at San Francisco whom she must claim as her "mother," since the immigration laws were so strict that she must pass herself off as the daughter of this

woman (for this daughter, who was now in China, having lived in the United States was entitled to return to her mother). Reader, have you ever traveled on another's ticket? If so, or if you have known a professing Christian to have done so, do not be too harsh in your judgment of this heathen, and declare she deserved the terrible fate that overtook her. The "mother" met the sewing-woman, brought her to Oakland, and imprisoned her in a horrible den to earn money for her. With utmost caution our missionary friend rescued her. The Captain of Police and other officers were at hand to help the missionary, and when the girl was taken, she struggled frantically and called for help as though being kidnaped. Had the policemen been there alone they would have let the captors have their slave, believing they had made a mistake. But they had not; the missionary knew that; the girl was only thinking ahead of the possibility of the plot failing and of falling back into the hands of her captors. She must never betray to them, until safely out of their clutches, that she *wished* to come away. She must make it appear that she was dragged away against her will. And this is free America! Do you wonder that these girls do not tell everybody who asks them that they are unwilling captives? Doubtless they would if our officers of the law showed their good faith by laying hold of these slave dealers. Nothing was done or attempted to punish the horrible creatures who captured this girl. They are going on unmolested with their nefarious business, though many of them could be easily punished. This part of the work—punishing slave-dealers—has never been taken up seriously here on the Pacific Coast. And until these terrible criminals are immured in prison, most certainly these Chinese slave girls will not declare their desire for freedom, for if it were granted them they would not be safe—at least they have no reason to believe they would be, though there are missions where they would be protected. But what reason have they for believing this is the case, after the years of training they have had in the perfidy of all those with whom they come in contact! Many girls have been rescued on this Pacific

Coast, by brave missionary workers. But it is to the lasting shame of our country that such wicked creatures are allowed to exist here to import these slaves. Imprison the importers, and the slaves are rescued. That is the short road to freedom. But that was not the path pursued by officials in general at Hong Kong, nor is that course being pursued in the United States. This sewing woman has been returned to her home. Many another woman has at equal peril to herself made her complaint and it has fallen upon the deaf ears of officials, and the poor slave has had to settle with her masters for her fool-hardiness.

Now we will return to Hong Kong, and to past history. We will cite just one more case to show something of the reluctance of officials there to prosecute the traffickers in human flesh. A Chinaman, Tsang San-Fat, petitioned the Colonial Secretary at Hong Kong in regard to the custody of his little daughter, whom, "under stress of poverty," he had given away to a man named Leung A-Tsit, the October previous, the understanding being that the latter should find her a husband when she grew up, and should not send her away to other ports. In May the parents learned from A-Sin, employed by Leung A-Tsit, that the latter was going to take away the little girl to another place. After taxing the man with this, and receiving only excuses in reply, the father petitioned that Leung A-Tsit should be prevented from carrying out his design. Leung A-Tsit filed a counter-petition, stating that Tsang San-Fat, being unable to support a family, handed over to him his little daughter, aged six years; that the little girl was to become his daughter and to be brought up by him, he paying \$23 to the parents. He accused the father of trying to extort money from him, and appealed for "protection" from "impending calamities." Later, further facts came out, showing that the father of the child had borrowed \$5 three years before from Leung A-Tsit, which, with interest at ten cents per month for every dollar, now amounted to \$23. The September before, his creditor came and demanded payment, and when the father told him he had no money, and

found it very difficult to provide for his family, Leung A-Tsit said: "Very well, you can give me your daughter instead, and when she is grown up I will find her a husband." It was finally agreed that he should have the little girl for \$25, viz., the \$23 already owing, and \$2 to the mother as "tea-money." The \$2 were paid and he took the child away. The mother said: "I was very sorry about it and cried." (But mothers have little to say as to the disposal of the children they bear in the Orient). The Governor, Sir John Pope Hennessy, took a deep interest in this case, when he heard of it, regarding it as "an illegal transaction," and urged upon the Attorney General, Mr. G. Phillip, to prosecute, on his behalf, the purchaser of the girl, and that both the father of the child and Leung A-Tsit be notified that the father was entitled to the child by British law, and referring the father to the police magistrate. The police magistrate requested of the Colonial Secretary that the Attorney General's opinion be obtained, as to what course the magistrate should pursue. The final outcome of the case is told by Governor Hennessy in a despatch to the Secretary of State for the Colonies.

"I made a minute on the petitions, directing them to be sent to the Attorney General, as 'the parties appear to acknowledge being concerned in an illegal transaction.' In a few days the papers were returned to me with the following opinion of the Attorney General: 'The transaction referred to would not be recognized in our laws as giving any rights, except perhaps as to guardianship, but I am unable to say there is anything illegal in the matter beyond that. I do not think it a criminal offence if it goes no further than the adoption of a child and the payment of money to its parents for the privilege.'"

Later, when His Excellency was calling the attention of Acting Attorney General Russell to a somewhat similar case, he states, in reference to this above-described case:

"Mr. Phillip, before whom the papers were laid, did not seem disposed to enforce the rights of the father, on the ground that he had sold the child. I did not agree with Mr. Phillip's view of the law."

CHAPTER 8.

JUSTICE FROM THE SUPREME BENCH.

On October 6th, 1879, Sir John Smale, the Hon. Chief Justice for Hong Kong, passed judgment in three cases on prisoners convicted of various degrees of crime connected with the enticing, detaining, buying and selling of children. Governor Hennessy, in reporting the remarks made by the Chief Justice on that occasion to the Secretary of State for the Colonies, pronounced it "an able and elaborate judgment on the existence of slavery at Hong Kong."

Said Sir John Smale:

"Various causes have occasioned delay in passing sentence, of which I will only refer to one: The gravity of the fact that these and other cases have recently brought so prominently to the notice of the Court that two specific classes of slavery exist in this Colony to a very great extent, viz., so-called domestic slavery, and slavery for the purposes of prostitution. The three cases now awaiting the sentence of the Court are specially provided for by Ordinances of 1865 and 1872, prohibiting kidnaping and illegally detaining men, women, and children; and no difficulty ever arose in my mind as to the crimes of which these prisoners are severally convicted, or as to the sentences due to such crimes; and there is no question as to

crimes or punishment of cases where women are smuggled into brothels, some licensed and others unlicensed, or otherwise dedicated to immoral purposes. But the enormous extent to which slavery in this Colony has grown up has called into existence a greatly increasing traffic, especially in women and children. The number of Chinamen in this Colony has increased and is increasing rapidly, whilst their great increase in wealth has fostered licentious habits, notably in buying women for purposes sanctioned neither by the laws nor customs on the mainland. I hold in my hand a placard in Chinese, torn down from the wall of the Central School, Cough Street steps, in this city. The translation appears at length in the Hong Kong *Daily Press* of August 15th, 1879. The purport of that translation is shortly that the advertiser, one Cheong, has lost a purchased slave girl named Tai Ho, aged 13 years. After a full description of the girl a reward is offered in these terms:—'If there is in either of the four quarters any worthy man who knows where she is gone to, and will send a letter, he will be rewarded with four full weight dollars, and the person detaining the slave will be rewarded with fifteen full weight dollars.' These words are subsequently added:—'This is firm, and the words will not be eaten.' I recently spoke in reprobation of slavery from this Bench, and in consequence of my remarks a gentleman who tore down this placard gave it to the editor of the *Daily Press*, and in a letter in that paper he stated that such placards are common, and that he had torn down a hundred such placards. Has Cuba or has Peru ever exhibited more palpable, more public evidence of the existence of generally recognized slavery in these hotbeds of slavery, than such placards as the one I now hold in my hand, to prove that slavery exists in this Colony? The notices have been posted in a most populous neighborhood, and have been in all probability read—they ought to

have been, they must have been read—by scores of our Chinese policemen.

"Important as this Colony is, politically and commercially, it is but a dot in the ocean; its area is about half that of the county of Rutland; the circumference of this island is calculated at about 27 miles, whilst that of the Isle of Wight is about 56 miles. The cultivated land on this island may be to the barren waste about one-half per cent, and there is no agrarian slavery here in nearly the total absence of farms, and on this dot in the ocean it is estimated that the slave population has reached ten thousand souls! I first became fully alive to the existence of so-called domestic slavery in this Colony at the Criminal Sessions in May last, on the trial of two cases.... But it is said that what is called domestic slavery, as it exists in Hong Kong, is mild, and it is said to be the opinion of a gentleman of great experience in Chinese, that, as it exists here, it is not contrary to the Christian religion, and that it is as general a fashion for Chinese ladies in Hong Kong to purchase one or more girls to attend on them as it is for English ladies to hire ladies' maids, and that the custom is so general that it would be highly impolitic, if not impossible, to put down the system. It may be that slavery as it exists in the houses of the better classes in Hong Kong is mild, and that custom among the better classes renders servitude to them a boon as long as it lasts. It is, I believe, an admitted duty that when the young girl grows up and becomes marriageable she is married; but then it is the custom that the husband buys her, and her master receives the price always paid for a wife, whilst he has received the girl's services for simple maintenance; so that, according to the marriageable excess in the price of the bride over the price he paid for the girl, he is a gainer, and the purchase of the child produces a good return. But the picture has another aspect. What, if the master

is brutal, or the mistress jealous, becomes of the poor girl? Certain recent cases show that she is sold to become a prostitute here or at Singapore or in California, a fate often worse than death to the girl, at a highly remunerative price to the brute, the master. It seems to me that all slavery, domestic, agrarian, or for immoral purposes, comes within one and the same category."

Every word uttered on this occasion by Sir John Smale, Chief Justice, has value, but it is impossible for us to quote it all. Referring to the purchase of kidnaped children from the kidnapers by well-to-do Chinese residents of Hong Kong, without effort on the part of these purchasers to ascertain from whence the children came, he says:

"In each of these cases I requested the prosecution of these well-to-do persons, purchasers of these human chattels, who had bought these children, whose money had occasioned the kidnaping, just as a receiver of stolen goods buys stolen property without due or any inquiry to verify the patent lies of the vendors. I have reason to believe that H.E. the Governor was desirous that my request should, if proper, be complied with; but on reference to former cases it appeared that a former Attorney-General had found that the system had been almost if not altogether unchecked for many years past, and that in particular, when His Excellency had desired to enforce the rights of a father to recover his child, he was not disposed to enforce that right because the father had sold that child."

He relates the details of yet another case concerning which he says: "I took the responsibility to direct the Acting Attorney General to prosecute this man and his wife." But the Attorney General, it seems, did not.

"Is it possible that such a being as man can, according to law ... become a slave even by his own consent?" asks the Chief Justice. "I say it is

impossible in law, as Sir R. Phillimore, 1 Phill., International Law, vol. 1, p. 316, has said in a passage I read with the most respectful concurrence, but too long for full quotation." "It is unnecessary for me to trace how it became the Common Law of England that whosoever breathes the air of England cannot be a slave." After reference to notable decisions on the part of England's highest authorities as to the unlawfulness of slavery; to the claim that slavery was secured to the Chinese residents by the promise not to interfere with their customs, and reminding his hearers that the promise was made only "pending Her Majesty's pleasure"; after quoting the Queen's proclamation against slavery at Hong Kong, and the assurance in that proclamation that "these Acts will be enforced by all Her Majesty's officers, civil and military, within this Colony," he asks:

"Have all Her Majesty's officers, civil and military, enforced these Acts within this Colony? I think they have not; I confess I have not. Our excuse has been in the difficulty of enforcing these Acts, but mainly in our ignorance of the extent of the evil. What is our duty, now that we know that slavery in its worst as in its best form exists in this dot in the ocean to the extent of say 10,000 slaves,—a number probably unexceeded within the same space at any time under the British Crown, and, so far as I believe, the only spot where British law prevails in which slavery in any form exists at the present time?"

Then he deals with the pretext that this slavery is Chinese custom, in words we have already quoted in the first chapter of this book. He passes on to consider and affirm the propriety of the Chief Justice directing the Attorney General to prosecute these cases, and answers some of the objections raised by the latter officer, concluding this portion of his remarks with the words: "What I have said has been said to meet arguments, doubts, and difficulties which have paralyzed public opinion and public action here;

which arguments, doubts and difficulties are the less easy to combat because they have been rather hinted at than avowed."

The Chief Justice then sentenced several prisoners for enticing, kidnaping or detaining children with intent to sell them into slavery, to penal servitude for terms ranging from 18 months to 2 years.

On October 20th, Sir John Smale wrote the Governor:

"I cannot understand why such classes should as classes increase in this Colony at all, unless it be that (in addition to the Chinese demand for domestic servants and brothels) there be an increased foreign element increasing the demand. I fear that a high premium is obtained by persons who kidnap girls in the high prices which they realize on sale to foreigners as kept women.[A] No one can walk through some of the bye-streets in this Colony without seeing well dressed China girls in great numbers whose occupations are self-proclaimed; or pass those streets, or go into the schools in this Colony, without counting beautiful children by the hundred whose Eurasian origin is self-declared. If the Government would inquire into the present condition of these classes, and still more, into what has become of these women and their children of the past, I believe that it will be found that in the great majority of cases the women have sunk into misery, and that of the children the girls that have survived have been sold to the profession of their mothers, and that, if boys, they have been lost sight of or have sunk into the condition of the mean whites of the late slave-holding states of America. The more I penetrate below the polished surface of our civilization the more convinced am I that the broad undercurrent of life here is more like that in the Southern States of America, when slavery was dominant, than it resembles the all-pervading civilization of

England." "My suggestion that the mild intervention of the law should be invoked was ignored. It was also met by the assertion that custom had so sanctioned the evils in this Colony as that they are above the reach of the law, and that by custom the slavery was mild."

[Footnote A: Rather, it would seem in later years, by renting them for a monthly stipend.]

The Governor, in a letter to the Colonial Secretary at London about this time, informs the Colonial Secretary of his own failure also to induce the Attorney General to prosecute cases to which His Excellency had called his attention, and furthermore he explains that other of his principal executive officers held to the same views as the Attorney General.

CHAPTER 9.

THE CHINESE PETITION AND PROTEST.

We get additional and valuable light on social conditions at Hong Kong, through statements drawn up by prominent Chinese men and laid before the Governor. As a representation from the Chinese standpoint it has peculiar value at all points excepting where self-interest might afford a motive for coloring the truth.

The occasion of these statements was as follows: On November 9, 1878, a month before the report of the Commission was published, certain Chinese merchants had petitioned the Governor to be allowed to form themselves into a society for suppressing kidnaping and trafficking in human beings. This petition states that the worst kidnapers are "go-betweens and old women who have houses for the detention of kidnaped people." They declare that these

"inveigle virtuous women or girls to come to Hong Kong, at first deceiving them by the promise of finding them employment (as domestic servants), and then proceeding to compel them by force to become prostitutes, or exporting them to a foreign port, or distribute them by sale over the different ports of China, boys being sold to become adopted children, girls being sold to be trained for prostitution." "Your petitioners are of opinion that such wicked

people are to be found belonging to any of the [neighboring] districts, but in our district of Tung Kun such cases of kidnaping are comparatively frequent, and all the merchants of Hong Kong, without exception, are expressing their annoyance."

Accompanying the petition was a statement of the situation:

"Hong Kong is the emporium and thoroughfare of all the neighboring ports. Therefore these kidnapers frequent Hong Kong much, it being a place where it is easy to buy and to sell, and where effective means are at hand to make good a speedy escape. Now, the laws of Hong Kong being based on the principle of the liberty of the person, the kidnapers take advantage of this to further their own plans. Thus they use with their victims honeyed speeches, and give them trifling profits, or they use threats and stern words, all in order to induce them to say they are willing to do so and so. Even if they are confronted with witnesses it is difficult to show up their wicked game.... Kidnaping is a crime to be found everywhere, but there is no place where it is more rife than at Hong Kong.... Now it is proposed to publish everywhere offers of reward to track such kidnapers and have them arrested.... The crimes of kidnaping are increasing from day to day."

This proposal on the part of Chinese merchants to form such a society was cordially accepted by officials, and the Governor requested that two police magistrates, whom he named, the Captain Superintendent of Police and Dr. Eitel, should draw up a scheme to check kidnaping, in concert with the Chinese petitioners. This committee met, and decided that the objects of the "Chinese Society for the Protection of Women and Children" should be as follows:

1. The detection and suppression of kidnapers and kidnaping. 2. The restoration to their homes of women and children decoyed or kidnaped for prostitution, emigration, or slavery. 3. The maintenance of women and children pending investigation and restoration to their homes. 4. Undertaking to marry or set out in life women and children who could not safely be returned home.

At a subsequent meeting of these gentlemen, Mr. Francis, Acting Police Magistrate, asked the Chinese merchants present, "If there was of late any special *modus operandi* observed in the proceedings of kidnapers differing from what had been observed and known formerly?" To this the Chinese gentlemen present replied that "there was indeed a marked difference observable in the proceedings of kidnapers of late, because they had become acquainted with the loopholes British law leaves open, also with the principle of personal freedom jealously guarded by British law, and that through this knowledge their proceedings had not only become less tangible for the police to deal with, but the kidnapers had been emboldened to give themselves a definite organization, following a regular system adapted to the peculiarities of British and Chinese law, and using regular resorts and depots in the suburbs of Hong Kong." In support of this, Mr. Fung Ming-shan laid on the table two documents written in Chinese. One of these contained a list of 38 different houses in the neighborhood of Sai-ying-pim and Tai-ping-shan used by professional kidnapers, whose names are given, but whose residence could not be ascertained. The other document consists of a list of 41 professional kidnapers whose personalia have been satisfactorily ascertained.

The foreign Magistrates present then pointed out to the Chinese members of the meeting that one great difficulty the Government frequently met in dealing with such cases was the question, what to do with women or children found to have been unlawfully sold or kidnaped; how to restore

them to their lawful guardians in the interior of China; how to provide for them in case such women or children had actually been sold by their very guardians, who, if the woman or child in question were restored to them, would but seek another purchaser; how to deal with persons absolutely friendless, etc. The Chinese members of the meeting replied that they were prepared to undertake this duty. They would employ trustworthy detectives to ascertain the family relations of any kidnaped person, who would see to such persons being restored to their families upon guarantee being given for proper treatment; and in cases where restoration was impossible or not advisable, they would take charge of such kidnaped persons, maintain them, and eventually see them respectably married. It was then decided that the Magistrates present should draw up a succinct statement of the provisions of the British law forbidding the sale of persons and guaranteeing the liberty of the subject, which should be translated into Chinese, and circulated freely in the neighboring districts.

Although the action on the part of the Chinese merchants in forming themselves into an organization to put down kidnaping was received with much appreciation by the Governor and Secretary of State at London, as well as by many of the officials at Hon' Kong, there were those who from the first doubted whether the motives of the Chinese in thus uniting were wholly disinterested on the part of the majority. Such were confirmed in their doubts by the action of these same Chinese as soon as Sir John Smale set to work in earnest to exterminate slavery, and declared in his court a year later than the formation of this Chinese Society:

"I was given to understand that buying children by respectable Chinamen as servants was according to Chinese customs, and that to attempt to put it down would be to arouse the prejudices of the Chinese.... Humanity is of no party, and personal liberty is to be held the right of every human being under British law.... Whatever

the law of China may be, the law of England must prevail here. If Chinamen are willing to submit to the law, they may remain, but on condition of obeying the law, whether it accords with their notions of right or wrong or not; and if remaining they act contrary to the law, they must take the consequences."

Sir John Smale's utterance created intense feeling among these Chinese merchants, who at once called upon the Governor to represent their views and to protest. The Governor informed them that "slavery in any form could not be allowed in the Colony." They protested that their system of adoption and of obtaining girls for domestic purposes was not slavery; "and they referred to the more immoral practice of buying girls for the Hong Kong brothels, which, they alleged, Government departments had connived at, though it was a practice most hateful to the respectable Chinese." The Governor then asked them for their views in writing, and they sent them to him in the form of a memorial, containing the following words:

"Your petitioners are informed that his Lordship, the Chief Justice, after the trial of a case of purchasing free persons for prostitution, said, in the course of his judgment, that buying and selling of girls for domestic servitude was an indictable offense;—which put all native residents of Hong Kong in a state of extreme terror; all great merchants and wealthy residents in the first instance being afraid lest they might incur the risk of being found guilty of a statutory offence, whilst the poor and low class people, in the second instance, feared being deprived of a means to preserve their lives (by selling children to be domestic servants)."

These petitioners claimed:

That the buying of boys for "adoption" and of girls for domestic servitude, "widely differs from the above-mentioned wicked

practices" of kidnaping and buying and selling of girls into brothels.

That the domestic slaves "are allowed to take their ease and have no hard work to perform," and when they grow up, "they have to be given in marriage."

That all former Governors had let them alone in the exercise of their "social customs."

That Governor Elliott had promised them freedom in the exercise of their native customs.

That infanticide "would be extremely increased if it were entirely forbidden to dispose of children by buying and selling;" parents deprived of the means of keeping off starvation by selling their children would "drift into thieftom and brigandage."

Following the petition was an elaborate statement on the subject, full of subtle arguments, misstatements and perversions, together, of course, with some well-put statements, forming ten propositions in favor of domestic slavery. Their first claim is not exactly true, as even Dr. Eitel, who defended domestic servitude, was bound to declare, namely, That Chinese law does not forbid adoption and domestic servitude. We have already quoted Sir John Smale's statement of the Chinese law, which restricted the adoption of boys to the taking of one with the same surname as the family. And as to the buying of girls for domestic servitude, though largely *practiced* in China, yet these Chinese merchants could hardly have been ignorant of the fact that it was an *illegality* before the Chinese law. "The reason of this," says the Chinese protest, "is the excessive increase of population, and the wide extent of poverty and distress." But there was neither over-population nor distress at Hong Kong which should necessitate the introduction of the practice into that Colony. "If all those practices were forbidden, poor and

distressed people would have no means left to save their lives, but would be compelled to sit down and wait for death." In other words, these men would claim that their motives were wholly, or largely benevolent in purchasing the children of the poor! And what better could the poor do for a living than to beget children and sell them into slavery to the rich!

"Whilst all those practices, therefore, may be classed together as buying and selling (of free persons), it is yet requisite to distinguish carefully the good or wicked purposes which each class of practice serve, and accordingly apply discriminately either punishment or non-punishment." But anti-slavery legislation has never done this, and never will. The question is not to any large extent the comfort or misery of the chattel, but the forbidding that one human being should be allowed to deal with another *as a chattel* at all.

This attitude of the Chinese merchants who allied themselves with the British officials for the Protection of Women and Children gave no omen of good from the very first. Yet from that day to the present these men have had a large share in the government of the native women of Hong Kong and Singapore, rendering it very difficult ever to elevate the standard of womanhood, or to educate Chinese women in principles that should be the common inheritance of all who live in a so called free country.

The statement continues:

"Since the last few years many Chinese have brought their property, wives and families to the place, supposing they would be able to live here in peace, and to rejoice in their property. ...Chinese residents of Hong Kong have, therefore, been in the habit of following all native customs which were not a contravention of Chinese statute law [but it seems *this sort* of buying and selling of human beings is contrary to Chinese law. This is a

misrepresentation]. It is said that the whole increase and prosperity of the Colony from its first foundation to the present day is all based on the strength of that invitation which Sir Charles Elliott gave to intending settlers, and that this present intention of applying, all of a sudden, the repressive force of the law to both the practice of buying or selling boys or girls for purposes of adoption or for domestic servitude is not only a violation of the rule of Sir Charles Elliott, but moreover will, it is to be feared, not fail to trouble the people."

They speak of infanticide as an evil that

"must be classed with evils almost unavoidable. Now if the buying of adoptive children and of servant girls is to be uniformly abolished, it is to be feared that henceforth the practice of infanticide will extremely increase beyond what it ever was. The heinousness of the violation of the great Creator's benevolence, which constitutes infanticide, is beyond comparison with the indulgence granted to the system of buying and selling children to prolong their existence."

As though these benevolent persons only bought slaves for this one laudable purpose, to preserve their lives! "As regards the buyers, they look upon themselves as affording relief to distressed people, and consider the matter as an act akin to charity," etc.

A flood of light is let in upon the matter of the reluctance of British officials to move in the putting down of domestic slavery and the buying and selling of boys among the natives, in the following well-deserved thrust at the weak point in the armor of the British officials:

"The office of the Registrar-General was charged with the superintendence of prostitutes and the licensing of brothels and

similar affairs. But *from 80 to 90 per cent of all these prostitutes in Hong Kong were brought into these brothels by purchase, as is well known to everybody*. If buying and selling is a matter of a criminal character, the proper thing would be, first of all, to abolish this evil (brothel slavery). But how comes it that since the first establishment of the Colony down to the present day the same old practice prevails in these licensed brothels, and has never been forbidden or abolished?"

This was a center shot, and calculated to weaken the hands of at least the guilty officials. What could they say? Were the officials prepared, since the report of the Commission a few months before had made public the scandals connected with the licensing and inspection of brothels, to set about reforming the abuses by radical measures? Certainly the Chief Justice was. He did everything in his power to abolish slavery *as slavery*, not simply to abolish slavery when unconnected with brothels. But subsequent history seems to indicate that, from this point on, the British officials were ready to compromise with the Chinese merchants, and the testimony from this time forward was well-nigh universal in Hong Kong circles that domestic slavery, or "domestic servitude," as Dr. Eitel recommended that it should be called instead (since a weed by another name may help the imagination to think it a rose), was very "mild" and "harmless," and that the adoption of purchased boys was a "religious" duty, or at least, had a religious flavor about it, as practiced by the Chinese. But as we have already said, that adoption in order to be lawful in China must be the adoption of one of the same surname.

On October 27th, 1879, the Chief Justice, at an adjourned sitting of the Court for the purpose, sentenced two more offenders, one for kidnaping a boy, and the other for detaining a girl with intent to sell her. In the first case the Judge said:

"Received as you had been into the father's house in charity, you availed yourself of the opportunity to steal his child, and tried to sell the child openly, probably having hawked him from door to door. The sentence of the Court on you, Tang Atim, is that you be imprisoned and kept to hard labor for two years, and that you be kept in solitary confinement for a period of one week in every two months of your imprisonment."

Chan Achit, an old woman, convicted of having unlawfully detained a female child of 11 years of age, with intent to sell her, was next placed in the dock. His Lordship said:

"The evidence in this case has shown the extraordinary extent to which, under cloak of China custom, the iniquity of dealing in children has extended. From the evidence, I have no doubt that a vagabond clansman to whom the father had occasionally given out of his penury had originated the crime in enticing the child away, and it seems to me to be clear that the prisoner was as well known as a 'broker of mankind' as a receiver of stolen children, to sell them on commission, as receivers of old iron and marine stores could be found in this Colony to dispose of stolen property. The little girl bought and sold, aged 11 years, is a very intelligent child, and described the negotiations for her sale with great clearness."

The Chief Justice then went on to repeat the little girl's testimony as to these "brokers of mankind," and the child's knowledge, from personal observation of these purchases and sales, to which he adds:

"Let me here ask, Is the trade, or rather profession, 'broker of mankind,' also a sacred China custom? I will not ask the queries which would naturally arise in case the question were answered in the affirmative. At present, however, I must say that, custom or no

custom, the practice of this profession is prohibited by statute, and it is my duty to meet its exercise by punishment."

The prisoner was sentenced to two years' penal servitude. The Chief Justice concluded his remarks on that occasion by replying to the statements made in the Chinese petition.

He called attention to the Chinese resting their claim on the temporary promise of Governor Elliott in 1841; of the fact that they ignored the proclamation of the Queen in 1845. He said that infanticide was also a Chinese custom in the same sense that slavery was, on the words of the petition:

"Amongst the Chinese there has hitherto been the custom of drowning their daughters. The Chinese threaten the increase of this 'custom' of drowning children if their sale is put down.... I can only say that in case father, mother, or relative were convicted of infanticide, Chinese custom would be no protection, and, unless I am grievously mistaken, the presiding judge would have no alternative but to sentence the perpetrator to death ... the one custom is tolerated just as the other custom is tolerated, and both alike or neither must be claimed as sanctioned by Governor Elliott's proclamation. All remedies which ever existed by common law or by statute in England up to 1845 against ownership of human beings, against every form of slavery, extend by their own proper force and authority to Hong Kong; and, if that were not enough, all English laws applicable to Hong Kong, including those against ownership in human beings, were by express Ordinances 6 of 1845, and 12 of 1873, embodied into the laws of Hong Kong, whilst the worst forms of slavery are especially punished by Ordinance 4 of 1865, and 2 of 1875. I am bound by my most solemn obligations to

enforce all these laws. I must, therefore, without fear, favour or affection, discharge this duty to the best of my ability."

CHAPTER 10.

NOT FALLEN—BUT ENSLAVED.

The Report of the Commission affords the following instructive account of the difference in the moral and social status between the prostitute of the East and West:

"In approaching the subject of prostitution, as it is found in Hong Kong at the present day, it is absolutely necessary for a full and just comprehension of it, to keep in mind two distinct considerations. One is the almost total identity of the whole system of prostitution, which since times immemorial is an established institution all over the large empire of China. The other point to be kept in mind is the radical difference which distinguishes the personal character, the life and the surroundings of Chinese prostitutes from all that is characteristic of the prostitutes of Europe." ... "At the present day the Chinese prostitutes of Hong Kong have but very little to distinguish them, either in the past, present, or future of their personal lives, or in their position and surroundings, from the prostitutes of the 18 provinces of China.... Those of the prostitutes of Hong Kong who are inmates of brothels licensed for foreigners only, or who live in sly brothels for foreigners, have adopted a different style of dress, but are otherwise in no essential point

differently situated from prostitutes in China, except that the inmates of brothels licensed for foreigners are subject to compulsory medical examination, and consequently far more despised by their countrymen and even other prostitutes."

"Prostitutes in Europe are, as a general rule, fallen women, the victims of seduction, or possibly of innate vice. Being the outcasts of society, and having little, if any, prospect of being again admitted into decent and respectable circles of life, deprived also of their own self-respect as well as the regards of their relatives, occasionally even troubled with qualms of conscience, they mostly dread thinking of their future, and seek oblivion in excesses of boisterous dissipation. The Chinese prostitutes of Hong Kong are an entirely different set of people.... Very few of them can be called fallen women; scarcely any of them are the victims of seduction, according to the English sense of the term, refined or unrefined. The great majority of them are owned by professional brothel-keepers or traders in women in Canton or Macao, have been brought up for the profession, and trained in various accomplishments suited to brothel life.... They frequently know neither father nor mother, except what they call a 'pocket-mother,' that is, the woman who bought them from others.... They feel of course that they are the bought property of their pocket-mother or keeper, but they know also that this is the feeling of almost every other woman in China, liable as each is to be sold, by her own parents or relatives, to be the wife or concubine of a man she never sets eyes on before the wedding day, or liable, as the case may be, to be pledged or sold, by her parents or relatives, to serve as a domestic slave in a strange family.... They have the chance, if they are pretty and accomplished, of being wooed ... and they may look forward with tolerable certainty to being made the second, or third, or fourth, or at any rate the favorite wife of some

wealthy gentleman. If not possessed of special attractions or wealthy lovers, they look forward to being taken out of the brothel by an honest devoted man to share the lot of a poor man's wife. Or they may endeavor to save money by singing, music and prostitution combined, and not only to purchase their freedom, but to set up for themselves, buying, rearing, and selling girls to act as servants or concubines or prostitutes, or they may finally come to keep brothels as managers for wealthy capitalists or speculators. There is further a certain proportion of prostitutes in Hong Kong who have, by the hand of their own parents or husbands, been mortgaged or sold into temporary servitude as prostitutes, or who of their own will and accord act as prostitutes under personal agreement with a brothel-keeper, for a definite advance of a sum of money, required to rescue the family, or some member of it, from some great calamity or permanent ruin."

"There is, however, one class of women in Hong Kong who can scarcely be called prostitutes, and who have no parallel either in China, outside the Treaty Ports, or in Europe. They are generally called 'protected women.' They may originally have come forth from one or other of the above-mentioned classes of prostitutes, or may be the offspring of protected women...."

The Report describes the situation of the "protected woman" in the following terms:

"She resides in a house rented by her protector, who lives generally in another part of the town; she receives a fixed salary from her protector, and sublets every available room to individual sly prostitutes, or to women keeping a sly brothel, no visitor being admitted unless he have some introduction or secret pass-words. If

an inspector of brothels attempts to enter, he is quietly informed that this is not a brothel, but the private family residence of Mr. So and So.... This system makes the suppression of sly brothels an impossibility.... The principal points of difference between the various classes of Chinese prostitutes of Hong Kong and the prostitutes of Europe amount therefore to this, that Chinese prostitution is essentially a bargain in money and based on a national system of female slavery."

"It must not be supposed, however, from what is said above, that the Chinese, as a people, view prostitution as a matter of moral indifference. On the contrary, the literature, the religions, the laws and the public opinion of China, all join in condemning prostitution as immoral, and in co-operation to keep it under a certain check. The literature of the Confucianists, which, as regards purity and utter absence of immoral suggestions, stands unrivalled by any other nation in the world, does not countenance prostitution in any form.... The laws and public opinion ... agree in keeping prostitution rigidly out of sight. Although the Chinese are a Pagan nation, they have no deification of vice in their temples, no indecent shows in their theatres, no orgies in their houses of public entertainment, no parading of lewd women in their streets.... In short, as far as outward and public observation goes, China presents a more virtuous appearance than most European countries."

The report goes on to show that nevertheless the practice of polygamy,

"leaving the childless concubines liable to be sold or sent adrift at any moment, the law of inheritance neglecting daughters in favour of sons," and "the universal practice of buying and selling females combined with the system of domestic servitude," makes the

suppression of prostitution difficult. "This intermixture of female slavery with prostitution has been noticed in Hong Kong at the very time when the Legislature first attempted to deal with Chinese prostitution."

We now understand the nature of this wretched form of slavery as carried on at Hong Kong. There did not exist a class of women brought to the pitiable plight of prostitution by the wiles of the seducer, or through the mishap of a lapse from virtue, after which all doors to reform are practically closed against such, as in Western civilization, nor were there those known to have fallen through innate perversity; but such as existed among the Chinese were literal slaves, in the full sense of that word. From the standpoint of these officials, for the most part, prostitution was necessary. This was plainly declared in many official documents. The fact that they licensed brothels proves also that prostitution was considered necessary. And since necessary, if the means failed whereby brothels in the Occident are maintained, then they must be maintained by Oriental means,—which was slavery. Under such circumstances, to license prostitution meant, from the very nature of the case, to license slavery. To encourage prostitution, as it always is encouraged by the Contagious Diseases Acts, meant to encourage slavery. Hence they reasoned, and declared—to use the language of the Registrar General, Cecil C. Smith—that it was "useless to try and deal with the question of the freedom of Chinese prostitutes by law or by any Government regulation. From all the surroundings the thing is impracticable."

It must be admitted that the conditions at Hong Kong favored the development of social impurity. From the moment of British occupation, and before, in fact, there were at that place large numbers of unmarried soldiers and sailors, many of very loose morals; also many men in civil and military positions as officials, and numerous merchants, etc., most of them

separated far from their families and the restraints that surrounded them at home. On the Chinese side, there were men accustomed to deal with their women as chattels, willing to sell them to the foreigners.

But we need to inquire a little further into the matter before conceding that because a thing will almost inevitably take place, therefore it is best to license it in order to keep it within bounds. The superficial sophist says: "Prostitution always has existed and always will exist. Painful as the fact is, such is the frailty of human nature. You cannot make men moral by act of parliament, and it is foolish to try. We will have to license the thing, and thus control it as best we can. That is the only practical way to deal with this evil." Such reasoning as this exhibits the most confused notions as to the nature of law.

No law is ever enacted except with the expectation that an offense against it will take place. Law anticipates transgression as much as license; but law provides a *check* upon offenses and license provides an *incitement* to them. "The law was not made for a righteous man, but for the lawless and disobedient." Have not murder and stealing always existed? Are they not likely to exist in spite of laws against them, so long as human nature remains so frail? Then why not license *them* in order to keep *them* under control? It is perfectly apparent to all that to license murder and stealing; would be the surest way of allowing them to get quickly beyond control. "But you cannot make men moral by act of parliament, and it is foolish to try; to put a man in jail will not change him from a thief into an honest man." "But," you reply, "we do not punish men for stealing and for murder for their own good, but for the good of the community at large." Certainly. Then what becomes of the argument that because men will not become pure by act of parliament they are to be allowed to commit their depredations unmolested? The primary object of law is not reformatory but protective,—for the victims of lawlessness.

Our great Law-Giver, Jesus Christ, admitted a certain necessity of evil, but He did not say, "therefore license it, to keep it within bounds." He said, "It *must needs be* that offenses come." But His remedy for keeping the offenses within bounds was, "woe to that man by whom the offense cometh." As inevitably as the offense was committed so invariably must the punishment fall on the offender's head. That is the only way to keep any evil within bounds. This is the principle that underlies all law.

These Hong Kong officials who believed in the licensing of brothel slavery and brought it about, have much to say about the "unfortunate creatures" who were the victims of men. But if the advocate of license is self-deceived in his attitude toward this social evil, we need not be deceived in him. One does not propose a license as a remedy for an evil, except as led to that view by secret sympathy with the evil. A license of an evil is never proposed excepting upon the mental acquiescence in that evil.

British officials who licensed immoral houses at Hong Kong did not wish the libertine to be disturbed in his depredations. The Chinese merchants were able to see this fact if those officials were not ready to admit it even to themselves. They knew how to throw a stone that would secure their own glass houses. Hence they said in their memorial to the Governor:

"From 80 to 90 per cent of all these prostitutes in Hong Kong were brought into these [licensed] brothels by purchase, as is well known to everybody. If buying and selling is a matter of criminal character the proper thing would be first of all, to abolish this evil (connected with the brothels). But how comes it that since the first establishment of the Colony down to the present day the same old practice prevails in these licensed brothels, and has never been forbidden or abolished?"

It is to be noted that none of the officials at Hong Kong accused the Chinese merchants of slander in saying that from 80 to 90 per cent of the thousands of prostitutes in the Colony were absolute slaves. The Government was placed in a very awkward position by this challenge on the part of the Chinese. How could a Government that held slaves in its licensed brothels forbid Chinese residents holding slaves in their homes? But the Governor did not propose to be compromised. He wrote to the Secretary of State at London: "I believe I only anticipate your instructions, in giving orders that the law, whatever may be the consequences to the brothel system, should be strictly enforced so as to secure the freedom of the women." But he reckoned without his host. The Secretary of State did not stand by the Governor. So far as the records show, the Governor and Chief Justice stood alone, his entire Executive Council taking the opposing side. What was to be done?

CHAPTER 11.

THE MAN FOR THE OCCASION.

Consistency demanded that either the brothel system at Hong Kong should be abolished, or domestic slavery and so-called "adoption" should be tolerated. No other courses were open. In his perplexity, the Governor asked his learned Chinese interpreter, Dr. Eitel, to give him further light as to this domestic slavery and "adoption" prevalent among the Chinese. This request was granted in a document entitled "Domestic servitude in relation to slavery." Dr. Eitel's main points were:

Slavery as known to the Westerner "has always been an incident of race." "Slavery, therefore, has such a peculiar meaning ... that one ought to hesitate before applying the term rashly" to Chinese domestic slavery. Slavery in China grows out of the fact that the father has all power, even to death, over his family. The father, on the other hand, "has many duties as well as rights." Therefore his power over his family "is not a mark of tyranny, but of religious unity." "Few foreigners have comprehended the extent of social equality, ... the amount of influence which woman, bought and sold as she is, really has in China,... the depth of domestic affection, of filial piety, of paternal care." "To deal justly with the slavery of China, we ought to invent another name for it." "The law, although

sanctioning the sale of children for purposes of adoption within each clan, and even without, is here in advance of public opinion, as it expressly allows, by an edict, ... the sale of children only to extremely poor people in times of famine, and forbids even in that case re-sale of a child once bought."

This last admission on the part of Dr. Eitel, a fact already pointed out by Sir John Smale, seems to us to clearly demonstrate that a pretext was now being sought to justify at Hong Kong a state of things as to slavery that the laws of China forbade and which in no wise could be justified as Chinese "custom." "The reason for this immense demand for young female domestics lies in the system of polygamy which obtains all over the empire, and which has a religious basis." By this he means that it is from the Chinese standpoint a religious duty for a father to leave a son, upon his death, to continue the family sacrifices. Therefore if the father has no son by his first wife, he will "take a second or third or fourth wife until he procures a son." "A family being in urgent distress, and requiring immediately a certain sum of money, take one of their female children, say five years old ... to a wealthy family, where the child becomes a member of the family, and has, perhaps, to look after a baby.... But the child may be sold out and out. In that case invariably a deed is drawn up." And this is the state of things concerning which Dr. Eitel says: "Few foreigners have comprehended the extent of social equality ... the amount of influence which woman, bought and sold as she is, really has in China ... the depth of domestic affection, of filial piety, of parental care," etc.

He adds:

"Considering the deep hold which this system has on the Chinese people, it is not to be wondered at that Chinese can scarcely comprehend how an English judge could come to designate this

species of domestic servitude as 'slavery.' On the contrary, intelligent Chinese look upon this system as the necessary and indispensable complement of polygamy, as an excellent counter remedy for the deplorably wide-spread system of infanticide, and as the natural consequence of the chronic occurrence of famines, inundations, and rebellions in an over-populated country. But the abuses to which this system of buying and selling female children is liable, in the hands of unscrupulous parents and buyers, and the support it lends to public prostitution, are too patent facts to require pointing out."

"The moment we examine closely into Chinese slavery and servitude," declares Dr. Eitel, "from the standpoint of history and sociology, we find that slavery and servitude have, with the exception of the system of eunuchs, lost all barbaric and revolting features." (!) "As this organism has had its certain natural evolution, it will as certainly undergo in due time a natural dissolution, which in fact has at more than one point already set in. But no legislative or executive measures taken in Hong Kong will hasten this process, which follows its own course and its own laws laid down by a wise Providence which happily overrules for the good all that is evil in the world."

There was, indeed, a certain justice in defending the Chinese as against the foreigner, on Dr. Eitel's part. But two wrongs do not make a right. From this time onward, the word of sophistry is put in the mouth of the advocate of domestic slavery, just as the word of sophistry had been put in the mouth of the advocate of the Contagious Diseases Ordinance. Mr. Labouchere had spoken of the latter as a means of protection' for the poor slaves, and the expression, 'protection,' has been kept prominently to the front ever since Dr. Eitel suggested, likewise, not a change in the conditions, but a change in

the name by which they were known. Let it be called '*domestic servitude*' instead of '*domestic slavery*.' All the advocates of this domestic slavery from that time have called the noxious weed by the sweeter name.

Governor Hennessey asked the opinion of others of his officials. One Acting Police Magistrate replied 'When the servant girls (or slaves girls, as some prefer to term them) in the families in this Colony are contented with their lot, and their parents do not claim them, the police cannot be expected to interfere.' Another said 'Buying and selling children by the Chinese has been considered a harmless proceeding, its only effect being to place the purchaser under a legal and moral obligation to provide for the child until the seller chose to repudiate the bargain, which he could always do under English law.'

The Attorney General, Mr. O'Malley, when asked (at a later period) his opinion as to the utterances Sir John Smale had made from time to time on the subject of slavery, replied to the Governor

"With regard to Sir John Smale's observation, I know that difficulties national, social, official and financial beset the Government in reference to the special questions I have raised, I have only to observe that I have never heard of those difficulties. My own impression is that the respectable parts of the community, Chinese as well as European, including the Government and the police, are fully alive to the brothel and domestic servitude systems, and as well informed as Sir John Smale himself as to the real facts. One would suppose from the tone of his pamphlet that he stood alone in his perception and denunciation of evil. But I believe the fact is that the Executive and the community generally are quite as anxious as he is to insist upon practical precautions necessary to prevent the abuses, and to diminish the evils naturally connected

with these systems, but they look for this to practical securities and not to declamation. The obvious line of practical suggestions to take is that of careful registration and constant inspection of brothels, so that full and frequent opportunity may be given to all persons whose freedom may be open to suspicion to know their legal position, and to assert their liberty if they like ... Particularly it might be thought right to create a system of registration applicable to domestic servants and strangers in family houses. It would be a good thing if Sir John Smale would place at the disposal of the Government (as I believe he has never yet done) any facts connected with the brothel system or the domestic servitude of which he possesses any real knowledge."

This letter gives us some conception of the almost insuperable difficulties Sir John Smale had to encounter in his endeavor to put down slavery, for not a case could come up in the Superior Court for conviction on the Judge's information, of course, for that would be assuming both prosecuting and judicial powers, and the men who occupied in turn that office, during Sir John Smale's incumbency, refused to act in unison with him, and this Attorney General's language betrays hot prejudice, lack of candor as regarded the facts, and insolence toward Sir John Smale.

The Attorney General has a fling at the Chief Justice as "impracticable," yet the only practical suggestion that the former makes in his letter as to how to meet the conditions he seems to have taken from Sir John Smale's own words upon which he was asked to express an opinion. The Chief Justice had said:

"I think the evils complained of might be lessened,—(1) By a better registration of the inmates of brothels, and by frequently bringing them before persons to whom they might freely speak as to

their position and wishes, and by such authoritative interference with the brothel-keepers as should keep them well in fear of exercising acts of tyranny. (2) By a stringently enforced register of all inmates of Chinese dwelling-houses, &c., (at least of all servants) with full inquiry into the conditions of servitude, and an authoritative restoration of unwilling servants to freedom from servitude. This would apply to 10,000 (according to Dr. Eitel 20,000) bond servants in Hong Kong."

The injustice of the attack of the Attorney General upon Sir John Smale was not ignored by Governor Hennessy, when he forwarded Mr. O'Malley's letter to London. He said:

"The apparent difference between Mr. O'Malley's views on brothel slavery and the views of Sir John Smale is due to the fact that Sir John Smale knew that the real brothel slavery exists in the brothels where Chinese women are provided for European soldiers and sailors, whereas Mr. O'Malley, in discarding the use of the word slavery, does so on the assumption that all the Hong Kong brothels form a part of the Chinese social system, and that the girls naturally and willingly take to that mode of earning a livelihood. This is a misconception of the actual facts, for though the Hong Kong brothels, where Chinese women meet Chinese only, may seem to provide for such women what Mr. O'Malley calls 'a natural and suitable manner of life' consistent with a part of the Chinese social system, it is absolutely the reverse in those Hong Kong brothels where Chinese women have to meet foreigners only. Such brothels are unknown in the social system of China. The Chinese girls who are registered by the Government for the use of Europeans and Americans, detest the life they are compelled to lead. They have a

dread and abhorrence of foreigners, and especially of the foreign soldiers and sailors. *Such girls are the real slaves in Hong Kong.*"

We underscore the last sentence as a most painful fact in the history of the dealings of the British officials with the native women of China, set forth on the authority of the Governor of Hong Kong, who, with the help of Sir John Smale, the Chief Justice, waged such a fearless warfare against slavery under the British flag, with such unworthy misrepresentation and opposition on the part of the other officials equally responsible with them in preserving the good name of their country, and in defending rather than trampling upon its laws. Governor Hennessy continues

"To drive Chinese girls into such brothels [i.e., those for the use of foreigners] was the object of the system of informers which Mr. C. C. Smith for so many years conducted in this Colony, and which in his evidence before the Commission on the 3rd of December, 1877, he defended on the ground of its necessity in detecting unlicensed houses, but which your Lordship [Lord Kimberley, Secretary of State for the Colonies] has now justly stigmatized as a revolting abuse. On another point the Attorney General also seems not to appreciate fully what he must have heard Sir John Smale saying from the Bench in the Supreme Court. It would be a mistake to think that the Chief Justice had not before he left the Colony, realized the public opinion of the Chinese community on the subject of kidnaping. In sentencing a prisoner for kidnaping, on the 10th of March, 1881, Sir John Smale said he was bound to declare from the Bench that, to the credit of the Chinese, a right public opinion had been growing up, and on the 25th of March, 1881, (the last occasion when Sir John Smale spoke in the Supreme Court of Hong Kong), he said, in a case in which the kidnapers had been convicted—This case presents two satisfactory facts first, that a Chinese boat woman

handed one of these prisoners to the police, and that afterward an agent of the Chinese Society to suppress this class of crime caused the arrest and conviction of these prisoners. These facts are indicative of the public mind tending to treat kidnaping as a crime against society, calling for active suppression. On the same occasion, in sentencing a woman who had severely beaten an adopted child, Sir John Smale said, 'In finally disposing of these three cases, with all their enormity, sources of satisfaction present themselves in the fact that, in each of these cases, it has been owing to the spontaneous indignation of Chinese men and women that these crimes have been brought to the knowledge of the police.' The Governor closes his letter with the statement, 'It is only due to Sir John Smale to add that his own action has greatly contributed to foster the "healthy" public opinion of the native community, which induced him, when quitting the Supreme Court, to take a hopeful view of the future of this important subject.'"

CHAPTER 12.

THE CHIEF JUSTICE ANSWERS HIS OPPONENTS.

The Acting Attorney General at the time of Sir John Smale's first pronouncement against slavery had suggested to Governor Hennessy that Sir John Smale's statements should be sent to London to the Secretary of State for the Colonies; and he and other advisers recommended that no prosecutions in connection with "adoption" and "domestic servitude" should be instituted, pending the receipt of instructions from the Home Government. The Chief Justice concurred in these views, and also suggested that the Chinese be told that no prosecutions as to the past should take place, but that in future, in every case where *buying and selling* occurred in connection with adoption or domestic service, the Government would undoubtedly prosecute.

The replies that came from the Secretary of State indicated scant sympathy with Sir John Smale's position. His action was likely to disturb the system of regulation of vice at Hong Kong, and these health measures were in high repute with that official at London. He could not sympathize with the Governor's view that laws securing the freedom of the women were to be executed, whatever the result to the brothel system. He wrote in reply as though Sir John Smale had said many things that had not been put in the same light, demanded to know what law could be put into operation

to improve conditions, and wished to know if Sir John Smale accepted Dr. Eitel's views on "domestic servitude," and later he wrote pronouncing the views expressed in the insolent attack of Mr. O'Malley upon Sir John Smale's anti-slavery pronouncements as "well considered and convincing." He also referred to the "humane intentions" of Mr. Labouchere in the passing of the Contagious Diseases Ordinance of Sir John Bowring's time, which "were intended to ameliorate the condition of the women." But it does not so much concern us what the officials in London did and said, excepting at the one point, namely, that they did not at this time back the noble efforts of the Governor and of Sir John Smale to put down slavery, and so rendered it practically impossible for them to accomplish what they wished to do. The replies from Sir John Smale are, however, of much value to us, as throwing light upon social conditions at Hong Kong. On August 26, 1880, Sir John Smale replied in a letter meant for the Secretary of State at London, but sent in due form to the Colonial Secretary at Hong Kong for forwarding:

"My observations in Court arose out of cases of kidnaping; and, according to the practices of judges in England, in their addresses to the Grand Juries, and on sentencing prisoners, I did as I thought it my duty to do. I traced the cause of the kidnaping to the demand for domestic bond servants, as Dr. Eitel calls them, and for brothels ... I said on the 7th of October I expressly indicate these two, and these two only, as the specific classes of slavery in Hong Kong as then rapidly increasing ... I cannot find a sentence in it which indicates any attempt by the Court to reach criminally cases of concubines."

"All that I contended for in what I then said beyond punishing kidnapers was to bring within the cognizance of the law those who bought from such kidnapers,—the receivers of such stolen

'chattels,'—leaving such buyers to set up and prove a justification if they could."

"On the 31st of March, 1880, prisoners in four cases of kidnaping,—one most harrowing,—were sentenced. I there lamented, and I am sure every right-minded man will concur with me, that it was the fact that the very poor were punished and the rich escaped. In that case it clearly appeared that one Leong Ming Aseng, apparently a respectable tradesman, at all events a man of means, had given \$60 for a young girl aged 13 years, to one of the kidnapers, and he took her away beyond the reach of her distracted mother under circumstances from which he must have known that the child had been kidnaped. But although the facts were known at the Police Court, and this man remained exceeding ten days afterward in the Colony, no charge was ever made against him. After passing sentences at this time, I made some observations on the '*patria potestas*' [power of the father] theory. Dr. Eitel having painted this condition in China in what I thought too favorable colors, I quoted from Doolittle's 'Social Life in China,' unquestioned testimony as to what *patria potestas* was in China before the controversy now raised, and from Mr. Parker, Her Britannic Majesty's Consul at Canton, as to its present state in China. After these quotations, I simply asked, Can greater tyranny, more unchecked caprice, be described or even conceived as inexcusable over wife, concubine, child, or purchased or inherited slave?'—the quotations I made being up to this time undisputed ... what I said was necessary to introduce the expression of my conviction ... that none of the elements of the system of *patria potestas* exist in Hong Kong, including of course adoption. It is to this conviction that I point as the moral ground for enforcing English law against kidnaping and buying and selling human beings. The gravamen of

all my complaints is, that the pauper kidnapers and sellers are punished, while the rich buyers go free. No case can come on for trial in this Court except upon an information by the Attorney-General. I have called on the Attorney-General of the day to prosecute a man against whom there was evidence that the boy he was keeping as a servant had been bought by him direct from a kidnaper. The then Attorney-General exercised his discretion, and did not prosecute." "There are no difficulties in the way of carrying out the punishment of kidnaping, and sellers and buyers of children, or of keeping children by the purchasers, or in selling and buying of women for brothels, or in dealing with cases of brutal bondage." "I have spoken from criminal facts and circumstances deposed to in Court; the Chinese and Dr. Eitel have spoken from the favorable surroundings of respectable domestic life in China. The conflicting views thus presented are but a reproduction of conflicting testimony in reference to negro slavery in the West Indies, and more lately in the United States. Very benevolent persons, some my own friends, looking at facts from the respectable standpoint, thought that such slavery was based on human nature, and conduced to the spread of Christianity. But the contrary view prevailed. I am quite satisfied that the right view on this question will ultimately prevail. As a man I have very decided views on these subjects, but as a judge I feel it is not for me further to debate them. I expressly retired from doing so on the 27th of October, 1879, although I thought it necessary in March last to comment on what I thought to be an erroneous view of the *patria potestas*."

Later, in response to a suggestion on the part of the Governor, for a more explicit statement as to wherein his views differ from those of the Chinese and of Dr. Eitel, the Chief Justice says, among other things:

"I do not admit the statements of Dr. Eitel. They do not apply to Hong Kong, but they may, and probably do, apply to certain respectable classes in China proper, where China family life proper exists. What I assert is that family life does not, in the proper Chinese sense, exist in Hong Kong, and that although, under certain very restricted conditions, the buying and selling, and adopting and taking as concubines, boys and girls in China proper, is permitted as exceptions to the penalties inflicted by Chinese law in China proper, these conditions do not exist in Hong Kong; and that the conditions necessary to these exceptions in their favor in the Chinese Criminal Code do not exist in Hong Kong, and that the penalties would apply, if in China, to all such transactions as I have denounced in Hong Kong, of that I have no doubt. Dr. Eitel's vindication is of a system as recognized in an express exception to the Penal Code in China proper, which may, for aught I know, work well in China. What I have said is that the practices in Hong Kong do not come within the cases which are only the exception to the penal enactments in the Chinese Code against all such bondage in China. I have never said ... that all buying and selling of children for adoption or domestic service is contrary to Chinese law. What I have said is that all such buying and selling of children as has come within my cognizance in Hong Kong is contrary to Chinese law; but I do think that buying and selling even for adoption and domestic servitude under the best circumstances, constitutes slavery; legal according to Chinese law, but illegal according to British law. Reference is made to Chinese gentlemen; I believe that not one of them has his 'house' in Hong Kong; the wife (small-footed) is kept at the family home in China. Each of them has his harem only in Hong Kong. There may be an exception to this rule, but I have never heard of any such exception. (I know of only one, of a Chinese gentleman, who, for certain

reasons, was afraid to return to China.) ... I have not known a single case of adoption by a Chinaman in Hong Kong. They may exist in China proper, and possibly in Hong Kong ... They are not in China proper a sacred religious obligation, except in rare cases indeed, in which the conditions of clanship and other stringent conditions are precisely complied with; and they have as much to do with the necessities of the poor, and no more, than would be the case in England or Ireland in the time of a famine. These Chinese gentlemen say that the children are well cared for. If girls eligible for marriage or concubinage, they are sold for that, and form a profitable investment to a Chinese gentleman. If not so eligible, they are sold for any, even the worst purpose,—brothels, according to my experience in the Criminal Courts of Hong Kong. If the former, it may be that they do well; but if the latter, no slavery is worse. This as to females. And as to males, the purchaser holds them until they can redeem themselves, and, according to my experience, generally never. Again, the Chinese gentlemen allege that if the adoptive parent or master does not do his duty the actual parents have their remedy. The answer is, so far as Hong Kong is concerned, the far greater number of actual parents are far away in China, have entirely lost sight of the child, and are far too poor to seek a remedy in Hong Kong. They would have a remedy, if they were present and knew it, but they do not know that there is a remedy. They had their remedy from the first in China proper. Well, a remedy in the Mandarin Court, where the longest purse prevails, and into which a poor man seldom dares to enter a complaint."

"Lastly, it is said that the lot of these children is far happier than if they had been left to their ordinary fate. So say these Chinese gentlemen; so said the noble and wealthy, the much respected slave trader and holder, a century ago in England. The answer to him then

is the only answer for these Chinese gentlemen. It is a long one which presents itself to everyone who has studied the slavery and the slave-trade question. Besides this long argumentative answer, one question must be answered:—Is it right to do or sanction wrong that good may come?"

"A very long time has elapsed since I received your letter forwarding that dispatch [containing the request of the Secretary of State for the Chief Justice to state his views as to Dr. Eitel's representations], in June last; but the delay has been advantageous, as it has enabled me to obtain a memorandum on the subject by Mr. Francis, barrister here, and for a year Acting Puisne Judge ... I write on this subject from an experience in Hong Kong since early in 1861; Mr. Francis from a very extensive experience in both China proper and in this Colony since some years previously." He then enters into history to show that "Mr. Francis of necessity studied ... the whole law on the subject of slavery or bondage in every form here."

Mr. Francis first reviews all the legislative measures existent at Hong Kong concerning slavery, in the clearest manner possible, leaving no doubts in the mind of any fair-minded person that laws were not wanting to put down slavery:

First: Hong Kong, being a Crown Colony, "the power of the Sovereign in respect of legislation is absolute."

Second: The proclamation of Sir Charles Elliott, of tolerance of native customs was "pending Her Majesty's pleasure," and no longer.

Third: Her Majesty's pleasure was declared at Hong Kong: (a) By the Proclamation of 1845; (b) "By Ordinance 6 of 1845, 2 of 1846, and 12 of 1873, by the combined operation of which the law of England, common and statute, as it existed on the 5th day of April, 1843, became the law of Hong Kong."

Says Mr. Francis of Ordinance 6 of 1845, "The relations of husband and wife, parent and child, guardian and ward, master and servant, whatever they may have been when Hong Kong was Chinese, became from the date of that Ordinance what English law made them, and nothing more or less."

"But in addition to the declarations of the Common Law," declares Mr. Francis, the following are in full force at Hong Kong: "The Act of the 5th George IV. c. 113, the Act of the 3rd and 4th William IV. c. 73, and the Act 6th and 7th Victoria c. 98, which have in the widest terms abolished slavery throughout the British dominions." "These Acts declare it unlawful for anyone owing allegiance to the British Crown, whether within or without the dominions of the Crown, to hold or in any way deal in slaves, or to participate in any way in such dealing, or to do any act which would contribute in any way to enable others to hold or deal in slaves. This simple declaration, if it stood alone, would make every act of slaveholding a misdemeanour, but the Acts themselves make it piracy, felony, or misdemeanour, as the case may be, to do any of the acts declared to be unlawful. These Acts further declare that persons holden in servitude as pledges or pawns for debt shall, for the purpose of the Slave Trade Acts, be deemed and construed to be slaves, or persons intended to be dealt with as slaves. Hundreds of persons are held in such servitude as pledged or pawned in Hong

Kong, and not one of the parties to such transactions has ever been proceeded against under these Acts."

"In addition to the above-mentioned Acts of George, William and Victoria, there is also the Imperial Act, entitled The Slave Trade Act, 1873, which consolidates the laws for the suppression of the Slave Trade, and which is in force in Hong Kong by its own authority. We have also the provisions of the Local Ordinance 4 of 1865, sections 50 and 51, and 2 of 1875."

"Offenses against the provisions of these Ordinances, so far as they relate to women or children, are still very common, and are growing more numerous every day, and until the system of prostitution which prevails in this Colony, and the system of breeding up young girls from their infancy to supply the brothels of Hong Kong, Singapore, and San Francisco, *is declared to be slavery*, and is treated and punished as such in Hong Kong, no stop will ever be put to the kidnaping of women and the buying and selling of female children in Hong Kong. This buying and selling is only an effect of which the existing system of Chinese prostitution is the cause. Get rid of that, and there is an end of kidnaping."

Again the nail had been struck on the head. *Licensed brothel slavery*, as it exists at Hong Kong, was put forward by the Chinese merchants as something to be dealt with before British officials could consistently lay violent hands on the more trivial offenses of *domestic slavery and so-called "adoption."* *Brothel slavery*, says Mr. Francis, must be dealt with *as slavery* before the practice of *kidnaping* can be put under control. This lesson was learned long ago. What did all the laws against man-stealing and slave-trading ever accomplish so long as the slave owner was allowed to keep his slave? As soon as slave-holding was declared impossible in the United

States, there was no more trouble with slave-traders. Traders go to a market where they can dispose of their goods, not to a place where their kind of goods are a drug on the market.

Says Mr. Francis bluntly: "The Chinese custom of adoption, whether of boys for continuing the family and worship of ancestors, or of girls for the ordinary purposes of domestic service, is not the foundation of all this buying and selling of women and girls; it is only the pretext and excuse." Mr. Francis states that the buying and selling of boys is rare as compared with the buying and selling of girls. That there are few Chinese families in Hong Kong.

"The better class Chinese leave their wives in China. The transaction of purchase of these boys takes place at the home of the fathers of them in China. Seldom is it necessary to buy a son, as the usual custom when a wife has no son is to take another wife, not to buy a boy for a son,—hence such buying of boys is for servitude and for ransom, at Hong Kong." "Girls are not bought and sold in Hong Kong for domestic servitude under Chinese custom. They are bought and sold for the purpose of prostitution, here and elsewhere, and instead of being apprenticed to the domesticities, and of being brought up to be good wives and mothers, they are bought and sold,—brought up and trained for a life of prostitution, a life of the most abject and degrading slavery.... By the last census [this was written in 1880], there were in Hong Kong 24,387 Chinese women to 81,025 men. Of these 24,387 women the late Mr. May [Superintendent of Police] was of opinion that 20,000, or five-sixths, come under the denomination of prostitutes ... A Chinese doctor of large experience fixed the number of quasi-respectable women at one-fourth the whole number, or say 6,000, leaving 18,000 prostitutes. These opinions were taken and adopted by the

Commission of 1877-1879 ... Who and what are these prostitutes who form by far the greater bulk of the Chinese female population of Hong Kong? The Report of the Commission answers the question: 'The great majority of them are owned by professional brothel-keepers or traders in women in Canton or Macao; they have been brought up for the profession, and trained in various accomplishments suited to their life ... They frequently know neither father nor mother, except what they call a pocket-mother,—that is, the woman who bought them from others ... They are owned in Macao and Canton. They are bought as infants. They come to Hong Kong at 13 or 14, and are deflowered at a special price which goes to the owners. The owner gets the whole of their earnings, and even gets presents given to the girls, who are allowed three or four dollars a month pocket-money. When some of the girls are sent away on account of age, new ones are got from Canton. If these girls are not slaves in every sense of the word, there is no such thing as slavery in existence. If this buying and selling for the purpose of training female children up for this life is not slave-dealing, then never was such a thing as slave-dealing in this world. There are 18,000 to 20,000 prostitutes in Hong Kong to 4,000 or 5,000 respectable Chinese women.... Once in five years the stock has to be renewed. It is for this purpose, and not for the legitimate or quasi-legitimate purposes of Chinese adoption and Chinese family life, that children and women are kidnaped and bought and sold ... Until this slave-holding and slave-dealing are entirely suppressed, the grosser abuses arising out of it and incidental to it (kidnaping of women and children) can never be put an end to.'

It was on May 20th, 1880, that the Secretary of State asked for the first statement of Sir John Smale's views as to kidnaping and domestic slavery. His reply is dated August 26th, and in it he refers to reasons for his delay in

replying, of which the Governor is "well aware." His supplementary letter enclosing the Memorandum of slavery by Mr. Francis, was dated Nov. 24th, 1880. On April 2nd, 1881, he wrote a third time to the Colonial Secretary, from which we gather that even up to that time his explanations had not been forwarded to Lord Kimberley, Secretary of State. Said he:

"I had hoped that these letters would have been forwarded last year, in the belief that they might have induced a less unfavorable view by Lord Kimberley of my judicial action as to these matters, and with the more important object of presenting what appears to me to be the great gravity of the evils I have denounced, as they affect the moral status of the Colony, in order that some remedy may be applied to them.... I am informed that His Excellency the Governor has been unable to obtain the opinion of the Attorney-General on the points raised." ...

It is impossible not to feel that this neglect on the part of someone at Hong Kong to forward the Chief Justice's letters until the first of these was a year old (for they were actually sent in August, 1881), was a designed obstruction of his endeavors to set himself in the correct light, and to enlighten the Christian public of Great Britain as to the abuses existing at Hong Kong.

In this letter expressing regret at the delay of his letters, he speaks of convictions of eight more cases of kidnaping, and "almost unprecedented brutal assaults on bought children." "Considering the special waste of life in brothel life, and the general want of new importations to keep up the bondage class of 20,000 in this Colony, the cases of kidnaping detected cannot be one-half of one per cent of the children and women kidnaped."

"Two cases of brutal treatment of young girls by purchasers, their pocket-mothers, one little girl having had her leg broken by beating

her, and the other having been shockingly and indecently burnt,—both probably weakened for life,—illustrate the cruel passions which ownership in human beings engenders here, as it ever has done elsewhere. In a case now before the magistrate, the evidence tends to show that a girl thirteen years old was bought by a brothel-keeper for \$200, and forced, by beating and ill-treatment, into that course of life in a brothel licensed by law. Subject to such surveillance as these houses are by law, it seems to me such slavery is easy of suppression."

At this time the official career of Sir John Smale at Hong Kong terminated.

CHAPTER 13.

THE EXTENSION OF SLAVERY TO THE STRAITS SETTLEMENT.

We have traced the development of slavery from State-protected brothel slavery to State-tolerated domestic slavery and "adoption" of boys. Now we turn to Singapore, to find that all these forms of slavery exist there under the British flag, with the addition of a coolie-traffic dangerously like slavery, also, and they are all under the management of the Registrar General, or "Protector of the Chinese," as he is always called at the Straits. For the general description of conditions in the Straits Settlements, more especially at Singapore, we give in full a paper read by an Englishman, a resident of Singapore for many years, at the Annual Conference of American Methodist Missionaries, held in Singapore in 1894,—a paper which was endorsed by that body:

It has come to be almost universally acknowledged that Singapore is indebted as much to Chinese as to British enterprise for its present commercial prosperity, and therefore the subject of Chinese labour which is vexing America and Australia, assumes a very different aspect in the Straits Settlements, and the fact that Chinese immigration has increased 50 per cent in the last ten years is looked upon as an unmitigated blessing. The magnitude of the Singapore labour trade will be understood when it is known that the

number of Chinese who came to this port last year, either as genuine immigrants or for transshipment to other ports, was 122,029, which is actually more than the entire Chinese population of the town. In connection with the immigration of this multitude of men and women, speaking many dialects of a language which is wholly unknown to the officials of the British Government in the Straits, with the exception of perhaps half a dozen persons, it cannot be wondered at that many abuses arise, and the suspicion has gained ground and is frequently given expression to, in the public press and elsewhere, that many of the immigrants do not come to Singapore of their free will. Moreover, it cannot be denied that the circumstances under which the Chinese come to Singapore and are forwarded to their destination lend colour to this suspicion, so that it may fairly be inquired whether the efforts made by the Government of the Straits Settlements to control the Chinese coolie traffic and to prevent a secret form of slavery have been attended with any success, or are at all adequate to the requirements of the case.

The Annual Report for the year 1892 on the Chinese Protectorate in the Straits Settlements which is the department charged with the control of immigration, was published on the 5th of May, 1893, and states that of the 122,029 Chinese deck passengers who arrived in Singapore from China during the year, 111,164 were males, 6,867 women and 3,998 children. The circumstances under which the men and the women are brought to Singapore are in many respects the same, but inasmuch as a large number of the women and some of the children are imported for immoral purposes, this part of the subject will be dealt with separately. Turning then to the above mentioned Report, we find as regards male immigration, that out of the 111,164 who arrived in Singapore 23,647 proceeded direct to Penang, and 1,798 to Malacca, Bangkok and Mauritius, leaving

85,719 remaining in Singapore, of whom 76,601 are classed as 'paid passengers,' and 9,118 as "unpaid passengers received into depots." With the former class the Chinese Protectorate has nothing more to do, unless they come to the Protector to sign a Government labour contract with planters or other employers of labor, but with the 'unpaid passengers' the case is very different. These men are brought to the Straits to the number of about 15,000 a year, under what is spoken of in the Report as "the much objurgated depot and broker system," and the facts as presented below will speak for themselves as to whether the objurgations are warranted or not. The brokers are all China men, and are admitted to be men of the worst character. They have their assistants or partners in the chief ports of China, who scout the country round in search of men and are known to be not very particular as to the means they employ in obtaining them. Nothing is required of the recruit except a willingness to hand himself over with his scanty outfit to the tender mercies of the broker, who pays his passage and provides him with food and such things as he considers needful. While the vessels, however, with their decks crowded with emigrants, are leaving the Chinese ports, it is a common occurrence for the cry of "man overboard" to be raised, so common indeed that few Captains now take the trouble to stop their ships, leaving the fugitive coolie to his fate or to be picked up by one of the native craft which are usually close at hand. The readiness of the Chinese emigrant thus to risk his life for the purpose of regaining his freedom, is explained by the advocates of the depot and broker system as arising from a desire on his part to outwit the broker and perhaps obtain another bonus by offering himself a second time as a candidate for the honour of a free passage, but it seems quite as likely that nothing less than kidnaping or forcible detention would induce men to run so great a risk. On

arrival at Singapore the broker is again on the *qui vive* to see that his captives do not jump into the sea, and as each coolie ship arrives at the wharf, a small force of police is in waiting to keep a space clear and prevent any attempt at escape, while the officers of the Protectorate board the ship, accompanied by a further force of marine police, for the purpose of inspecting the coolies. When permission is given to disembark, the unpaid passengers are made up into small parties and marched through the town to the depots under the escort of the brokers and several of their assistants, with much yelling and good deal of rough handling, and an occasional halt while a straggler or a would be runaway is brought back to the party. That the coolies are frequently successful in their attempts to escape is shown in the Report of the Chinese Protectorate, 160 being returned as 'absconded either when landing or at depot' in Singapore, and 101 at Penang, or about 1-3/4 per cent of the "unpaid passengers". On arrival at the depot, the coolies are probably surprised to find themselves securely confined in houses which look uncomfortably like prisons, and the passer-by may see the dirty and unkempt *sin-khehs* or "new men," as these emigrants are called, peering out between the thick wooden bars of the windows. The coolies are thus forcibly detained at the depots until the brokers are successful in finding employers who are prepared to pay the price per head which they demand, a sum of about £10. In the meanwhile however, it appears from the Report that nearly 4-1/2 per cent of the inmates of the depots are discovered and redeemed by their friends, the numbers being 414 at Singapore, and 278 at Penang, and a further 1-3/4 per cent, or 236 at Singapore, and 55 at Penang, are shown under the headings "released and returned to China," having presumably been discovered to have been kidnaped. Of the total number of "unpaid passengers" arriving at Singapore and Penang,

about 91 per cent eventually sign contracts and are made over to their employers or their agents, the majority of these being shipped off, under escort as before to the Native States of the Malay Peninsula or other neighboring countries, to labour for a fixed term of years after which the coolie is free to return to his native land or to seek such other employment as he may see fit.

Such are the circumstances under which thousands of our fellow beings are annually brought to the labour market at Singapore, and it must be admitted that, to say the least of it, the system does not seem worthy of Western nineteenth century civilization. At the same time the extreme difficulty of controlling the 'depot and broker system,' or even of providing an efficient substitute for it, must be freely admitted. The system of Government contracts and inspection of immigrants has already done something toward ameliorating the condition of the coolie, and guarding him against illegal detention after his arrival at Singapore or Penang. Much more, however, remains to be done before the coolie trade will cease to be a reproach to the Straits Settlements, and it is doubtful whether any satisfactory reforms will be accomplished until the Chinese Government is moved in the matter with a view to checking the evil at the fountain head. Failing this, it would be worth considering whether the system of "unpaid passengers" might not advantageously be abolished, especially as this class of immigrant represents only 11 per cent of the total immigration, and more than one-third of the labor contracts last year were voluntarily signed by "paid passengers." It seems probable that if the "unpaid passenger" system were abolished, and the market thus thrown open to free competition, a much larger number of "paid passengers" would offer for contracts. But, even if this plan should appear to involve too great a risk of diminishing the flow of Chinese coolies to Singapore,

it surely would not too severely tax the ingenuity of the Straits Government to devise a system of State-aided immigration, closely resembling that which has for many years been working in Canada, and more in accord with the dictates of ordinary humanity and English ideas of the liberty of the subject.

Among the Chinese at Singapore the women number less than one-fifth of the population, and at Penang the proportion between males and females is practically the same. In the immigration returns the disparity is even more marked, for there is only one female immigrant to every eighteen men. This extraordinary preponderance of males in the Chinese population of these towns has given rise to, and is made the standing excuse for, a wholesale system of prostitution to which it would be difficult to find a parallel. Government registration and protection have favored the growth of this diabolical plague spot, for, strange to say, this gigantic system of debauchery is under the direction of the department which is euphemistically entitled "The Chinese Protectorate," the "Protector of Chinese" at Singapore being also the Inspector of over 200 brothels, and the Registrar of about 1,800 prostitutes. Many streets of well built three-story houses, chiefly in one particular quarter of the town, are devoted to this nefarious traffic, and are thronged every night with Chinamen who loaf about and gaze into the front rooms and verandahs of the brothels, for these front rooms open on the street and there the women and girls are assembled in their best attire for the inspection of the passers-by. Anything more ostentatiously and revoltingly public could hardly have been devised, and it is painful to reflect that the whole arrangement is the product of Western civilization, such scenes being utterly unknown in China except in the treaty ports, where public prostitution has also been introduced by Europeans.

Taking Singapore as a sample of the working of this system of regulated vice in the Straits Settlements, we will now proceed to inquire into the means by which this army of prostitutes is recruited. Out of the total of 1,800 prostitutes in Singapore the Chinese women number on the average 1,600, and last year (1892) no less than 621 women entered brothels from China and Hong Kong, in spite of which the number of inmates fell from 1,657 in January to 1,601 in December, so that it may fairly be inferred that more than 650 women are required annually to fill up the vacancies which occur. In order to explain the manner in which this large number of girls and young women are obtained each year, it must be stated that all the affairs connected with the inmates of houses of ill-fame in the Straits Settlements are in the hands of the brothel-keepers. These persons in Penang have formed a "Brothel-keepers' Guild," which appears in the Report of the Chinese Protectorate as one of the registered societies of that town and boasts of 297 members. The brothel-keepers of Singapore are probably banded together in the same way, and in proportion to the number of brothels should be more than twice as numerous as those in Penang. These brothel-keepers have their confederates in China, who search for girls and young women in the same way that the coolie-brokers search for the men, and these unfortunate young persons are brought to Singapore in batches under escort in the same way as the men, but are taken from the ships in closed carriages instead of being driven through the town like sheep, as the men are. All these young women and girls, who are brought to Singapore for immoral purposes, with the full knowledge and consent of the Government, are taken direct from the ships to the office of the Protector of Chinese, to be questioned as to their willingness to lead a life of shame; but the value of this interrogation may be inferred from the fact that the

subordinate officer to whom this duty is generally assigned is not acquainted with the language spoken by the women. As a further precaution against the illegal detention of women and girls in brothels, a Government notice is posted in each of these houses, to the effect that the inmates are perfectly at liberty to leave whenever they like, but this is of little use, as hardly any of them can read, and it would be more to the purpose if the Government ordered the removal of the bars from the doors and windows of the brothels. The fact is that these precautions against illegal detention are practically useless, and this is admitted even by the editor of such a paper as the *Hong Kong Daily Press*, who some time ago discussed the question *apropos* of the suicide of a Hong Kong prostitute who was desirous of being married. The man who wished to marry her offered the pocket-mother a sum of \$2,000, but she demanded \$2,300 and refused to part with the woman for less; whereupon she hung herself. The following comments on this case are from the *Hong Kong Daily Press*:

"It would appear on the face of it that the efforts of the Government are absolutely impotent, the notices so much waste paper, and the 'rights of liberty' mere empty phrases of no meaning or significance to the Chinese mind ... A Chinawoman would never dream of effecting her escape for the purpose of evading the blood money. Of course such transactions are absolutely illegal, there is no tittle of reason why the man should pay a cent for the girl, but it is nevertheless an indubitable fact that the custom is widely prevalent, and that Hong Kong is a market for the buying and selling of women which the Government is powerless to touch. Exeter Hall in possession of these facts would indeed have a theme for pious lucubrations."

Commenting upon the same case the *Singapore Free Press* says:

"A recent investigation into a case of suicide in Hong Kong brings into strong prominence what is really a system of slavery of the worst kind, and which is not unknown in Singapore."

Such testimony is valuable from papers which have consistently supported the Contagious Diseases Ordinances and vilified the opponents of the State regulation of vice. There can be little doubt that a large proportion of the girls and young women who are brought to the Straits Settlements for immoral purposes have been sold in China to the brothel-keepers' confederates. In many cases girls are thus sold by their parents for the payment of gambling and other debts, and sometimes, alas, to provide money for the purchase of opium. Surely it is a burning shame that British Colonies should have become the market for the sale of Chinese women into this diabolical form of slavery.

This article cannot be closed without a brief reference to another and more subtle form of slavery which is well known to exist in the Straits. The last Report of the Chinese Protectorate reveals the fact that during last year (1892) in Singapore alone 426 prostitutes left brothels and went into private houses, and in the same period 148 left private houses and entered brothels. The wealthy Chinese in the Straits Settlements keep up very large establishments, and the uninitiated visitor cannot fail to be surprised at the number of young women in the quarter assigned to the servants. They are employed on house work, and keep the magnificent furniture and wardrobes in splendid order, and in many cases they make cakes and sweetmeats which are sold on the streets by their own offspring. The question naturally arises,—Are these women and girls free agents? It is very

difficult to say with certainty whether they are free or not, but it is generally admitted that a subtle form of domestic slavery does exist in the Straits, and that boys as well as girls are bought and sold with impunity.

This account in no way exaggerates conditions, as official documents plainly show. We will confine our thoughts, however, to the women. In a plea for the continuance of the Contagious Diseases Ordinance at Singapore, Mr. Pickering, "Protector," describes two classes of prostitutes, a proportion of free women "who come down here to gain a livelihood, and girls purchased when very young.... These are absolutely the property of their owners, chiefly women whom the girl calls 'mother,' and whom they regard as such.... The mistress brings her girls down to the Straits, and either sells them, or takes them from place to place, lodging them in licensed brothels where she resides, nominally a servant, but receiving the earnings of her girls, and paying a commission to the licensed keeper. In case of sale, the so-called 'mother' receives the price paid for her 'daughter,' and the 'daughter' signs a promissory note for the amount, with heavy interest; the former owner returns to China, and the victim is bound to serve the Straits mistress; at the same time, the girl is comparatively (!) fortunate in that, coming here under the protection we can give through the Contagious Diseases Ordinances, she has some chance of becoming a free woman."

Now listen, reader, to the wonderful chances of becoming a free woman under the British flag, this "Protector" holds out to the slave girls who are placed in his officially managed brothels:

"The girls with their promissory notes are passed from hand to hand in sale, or as pledges for loans; and in one brothel I found two girls, who had,

on arrival in Singapore from China some six years previous, signed a note for \$300 each, of which every cent had been received and taken back to China by the person who had disposed of them. During the six years they had been the property of two or three successive owners, and when I found them in Penang they were still being detained with the original promissory note hanging over them, though the sum had been paid over and over again. On my insisting on accounts being produced by the brothel-keeper, I discovered that for three years the girls had been earning from 20 to 30 dollars each per month, all of which went to the master, who was surprised when the girls were released and himself threatened with the law." (!)

From this we discover that Mr. Pickering intends that we shall think that the reason why he has a salary from the British Government, is, among other things, to see that slave girls only need to redeem themselves by hard earned money through unspeakable humiliation from one, or two, or more owners, and then there is an end to the patience of the "Protector" with the slave-trader, who will be surprised to find himself "threatened"—not punished—with the law! But Cecil C. Smith, formerly Protector of Chinese (Registrar General) at Hong Kong, was knighted and made Governor at Singapore, and about a year later than this, says, in reference to this very representation: "The Protector of Chinese has no efficient means of dealing with the accounts of the inmates of brothels, nor has he ever dealt with them. The Government should hold itself entirely aloof from interfering with such matters." We see, then, of how much account the representations of Mr. Pickering were as to the usefulness of the "Protector" to the women at this point, but incidentally he has revealed a shocking state of slavery perfectly known and not in the least interfered with by the "Protector."

Mr. Pickering continues: "At that time the majority of inmates of brothels were in the same condition; besides this, they were subject to great cruelty and restraint." He professes a great improvement, since then, but we may

take his word for what it is worth on such a point. "We, indeed ... have asked for, and trust to get, more legislation to enable us to rescue the numbers of small children who, purchased in China, are brought down here and trained for a life of prostitution." Nothing of the sort. He knew perfectly well, as did every Englishman in the Colony, that the Common Law alone of Great Britain, if there were nothing more, was quite sufficient to deliver every one of these children, as well as every slave girl, in the country. If more legislation were desired it was for some other purpose than to empty the brothels of their slaves. He goes on to state that children born in brothels "in case of free women belong to the mother, but when prostitutes, their issue is claimed by their owners, unless their mothers complain to the Registrar," which of course, he knew, they would never venture to do. "We know well that even now there is a deal of traffic in young girls going on, and that a number of inmates of brothels are really slaves.... The only Europeans I have heard object to the Contagious Diseases Ordinance are those who, in their well-meant zeal, would abolish prostitution, and punish all parties engaged as criminals." Precisely! Sir John Smale at Hong Kong had undertaken to "punish all parties engaged" in this nefarious slave business, and his methods were declared unwise and unpractical, simply because his methods endangered prostitution in the form of brothel-slavery. Says Mr. Pickering in conclusion:

"I myself profess to be a Christian, and endeavor according to my light, and as far as my nature will allow, to conform my conduct to the standards of my religion; while holding these principles, I certainly feel that I should not be acting in accordance with the wishes of my Master, were I not to advocate most strongly that healing should be extended to the poor, the helpless, and afflicted, whether they be harlots or any other kind of sinners, who; unless the Government assist them by forced examinations, will suffer and often die in misery from the want of medical assistance." Perhaps the most charitable view to take of this creature is that suggested by himself.

He was a Christian, he claims, "as far as my nature will allow." Had his nature only allowed him to see further, he would have perceived a distance as wide as heaven is from hell between the conduct of the Divine Master who "went about healing all that were oppressed," and the man who prostitutes the healing art to the service of libertines, in making it healthier, if possible, for them to defy the commandments of that same Divine Master. Such doctors are the offscouring of the medical profession.

A Chinaman one day entered Mr. Pickering's office at the Protectorate in Singapore, accused him of selling his brother into slavery, and tried to brain him with an axe. The blow was not fatal, but the "Protector," if living, is still in a mad house.

The attitude of the average official mind in this part of the world, among the British, as betrayed by innumerable expressions in their own documents, is perhaps most precisely put by Mr. Swettenham. British Resident at Perak. Speaking of measures adopted to make vice more healthy, he says: "As to the Chinese, the only question in the minds of members (of the Council) was whether such an Order would not drive the women from the state," and then he declares the measures were introduced cautiously and gradually ... "The steps already taken have been with the object of protecting Chinese women from ill treatment and oppression in a state of life ... where the labour required is compulsory prostitution for the benefit of unscrupulous masters ... and secondly, in the interest of public order and decency ..." "always remembering that where the males so enormously outnumber the females, the prostitute is a necessary evil," "I have avoided any reference to the moral question," continues Mr. Swettenham, "Morality is dependent on the influence of climate, religious belief, education, and the feeling of society. All these conditions differ in different parts of the world."

CHAPTER 14.

PROTECTIVE ORDINANCES.

After eighteen years' hard struggle, the British Abolitionists succeeded in getting Parliament to repeal the Contagious Diseases Acts in force in certain military stations in England, and in force in other parts of the British Empire. It now became the duty of the Secretary of State for the Colonies to see that all the Crown Colonies, such as Hong Kong and Singapore followed suit. This was in 1886, and the Contagious Diseases Ordinances for these two places were not replaced by other legislation until 1888 at Singapore, and 1890 at Hong Kong. From what we have seen of the spirit of these officials in general it seems needless to say that the old Contagious Diseases Ordinances were repealed amid a storm of protests. One of the Municipal Commissioners of Singapore "said that the repeal of the Contagious Diseases Ordinance was the most cruel and merciless act which had ever been done." A statement from the unofficial members of the Legislative Council at Hong Kong declared: "In England abuses might have arisen under the recent law, but here it is impossible," and very much more of the same false nature. The new Ordinances are excellent reading, and in the hands of the right sort of officials would do incalculable good. *But laws were not needed in the Colonies to put down slavery.* Mr. Francis' Memorandum, and Sir John Smale's pronouncements have clearly demonstrated that fact, but the right sort of men were needed to enforce the

laws already in existence, in the same disinterested manner in which Sir John Smale had wrought so effectually. The new law was, however, put in each case under the administration of the "Protector" and his staff of officials, and the result has been, and could but be unsatisfactory, to the present day.

For instance, in 1893, Mr. H.E. Wodehouse, Police Magistrate at Hong Kong, in reporting on a case of suicide of a slave girl to the Colonial Secretary at Hong Kong, to be transmitted for the information of Lord Ripon, Secretary of State for the Colonies, who had asked for the information, goes quite fully into a description of conditions at this time, three years after the passage of the Protective Ordinance. He says:

"The name of the deceased was Chan Ngan-Kin.... She was registered as a prostitute in this brothel on the 23rd of December, 1890. When registering her name she said she had no pocket-mother, that her parents were both dead, and that she became a prostitute of her own free will. The inspector said that that was the description of themselves that nearly all prostitutes give, and that it was very rarely that it was true. The further evidence went to prove that she and a young man were mutually attached to each other, and he was anxious to redeem her, and that she was desirous of being redeemed, but that the price asked, two thousand three hundred dollars, was more than he was willing to give, though he was willing to give two thousand dollars.... There is little doubt that his inability to redeem her caused her to commit suicide.... The pocket-mother was not produced [at the inquest], and there was a general disposition on the part of the Chinese witnesses to withhold information."

Lord Ripon said in his letter of inquiry: "If the facts were as stated in the above-mentioned paper, it would seem to prove that it is not generally understood in the Colony that a brothel keeper has no legal right to demand any redemption money for the release of one of the inmates." To this the Magistrate replies, in explanation:

"It is not quite correct to speak of the brothel-keeper as demanding redemption money. The person whose property the prostitute is is the pocket-mother, that is to say, the purchaser of the girl. Nearly every prostitute has her own pocket-mother, and she it is who has sole control over the prostitute's movements. All the earnings go to her, and the redemption money when redemption takes place. The 'brothel-keeper' is a creation of the Government, and the term has, I think, led to some misappreciation of the actual state of things. It is true that, being registered by the Government, she becomes in a manner responsible for the proper conduct of the establishment, but the property in the girl does not rest in her, except in the case of the two or three girls to whom she may herself be pocket-mother, that is to say, whom she may herself have purchased. The pocket-mothers are the real proprietresses of their purchases, and a brothel-keeper would not regard herself as in any way connected with such girls, beyond the obligation devolving upon her of registering the inmates of the house of which she, as tenant or owner, was the proprietress. A Chinese brothel is in fact merely a collection under one roof of several different establishments, consisting of the pocket-mothers and their purchases, the pocket-mothers for the most part being the body-servants of their charges, and administering to their daily wants, though in reality their mistresses and their absolute owners."

The document scarcely needs comment. It illustrates the fact that one may have most ideal laws, but laws never operate automatically, and in the absence of any desire to "let the oppressed go free," but rather an eager desire to hold them in subjection to the base propensities of profligate men, as all the State documents representing the situation tend to show, there is small proof that the "Women and Girls' Protective Ordinance of 1889" has had any appreciable effect in altering the slave conditions at Hong Kong. The same old notorious inspector, John Lee, who, Governor Hennessy thought, ought to have been prosecuted for manslaughter, after he hounded those native women to their death, was Chief Inspector of Brothels at Hong Kong in 1894, when we made investigations in that Colony, and personally interviewed many of these slave girls, and heard their stories.

The most recent official documents relating to the matter have been commented upon in *The Shield* (organ of the British Committee of the International Purity Federation), in its issue dated London, June, 1906, as follows:

"One of the most important parliamentary papers of recent years on our question has just been issued in response to questions put in the House of Commons by Mr. Henry J. Wilson, M.P., on March 8th last. The title is, 'Further Correspondence relating to Measures Adopted for Checking the Spread of Venereal Disease' (Cd. 2903), and relates to enactments in the Straits Settlements, Hong Kong, and Gibraltar, during the period in which the Rt. Hon. Joseph Chamberlain was at the head of the Colonial office.

"The correspondence in question further reveals the existence and extent of a 'Yellow Slave Trade' in the East of large dimensions. The girls in question are stated to be 'bought when young,' and 'believe themselves bound body and soul to the brothel-keepers.' Nine

hundred and sixty-eight Chinese women, presumably of this kind, are reported at Penang, and 62 Japanese women. There were 176 admissions of Japanese women, and 141 admissions of Chinese women in 1899 to the public hospital at Singapore, besides numbers of other cases to private hospitals maintained by the keepers of the houses of ill-fame.

"Many passages in the correspondence give evidence of a continual import traffic going on, which the head of the Regulation Department, the 'Protector of Chinese,' at Singapore, seems to have made some effort to counteract. He speaks of ten girls between 9 and 15 that he attempted to rescue from sale to a traveling dealer, but who were returned to their former surroundings on a writ of *habeas corpus* by the Supreme Court; but upon information in regard to this case reaching the Colonial office in London, correspondence ensued which resulted in Mr. Chamberlain directing an alteration of the law to meet the case of the prosecution which had so lamentably failed.

"The Protector of Chinese also tells of 'girls under ten years of age who are bought and sold in the colony,' 'brought from China for purposes of sale,' 'generally sold to inmates of brothels,' and of women who are 'in the habit of arriving from China with relays of babies' for the same purpose. The Straits Settlements Government thus attempts to cut off a twig here and there of the tree of this evil traffic, whilst leaving untouched the root and trunk of the tree itself, the State protection of vice, by which it is made practicable safely to invest large capital in this most nefarious but lucrative traffic.

"Page 4 of this Correspondence shows that an ordinance was passed in 1899, imposing very heavy fines and imprisonment on any

keeper of a brothel who allowed any of the inmates suffering from contagious disease to remain in the house. This has led to a system of private arrangements with medical men for the periodical sanitary inspection and treatment of the inmates.

"At page 19 the Acting Colonial Surgeon says: 'A large number of Japanese houses had some time before made private arrangements with my partner, Dr. Mugliston and myself, for medical attendance, and the rumor regarding the intended legislation induced most of the remainder to follow their example during the month of September. The increase of Japanese inmates (of the hospital) for this month, therefore, was caused by our sending in those cases of disease then found among these fresh houses.' Paragraph 4, the same page, says: 'With regard to the Chinese women we already had long had a number of Chinese brothels to attend professionally; during September of 1899 a large proportion of the remainder made similar arrangements with us.'

"It is difficult to say positively what the precise nature of these transactions is, but it is only too evident that the acting Colonial surgeon, with his professional partner, was most improperly mixed up with the business arrangements of the brothel-keepers. These people, indeed, figure so that they must have constituted a very good, and perhaps the most lucrative portion of the practice of these doctors.

"To cope with the extra business brought in by these arrangements, section 2 of paragraph 4, page 19, says: 'In September, 1899, four private lock hospitals were organized, one in each of the four main sections of brothels, by the keepers under our direction.' Paragraph 6 says: 'We make frequent periodic inspections

of the Chinese brothels, seeing each inmate, and visit our private hospitals daily.' Here, again, it may be asked what are the precise relations of the acting Colonial surgeon to 'our private hospitals?' It is satisfactory to know that inquiries are being made by our Parliamentary friends in regard to this peculiar, if not suspicious, circumstance.

"Mr. Chamberlain, with all the foregoing facts before his eyes, says on page 21: 'I am glad to find that the Protector of Chinese and the acting Colonial surgeon have, so far, been able to give such a satisfactory report of the working of the ordinance.'

"At Hong Kong, 'the keepers of Chinese and Japanese brothels frequented by Europeans have retained private practitioners as their medical advisers, and a small private lock-hospital has been instituted for Japanese women.' This followed on 33 prosecutions instituted by the police in respect of 89 complaints made by soldiers and sailors of the British forces. Page 35 and elsewhere show that prosecutions have taken place of 'sly brothels,' competing with the 'regular professed brothels.'

"It is to be hoped that this Blue-book will, with facts now being published in various parts of Europe and in America, draw attention to the necessity of a new movement (supplementary to the great movement now on foot for the suppression of the 'White Slave Trade'), for the suppression of the 'Yellow Slave Trade,' which is becoming almost world-wide in character."

As the supply of girls both in Singapore and Hong Kong comes very largely from Canton, let us first describe the conditions we found there. Our Journal of February 14th, 1894, reads as follows:

"We went in company with a missionary and a native, both of whom could talk both English and Chinese, and visited some 'flower-boats' on the river. Many of these boats are quite pretentious, with their rich wood-carving, fine furniture, and gaudy display of tinsel. There were whole streets of them,—floating houses moored together; we walked along the length of the street on one side, stepping from the bow of one boat to the next, the bows of the boats constituting front verandahs. We called at almost every place, but a description of one will do for all. First, as we entered, was a couch for opium smoking; just beyond this a reception room, very gaudy, with dozens of hanging lamps, and at one end a shrine for the gods, and offerings before it. In a room back of the reception room, and also upstairs, there were girls in large numbers. A hard-featured old woman came forward from the back room, who, our interpreter said, was as good a specimen as we could possibly have seen of an old brothel-keeper of Canton, one who had been in the business for many years of buying or otherwise obtaining babies and girls, and training them for prostitution. The girls came crowding to the door of the back room, and looked in upon us with eager curiosity. Our interpreter called our attention to the manner of dressing the hair,—like married women,—as indicating their bad life. The interpreter said they were inducted usually at about thirteen years of age. They were all dressed very showily, and heavily powdered and painted, excepting some mere babies who were plainly dressed. Troops of little girls, from four to five years of age, swarmed out of the neighboring 'flower-boats' and gathered around us, screaming and scrambling, falling, laughing, and following us the full length of the street, which was made up of about twenty such boats on either side. And none of these innocent little things at all realized the fate in store for them. In one place we saw two very old women in the front

room. In another, a woman knelt before the idolatrous shrine engaged in her devotions. At one point there was a very large boat brilliantly fitted up for music, dancing, smoking opium, and feasting. At the far end of the street was a 'kitchen-boat,' from which supplies of food, ready cooked, could be bought. All the way along we saw little girls with the unmistakable signs of their destiny upon them. Our interpreter said the girls were usually made to stay upstairs during the day time, but at night the whole place was illuminated and alive; then they were brought down and to the front. Occasionally we would see one of these huge house boats full of painted girls, floating down the middle of the stream, for they move about from place to place at will.

"At Canton, February 18th, 1894, we met and conversed with a missionary lady who had just come from a station in the interior. She had travelled from her station on a Chinese boat, which had been chartered by her adopted son for his use going up, and for hers coming down the river. When she was about to embark, she required that the men should search the boat, and down below, in the very bottom, were a lot of little girls—*child slaves*—being smuggled to Canton for the trade of a vile life. She made the men take the children off the boat, but with great difficulty. They resisted, but she stood courageously, and saw her commands executed. After she had accomplished this, and started down the river, all alone, so far as any English-speaking person was concerned, the men, who were still deeply enraged at being defeated in their plans, greatly annoyed her by intruding on her constantly, and finally they threatened to kill her; but she presented as brave a front as possible, and at last took hold of one man who was especially insolent, by the shoulder, in an authoritative manner, bidding him to go out of her presence. He went away cowed, and they all said, as was reported to her by one

of her attendants, 'She is not afraid'; they then became very superstitious at the idea of a woman taking hold of them, and troubled her no more.

"The five or six Christian friends where we were staying in Canton all agreed that it was the most common occurrence for little girls to be bought and sold for immoral purposes. One of the group has often heard the wretched blind girls singing just under her window, on the river bank, and under conduct of the old brothel-keeper, their owner, thus attracting custom. The proportion of blind people in Oriental countries is much greater, owing to the prevalence of eye diseases and the poverty and ignorance of the people in coping with these, than in the West; and as blind girls do not bring much money when disposed of as wives, so they are sold in large numbers into a life of shame. Poor little slaves! Because they are deprived of the natural light of day, so they are destined never to see a ray of moral light enter their miserable existence! We saw three or four little blind girls who had been rescued, by these Christian workers, from their terrible fate; but these are only a few rare exceptions out of the thousands that are borne on into the tide of shame and anguish continually."

Of the many girls we interviewed at Hong Kong the story of the following seems typical of her class, so we extract it from our journal:

"At the first place we called there were six inmates—four of whom were present at the interview. The keeper went out of the room as we entered, and did not return. The girls were very friendly, and one of them talked a little English. This one told us that she came from Canton, and, in broken English, said that she had 'no father, no mother, no brother; a poor man took her when a very little

child and raised her to sell. By and by a woman came and offered to buy poor man's little girl, and as he had but little food, he asks, 'How much?' then she buys the little girl and brings her to Hong Kong. Then woman take her to Englishman and say, 'She first-class girl,' and he say, 'I make her my wife,' but he not good; he no husband; he go away to his house—England.' Thus she described in a few simple words the tragedy of her life with tears in her eyes; her training for vice; her sale; her hopes of marriage; her desertion; the outcome, her consignment to a Government-licensed brothel. She was but one of the tens of thousands at Hong Kong. We asked, 'How would a girl have to do in order to live in this house?' They said, 'She must be registered at the Lock. Hospital, and would have to go to the Court and Mr. Lockhart (the Registrar-General) would ask her questions; whether she had a father and mother; how old she was; *where the money went to that was paid for her*; and whether she wanted to be a prostitute or not.' We asked, 'If a girl should say that she *did not* want to be a prostitute what would be done?' They answered, 'No girl would *dare* to say this *when she had been bought*.' We asked the girl who talked English over again about this, and she said the same.

"All the places of infamy reserved for the use of Europeans which we visited in Hong Kong, were within three minutes' walk of Victoria Hotel, in the very busiest part of the city. Close by our hotel were such world-famed shops as 'Watson and Co.,' 'Kelly and Walsh,' etc.; a short distance down the street were the Postoffice and the Supreme Court buildings. The respectable English residents of Hong Kong cannot go about the streets of the city without seeing these places; there are draper-shops and other places visited daily and hourly by respectable foreigners and natives, occupying the ground floor of these brothels. The fine new building of the Girls'

High School, under the management of the Government, is within five minutes' walk; yet all these brothels are glaringly numbered, as registered by the city, in huge figures eight or ten inches high, of red on a white background, painted on the doors of the stairways leading to the second story of the buildings occupied by these shops. The school children cannot pass by without noting these officially numbered houses, and seeing the girls sitting at all hours of the day and into the night conspicuously in the balconies over the shops of drapers, grocers, tailors, silk-merchants, shoe-dealers, &c., &c., and often hearing them calling to each other from house to house, and to the men in the public streets below. Mrs. Andrew, when in the street, March 2nd, saw a group of these slave-women calling down to three policemen, who were looking up and laughing at them. These are daily sights."

The unblushing parade of forms of vice, which have been manufactured in the Orient especially to meet the demands of renegade members of Christian civilization, can be seen in a peculiarly painful and brazen form in the city of Hong Kong.

While we were at Hong Kong, there occurred a great celebration in honor of the repair and rededication of an important Buddhist temple. There was a grand procession, and many thousands of Chinese from the mainland came over to witness the celebration. The parade formed in the early morning and went at once to the residence of the Governor to do him honor, after which it marched through the principal streets of the city. It was a curious, interesting, and withal a painful sight, in some regards not unlike industrial parades in our own country. At night we saw something totally unique and difficult to describe to those who have not witnessed the same in China. Men bore aloft great dragons and fishes innumerable, of all sizes and shapes, (but very true to life), given a natural color and lighted up within,

like Chinese lanterns. These were held aloft on the ends of long poles, and as the men who carried them were invisible, because of the darkness, and trod noiselessly because of bare, or merely sandaled feet, the impression was of an immense train of these creatures floating or swimming silently through the air.

The procession was made up of men of all sorts and kinds. Great fat men with enormous fans panted along, and little boys ran by their side with stools upon which they gravely seated themselves whenever the line of march was halted for a moment. Little boys progressed painfully along with the rest, walking on their hands, with their feet thrown up into the air, or spinning along on all fours like wheels, or going through various other antics. And, contrary to anything that could have happened away from the open ports of China, there were many women in the parade, and girls too. They were on horseback, in sedan chairs, borne on wheeled platforms, like our "Goddess of Liberty" representations on the Fourth of July; walking, and sometimes riding on bullocks. We counted 150 women in all. These were dressed and painted up in such a style that a single glance showed they belonged to the disreputable class, and their old "pocket-mothers," were to be seen walking along close to them and keeping a sharp lookout over their gaudily dressed slaves. Yet more painful was the sight of the little girls, bound to heavy wires and placed in all manner of contortions. Here was a girl about sixteen, standing cross-legged on a moving platform, holding a spear in each hand, the spears crossed in front of her breast, and a little girl dangling from each spear-point. So it appeared, but in fact all were well wired into the distressing shape they occupied, and it was said that none of them could have endured the position for a moment but for plentiful doses of opium. Next passed a girl standing on the moving platform, holding a spear at arm's length, and a three-year-old girl standing on its point. Then a little boy holding a long rod from which was suspended a tiny child. A girl passed sitting on a stool and holding a sword by its point with a child of

four suspended from its handle, and next a girl holding a sword by its handle, and the child suspended from its point. One girl sat playing a flute held up high in the air, and a girl of six appeared to be suspended from it. One poor little thing was borne high up in the air, astride a turning-pole, with legs well crossed beneath the pole. And then there came along a little girl swaying about on the end of a long pole carried by men in the procession. We were on the second floor of a great verandah of the hotel, and the child swung so close to us, that we started forward toward her with a cry of pity. Great tears were rolling down her cheeks, and she seemed to look straight into our eyes, and attempted a sickly smile at our expressions of pity.

Later, after the procession of fishes, we sat in company with two Chinese ministers of the Gospel who came to call upon us, and discussed in sadness the scenes of the day. They said, if we had understood the native language and joined in the procession, as they did at times, we would have heard the old "pocket-mothers" and other owners of these girls driving bargains for their sale, temporarily or permanently, with the men of the crowds. These native Christians marvelled that Englishmen and American men who called themselves "Christians" could have joined in these festivities in honor of a heathen temple, and that the Governor should have made a speech of congratulation, with no rebuke of these scenes of inhuman torture of women and child slaves, when the procession paused at his door. These parades continued two or three days, always accompanied by the great paper dragons, whether in the daytime or at night, by the noise of deafening tom-toms, and the sickening sight of tortured slave-girls.

CHAPTER 15.

"PROTECTION" AT SINGAPORE.

"Ladies, I wish to introduce to you Mr. —— He is eager to meet you, and I am sure you will be glad to meet him. You are working along much the same lines. Mr. —— I assure you, is, in fact, interested in every good thing that is done in this City, and in every good thing that comes this way. We all count on his sympathies. I am glad to have the privilege of bringing you together." With this our friend of many years, the good Doctor, withdrew to speak to another group, and we entered into a short conversation with the white-headed old man to whom we had been introduced. He was profuse in his expressions of sympathy for our purity work, but somehow, we could hardly have defined why, we were not interested in him, and soon turned away. The occasion that gave the opportunity for his introduction, was a missionary conference at Singapore. The man in question had explained to us that he was not of the same denomination as the church that had called together the reception of that evening, but that he seldom failed to attend all such gatherings, no matter of what denomination, because of his interest in every part of the "Father's Kingdom".

Although we were very weary, and the air was intensely close, Singapore being only about seventy-five miles from the Equator, we spent most of that night and of several others in company with a Christian friend and

interpreter, in the worst parts of the city; and this, with visits to various regions during the day, gave us a pretty clear understanding of the situation as to the matter of enforcement or non-enforcement of the Protective Ordinance.

"On the night of February 1st, 1894, we went to Tringanu street, and ascended to the third story of a large building. The front windows of this upper floor were gaily lighted up by many colored lamps, and could be seen far down the street. There was a small opium den at the foot of the stairway, on the ground floor. On reaching the head of the stairs, and turning, we entered a large front room. There were bedrooms at the back of the house, to be let to patrons of the establishment. At the opposite end of the front room from the windows was the ever-present idolatrous shrine. On either side of the room were elegantly-carved ebony chairs, with marble or agate panels. Rich Chinese pictures decorated the walls. Toward the back of the room hung the sign, '283 Licensed Eating House.' There was a large table in the centre of the room. Toward the front, on either side, in alcoves, partitioned off in part from the remainder of the room, were opium couches, with pipes and lamps ready for use. We give this description in full, as it applies, almost without variation, to all the others which we visited in the immediate neighborhood. Food was furnished on order, intoxicating drinks, and opium. At the second place, on the opposite corner of the same block, the men told us that the place was used for the same purposes. We asked where the women were, and they answered that it was too late to see them, but if we would come earlier we would find them. When asked where the women came from, they pointed down to the street below, to the open brothels, and said there were a great number of degraded women who lived close by; said the brothel-keepers sent them. They said that white men as well as

Chinese came to their place. After this we walked the length of the several streets and side-streets, in the near vicinity, and proved the truth of what the men had told us as to the swarming numbers of degraded girls and women.

"The next night we went to the same neighborhood, and revisited the two places already mentioned, and others also. As we reached the top of the stairway and passed into the front room of the place where they had invited us to return, there was quite a flutter of excitement, and we instantly saw that there was a number of girls present, all very young, and several mere children. On our left a fat, middle-aged Chinese man sat, with two or three little girls, one in his lap and one on either side of him, in his arms; two more were throwing something that resembled dice on a table within the front alcove, and the rest were sitting on the opium couches. There were ten girls in all; the two youngest could not possibly have been more than eight years old; only one, out of the ten, claimed to be over sixteen; we all doubted her claim, because of her extreme immaturity of appearance. The two youngest children were immediately sent away by order of the fat man, who was evidently in authority. The men explained that these girls belonged to different women who were not their own mothers; that they came to sing and dance, and pour wine for the patrons who came to the place. They also explained that all these girls were brought from the brothels, and were either already living a bad life or were being trained up for prostitution. They were powdered heavily, had flowers and ornaments in their hair, the upper part of the forehead made bare, and the hair dressed elaborately, like married women (even the very youngest children); of course they were not married, for they were declared to be the property of the brothel-keepers, and this manner of dress must, therefore, have been an advertisement of their shame.

"A curious musical instrument was brought—somewhat like a dulcimer—on which two of the girls played in succession, singing in a high, monotonous way.

"From here we went to the first place visited the night previous, on the opposite corner of the same block. There was quite an excitement here when we came in. Two men and two girls were playing on native instruments—one of the men on a sort of fiddle, and the other on a rude guitar; the girls, one striking, in sharp staccato fashion, a wooden perforated bowl inverted on a standard or post, and the other a kind of cymbal; they were singing in the same shrill, monotonous way we had heard before. We counted eight girls here. There was a piece of unpainted tin or zinc, about eight by twelve inches, set upon the table toward one end, with a list of fifty names on it, and a Chinese man, who talked fair English, explained it thus: 'These are the names of singing and dancing girls who come here; a man looks over the list and calls for a girl to sing or dance; then he chooses his girl.'

"We then went to a third place on the same side of the street. Here there was a wild confusion as we reached the top of the second flight of stairs and entered the front room, and several young girls were hustled out through the other door and into the little back rooms, and the list of girls' names was hurried out of sight. The Chinese men were evidently much frightened. A bold little girl, very smartly dressed, was put forward, who answered our questions in a loud, brazen manner. One of our party asking her if she could sing, she thought the statement was made that she was not 'sixteen' (the age under which girls are supposed to be 'protected' from going into prostitution by British rule), and shouted, 'I am *seventeen*.' We

stayed only a few minutes, but were informed that they provided opium and intoxicating liquors here."

We told our hostess one day that we desired jinrikshas that we might be conveyed to the Protectorate to interview the Chief Inspector, having heard that he desired an interview. As we were leaving the house she detained us a moment to say, timidly: "Ladies, do pardon me, but I feel I must caution you that that man has a very violent temper, and it will not do in case you see anything, to criticise,—no matter what you think. I don't wish to seem to intrude, but I know the man's reputation as to temper, and I cannot bear to think of his having a chance to treat you rudely." We thanked her heartily, and promised to be doubly careful.

We knew the place. A very imposing Government building standing apart by itself, upon which much money had been expended to give it a fine appearance. We were soon ushered into the presence of the man who held the same relation to the work at Singapore that John Lee holds, or at least held the last we knew, at Hong Kong. Will you believe us, when we tell you that to our amazement it was that same white-haired old man to whom we had been introduced at the church gathering as such an active Christian, "working along much the same lines as ourselves, and at the head and front of every good work in the Colony?" To be sure we had heard the name of this Inspector, but we had never in our remotest conception connected it with the man the Doctor had introduced to us. Concealing our surprise we sat down for a few moment's interview. The man knew his lesson "like a book." We could have prompted him, had he made a mistake in reciting it, from the State documents which we had with us,—the same from which we have compiled the chapters of this little book. "The work of the Protectorate is really rescue work, *and that only*." He had lived in Singapore nearly thirty years. He said he had disapproved of the Contagious Diseases Ordinance, when it was in existence, but a good thing had grown out of it in

the matter of provisions for the "protection", of women. We asked, in reference to his remark that the Protectorate was a Rescue Society, if it did not look after men, too. He replied, "Oh yes, the coolies; all are brought here, but the men go to the other side of the building; the women come here." We asked if all the women came before him; he said, "Before the Protector; but in his absence before me." We pondered on the thought of this "rescue work" carried on by this particular Protector of whom we had heard that he had been almost unspeakably vile from boyhood up. He showed us a book which contained a list of all deck-passengers coming to Singapore, who had been passed under review at the Protectorate; they were listed by families. He then showed us a separate list of women and girls who came alone, without families. He had underscored with red ink the names of those in the list who had gone into brothels. He said that suspicious cases either went to the Protectorate Refuge, or those under whose charge they went to live were obliged to give bonds or securities, 500 Mexican dollars was the usual amount of the security in the cases recorded. He also showed us the form of these bonds, both blank forms and some that had been made out; these bonds required that the girls named therein should not be removed from Singapore, and that the girls should be produced from time to time at the Protectorate, upon demand of the Protector, and within twenty-four hours. The bond was good for a specified time named thereon. Then he showed us a book containing "*Warrants of Removal and Detention to the Chinese Refuge*" for girls under sixteen years of age. He also showed us little tickets (we had already seen them in a brothel) and said these contained the number and address of the girls, and if one of these tickets was sent back by a girl to the Protectorate, by any hand or in any manner, the Protectorate would immediately send for the girl and listen to her complaint. He showed us a book of cases, and read us the story of one girl in particular, Ah Moi, and congratulated himself on the Protectorate being at hand to rescue this girl. We will give this case in full

further on. He repeated his assertion that he abominated the C.D. Ordinance, and said that there were now no compulsory examinations, and no Lock Hospital, and that the Government had nothing to do with examinations in any form. But we replied that we had already visited the Lock Hospital, and that there were about fifteen patients there, and asked him how they came to be there. He said anyone could go there; that it was a general hospital for women, and that all diseases would be treated there; that the patients could go away at any time they wished; the Colonial Surgeon was in charge of it. But we asked him how it happened that the degraded women knew enough to go there in such numbers; he said they might be ill, and any doctor in a private capacity would send them. He had sent them, and would like to send a good many more, when they were very ill. He told us of going over the records, for years back, and of finding that the average of time spent in the brothel by these girls was three years and a half, while, if they stayed in Canton, they would be life-long prostitutes. He made much of this point, and argued that it was better for them to come to Singapore in order to be set free by the Protectorate, but acknowledged that many of them became concubines (in "following a man," as the Chinese express it). He spoke of domestic slavery in Singapore, but declared it was slavery of a very mild sort. We asked who came with the Chinese girls when they came to the Protectorate. He answered, "Oh, a friend—the woman or 'mother' who owns them." We asked if nothing could be done against these traffickers in girls; he said they could not often get sufficient proof against them. We saw in one of the records something about "women traffickers," and pressed him to know why these could not be caught and banished by means of paid detectives watching the incoming boats. He replied that it was very hard to get evidence; the girls' own statements were not enough; the Protectorate needed more power. When asked what powers were further necessary, he suggested the power to punish the traffickers of girls by simply the statement of the girls who were brought to Singapore

through fraud, or who were kidnaped. He then spoke of a drug which was used by the women traffickers to destroy the girls' wits; he believed in its existence and its use. He said of these cases of fraud and kidnaping, "We can usually do nothing." We asked if a woman was found bringing girls over and over again whether she could not be prosecuted: he answered that she might be. We then asked if the Protectorate had ever prosecuted: he replied, "Oh yes, a few times." But he grew uneasy under these questions; said no one could know or appreciate the present situation who did not know the conditions of the things in the past, but now he thought they had the best arrangement possible for protecting the women and girls, and exclaimed, "But if this ordinance were abolished I do not know what would become of them." He confessed at the close of our talk that he would like to speak freely to us about certain things connected with the work which could not be mentioned publicly, and said there were "perplexities—great perplexities." Yet at the beginning of the conversation, when speaking of the criticism passed upon the Protectorate's work, he had said, "Why do they not come here for information instead of going about criticising? our books are all open to public inspection." But we had noticed that throughout the interview he kept the books in his own hands, and only allowed us to see what he himself turned up for our inspection.

Now as to some of this official's statements—we deal with them, not with the object of criticising his *personal* opinions and views and statements, but as an *official* representation to us of a Government institution.

To begin with, he had told us two absolute falsehoods, at least. One was that there was no Lock Hospital at Singapore, whereas we had visited this Government institution and by careful inspection found it was used for *the one purpose only*, having no equipment for any other uses, and there were fifteen prostitutes there. When confronted with this knowledge, which, remembering our hostess' caution as to his temper, we expressed as gently

as possible, he then declared it was a general hospital, which it was not. He declared there were no compulsory examinations, and that the Government had nothing to do with examinations in any form. We thought it wisest not to give him the information that we held at that time, and hold to the present day,—dozens of papers of commitment to the Lock Hospital for compulsory examinations both in his own handwriting and in that of the Protector. And some of these cases, as the records we have copied show, were those of perfectly innocent girls, acknowledged to be virgins, until assaulted by these abominable medical officials and robbed of the fresh bloom of maidenly chastity.

The official spoke of the work of the Protectorate as "Rescue work, and that only," in so far as it dealt with women. But it must be borne in mind that the "Protector" of women and girls was likewise the Registrar of brothels; and that the rules and regulations under the Women and Girls' Protection Ordinance provided, in both Singapore and Hong Kong, for every detail in the management of brothels, even to the granting of a permit to keep a brothel, and the description of the "duties" of brothel-keepers. Surely this part of the Protector's work cannot be called "Rescue work," as we are accustomed to use the phrase.

According to the Annual Report of the Protectorate for 1893, 1,183 women and girls entered brothels with the sanction of the Protector; and quite apart from any discussion of whether this sanction should have been given or not, it is quite apparent that this also was not "Rescue work."

During the same year 1,034 women and girls left the brothels of Singapore, and it is apparent that we must look among these mainly for rescued cases. Of this 1,034 the following account is given:

Absconded 63

Died 21

Gone to "Private Houses" 346

Married 69

To be accounted for 451

We have an explanation in the Protector's own words of what is meant by a girl who has "absconded." "It is common now, when an owner notices one of her girls contracting a continued intimacy with a male visitor (and therefore to be suspected of an intention to apply to our office for release), for the owner to sell the girl away to another country. When this has been accomplished, the brothel keeper reports the prostitute has absconded, and, if we cannot prove the contrary, we are obliged to accept the story and strike the name off our books." What would we think in America of a "Rescue work, and that only," with all the advantages of Government backing; under constant surveillance; every girl registered; that permitted 63 girls in a year to be defeated in their desire to marry by being sold as slaves into foreign parts; that allowed 346 of the girls to "go to private houses," as domestic slaves or concubines; that did not account at all for 451 girls; and saw only 69 married; and all this out of 1,034 cases it had absolutely within its control?

The Inspector spoke of the *personal tickets* given into the hands of each girl, which if sent to the Protectorate at any time, would secure a hearing for her before the Protectorate. It is also declared that notice is posted up in every brothel in a conspicuous place, that no girl can be detained against her will. We visited a place on Fraser Street the night of February 2nd; quoting from our journal:

"There was a middle-aged woman in charge, with a baby beside her on the couch where she was sitting. There were six girls present, the oldest barely sixteen years old in appearance, and one between fourteen and fifteen—a thin, immature little creature. We asked

about this young girl, and one of our interpreters overheard the keeper instruct her to say she had been in the house two years. Then we asked the girl her name, and the keeper told her to tell us a different name from the one she first gave us. We saw hanging on the wall, a black bag, which we were allowed to take down and examine. It contained a board eight by ten inches square, on which was pasted a paper bearing a list of the inmates. The list was headed by the keeper's name, Moo Lee, in writing. Then was printed across the top in Chinese characters a statement that inmates could not be confined against their will. (The question was whether, in our absence, the girls would be allowed to take this bag down, open it, and read the sentence of liberty inside.) We showed this to the girls, and asked them if they could read the Chinese written thereon, and they all, even to the brothel-keeper, said they could not. We then asked them what was the *meaning* of the words, and none of them could tell. One girl said, 'We cannot read them, but the great man at the Protectorate can read them.' We asked them if they had tickets, and they showed us little square pieces of paper exactly similar to one which we hold in our possession. The tickets were all so blurred that the educated Chinese gentleman who accompanied us tried in vain to make out its full meaning. It is by means of these things, put in the hands of Chinese women who are utterly unable to read a word of Chinese, that their liberty is professedly given them."

Now as to the case of Ah Moi, of whom the Inspector spoke as illustrating the beneficent work of the Protectorate. He had little idea how much we knew of the case or he would never have brought it up. There is at Singapore a Refuge for girls, managed by the Chinese Society, the Po Leung Kuk, organized originally at Hong Kong and Singapore to put down kidnaping. The Inspector one day, January 4th, 1894, sent a girl of fifteen over to the Refuge with a note to the Matron, and on the following morning,

ordered her sent to the Lock Hospital for examination. We saw the recorded result of that examination in the handwriting of the doctor at the hospital, and it was to the effect that the girl was suffering from disease due to vice. After that the Matron got a note from the Inspector saying: "Ah Moi can be written off your books, as she has been sent to hospital, and after she leaves hospital she intends going to a house of ill-fame."

Now the rules forbade all religious instruction, or any sort of instruction in this Refuge, since the Chinese men who contributed to its support were opposed to women being taught anything. But the Matron had threatened to leave if she could not teach and train the girls. So she was allowed, out of her own slender salary, to hire a teacher on her own account, and this she did. The good Christian man whom she had hired came and told her he had learned that Ah Moi was a good girl, and was from a Mission School in Canton, and finally he brought the girl's own mother, who testified that this was true. We have not space to go into this story in detail, but we later visited the school at Canton from which the girl had been brought, talked with the teachers who had had her under their care for years, and it was literally true,—that she was a perfectly pure girl (and how could she have been suffering from such a disease?), who had been entrapped for such a dreadful fate. She would have been put into a life of shame by the Inspector, never to have escaped her terrible servitude, probably, but for the energetic efforts of this Chinese Christian man and the Refuge Matron, who rescued her from the Protectorate and its wicked business of assigning girls to brothels. And here sat the Inspector, telling us this story, of which we knew so much, (and learned more at Canton later), as an instance of the "rescue work" of his office!

Almost the last day of our painful work at Singapore had come. We had gathered much evidence, and had good hope that something could be done with it in London. "This is my birth-day," one of us said to the other, as we

spun along in our jinrikshas toward the Refuge. "I think we ought to have some unusual good fortune in gathering information today. At least we can get some of these little children taken out of their terrible peril in the brothels. The Matron of the Refuge says she *knows* the officials are ignorant of their presence there. They have so often talked of their extreme care at that point. Will it not be good to see something actually done and at once about that matter? She was to interview the Inspector yesterday, and will report to us today." And so we chatted on, We had been horrified to encounter in a single night's work some thirty little girls playing about the rooms of brothels. That at least would never be allowed. We were so glad the law was so very strict, and we had been assured strictly enforced at that point. It read: "Any person who receives a girl under the age of sixteen into a brothel, or harbors any such girl in a brothel, shall (until the contrary be proved) be deemed to have obtained possession of such girl with the intent or knowledge in clause one of sub-section one mentioned." This clause reads: "with the intent that such girl shall be used for the purpose of prostitution," and the penalty, "liability to imprisonment for a term not exceeding one year, or to a fine not exceeding \$500, or to both." If that law failed because of what would pass as proof to the contrary, at any rate there was the further provision that the children could be removed to places of safety, at least to the Refuge. "A girl found living in or frequenting a brothel shall be deemed to be a girl who is being trained for immoral purposes." And "The Protector, if on due inquiry he is satisfied that any girl is being ... trained for such purposes, and that such girl is under the age of sixteen years, may ... order such girl to be removed to a place of safety," etc., etc. The way seemed perfectly clear under such laws, to secure the safety of the children.

At the door of the Refuge we were glad to escape from our jinrikshas into the cool shade of the house. The Matron seemed much troubled, and spoke of things that she had not understood previously, but now that she had

learned many things from our investigations and from her own questioning of the girls, they had taken on a painful meaning to her.

Our hearts grew heavier and heavier as we talked together. The Matron, said: "Why, I thought when I came here it was to do a regular Christian work for these girls. That was my purpose, but the more I inquire into the matter, and study over the things I am expected to do and ask no questions, such as sending girls over to the Lock Hospital at the Chief Inspector's request, the more I feel that I am being worked for purposes of which I cannot approve. I cannot stay here."

At last we got to ask her about her talk with the Inspector. "What did he say when you told him what we discovered the other night—that little girls go freely to the Licensed Eating Houses, and live in the brothels?" "Is it really true that the authorities have been deceived, and did not know of this flagrant violation of the Ordinance to protect women and girls?"

The Matron's face was sadly troubled. She gazed at us a moment quietly, and then said:

"He told me, Why, of course he knew about those children. There were scores of them."

"But will he do nothing about the matter?" we exclaimed.

She replied: "He said: 'What can I do? I caught a whole handful of them once and sent them to the Lock Hospital, and had them all examined. The doctor pronounced them all virgins, so I could do nothing as yet, and I let them all go back.'"

We uttered exclamations of horror.

"A handful!"—did he think no more of them than of so many minnows!

And they had gone through the horrible ordeal at the Lock Hospital!

And he must leave them in the brothels yet for awhile,—until when?—until, Oh pitiful God!—until they were all "deflowered according to bargain." And then he might consider the advisability of doing something.

The head reeled. We felt stilled. We must get out in the fresh morning breeze. Something broke somewhere about the heart. We went out and got into our jinrikshas, and went away home as in midnight darkness, calling upon the name of our God all the way. Life on this hell-scorched earth has never held the same happy delusions for us since, but there is a city out of sight "whose Builder and Maker is God." That we will seek.

CHAPTER 16.

SLAVERY IN THE UNITED STATES.

During the incumbency of a certain Mayor of San Francisco a surprising condition of things was brought into existence. There was a large tract of land in the heart of Chinatown owned by an American family, relatives, it is declared, of said Mayor, the passages entering which were deliberately blocked by gates, so as to stop all entrance excepting to patrons of the place. This section lay between Dupont and Stockton, Jackson and Pacific streets, and included within its enclosure Baker and New World alleys, connecting Dupont street with Sullivan Place, which divided this tract in two. Gates were erected at the entrance of the two alleys on Dupont street, and two gates blocked the entrance to Sullivan Place, at the end opening upon Pacific street. Within this region, both above and below ground, were housed numbers of Chinese slave girls, particularly in Baker alley, where, it is said, were placed the young girls of tender years, generally about fifteen years old, when first brought over the water, or when first initiated into brothel slavery, having served their apprenticeship as domestic slaves. We are informed that fully seven-tenths of the domestic slave girls found in Chinese homes in America—and every well-to-do Chinese family (except Christians) keeps at least one or two slaves—end their lives in immorality. Some of them when they become old enough are seized by their masters as concubines, others are sent to the brothels. Reports of conditions at Hong

Kong which we have already quoted, speak of the special celebration of the entrance of a virgin into prostitution, and the high prices paid by patrons for this initiation, but leave it obscure as to the nationality of the men who initiate girls into the life of a brothel slave. But Chinese in San Francisco do not hesitate to make the charge that Chinamen recoil, through moral sense or superstition, from deflowering a virgin, and that this horrible privilege is purchased at a special price by the white, not the yellow patrons of Chinese houses of ill-fame. Baker alley has probably been the scene of more terrible brutality of this sort than any other part of San Francisco. Before the rubbish was cleared away, in the oasis of a broad desert of ashes in the burned city, we visited this region, and found carpenters busy at the work of reconstructing brothels. The slave pen was existent again, and we entered the gateway leading to it and gazed upon the rapidly growing structures within. Two white men of a class called "Watch-dogs," in the days before the fire, occupied a sort of look-out and kept guard, more especially upon the entrance to Baker alley. This region, so largely of American manufacture, like other sections of San Francisco's Chinatown, was displayed, by means of Chinatown guides for pay to tourists, who were led to believe that they were looking upon *Chinese* views of life. The truth is, as we have shown in previous chapters, a display of vice is practically unknown in regions of China uninfluenced by Western civilization. Almost any wicked man, any tourist who would pay well, man or woman, could enter this place. The "Watch-dogs" were kept merely to prevent the entrance of mission workers to rescue slaves, and these "Watch-dogs" were, and always are, American, or, at least European men, not Chinese.

There were more "Watch-dogs" than those about Sullivan Place, before the earthquake in San Francisco,—they were to be found in many parts, always for the one purpose,—to resist interference with the enforcement of brothel slavery upon Chinese women. American men undertook this part of the business, because a certain timidity in the Chinese character when

dealing with American women, and a fear of arousing race-prejudice, unfitted the Chinaman for coping with the American women,—Miss Culbertson, the pioneer, now sainted, Miss Lake, Miss Cameron and Miss Davis, who have fought their brave battles for many years, to deliver the captives from the hand of the spoilers, often at the risk of life, unaided for the most part, unappreciated and unsympathized with, by a guiltily ignorant Christian public, and too often persecuted by corrupt officials. Yet they have never stood alone, but have always had the presence of their Master, and the sympathetic co-operation of a few ardent supporters,—Christian women, lawyers, magistrates, and other officials.

One of the "Watch-dogs" struck Miss Lake on one occasion. On another, a "Watch-dog" went boldly up to two policemen to whom a fugitive slave had appealed for help, seized his prey, and without resistance from the policemen, carried her bodily back to slavery along the public street, in view of many spectators. At another time several of them rushed in upon a scene of rescue, overcame the police officer, and hurled him down stairs, dealt in the same manner with some men in the rescue party, and then turned upon the missionary and would have subjected her to the same treatment. She said firmly: "Do not lay a hand upon me! I will go out by myself," and overawed, they allowed her to walk out untouched through their midst into fresh air and to safety. It is hardly necessary to add that the missionary did not, on this occasion, get the poor slave.

We have already said, but it bears repeating, that white men as well as Chinese, resort to these slaves. One rescued girl told of another captive, bound by night to her bed and to her unwilling task. Think of the education of the youths of San Francisco in such schools of vice as this,—what a menace they must necessarily become to the women of their own family and acquaintance! A young woman managed to get a request for help sent to a rescue worker. The missionary responded by a carefully arranged plot for

the identification of the girl. It included the understanding that when the rescuer with the officer should enter the place, she was to have in her hands, and to raise to her lips a handkerchief which the missionary had managed to get conveyed to her. They entered, saw her with the handkerchief held to her face, at the little soliciting window, but the poor girl had endured so much that at the sight of friends she lost her nerve and presence of mind, fluttered her handkerchief, and cried out, "Oh, teacher!" Alas! a locked door still separated her from her rescuers, and the plot was exposed. She was dragged back, and became lost to the rescue party. Other girls who escaped from the den afterwards told of the rest of the scene. Kick upon kick fell upon her poor little body, and the enraged owner of the brothel never ceased until she was dead and mashed almost to a jelly before the eyes of the other inmates, to teach them a lesson of warning against trying to escape. Let us not mourn. It was better so than to have been left alive unrescued. The pity is that the keepers and the "Watch-dogs" hold them alive to their task as long as they do. The angels of heaven, God's rescue party, are not far off from such victims, nor His angels of wrath and vengeance from such inhuman fiends. We wonder how many of the little slaves were lifted up into a better life than this by the merciful earthquake; and how many of their masters and outragers saw hell gape and themselves swallowed up in the horrible earthquake,—God's deliverance or God's judgment,—according to the character of the individual.

When the missionary enters a den, and by means of some carefully devised scheme identifies the girl who has had conveyed to the missionary her desire to be rescued, and attempts to take the girl, she often screams for help, kicks, fights, bites, scratches, spits, and sometimes swears at her liberator, but often is secretly clutching with almost a death-grip the rescuer's hand. She will sometimes fight at being thrust through the doorway into the street, calling lustily for help, but whisper to the missionary, "Tell the officer to carry me out." When once, in spite of the

feigned struggle, she is carried outside, and her pursuers are well behind in the chase, the ruse is cast aside, and it becomes a race for dear life between the rescuer and the rescued to make the city of refuge,—the mission home,—and generally the fugitive gets there first. Once a rescue worker found her girl secreted with four others in a loft, to which she had been removed because the brothel-keeper feared an attempt at rescue. She was so carefully guarded and watched that the poor thing dared not signify to the missionary that she was the one who wished to be taken, and all five struggled with equal apparent fierceness against rescue. What was the missionary to do! She lifted her heart in the despairing cry, "Oh, God, if ever you heard a human prayer and answered it, for Christ's sake hear me now! Tell me which one to take!" She instantly seized one of them, who fought savagely, and bit and scratched and swore. Out she went with her, and all the way to the mission the girl abused her terribly. But the instant the door closed behind them and they were safe inside the home, she fell to the floor, seized her deliverer's feet and bathed them with her tears, crying bitterly as she said: "Oh, forgive me, forgive me! You know I did not mean it, but it was the only way to do to be safe." God had guided aright. No mistake had been made in the choice. Do you believe God did that, reader? Try such heroic work for yourself, and you will find a miracle-working God who seldom reveals His identity to the self-indulgent. That rescued girl has turned out to be a wonder of grace and of natural gifts, and is pursuing a professional career now, after fine opportunities in training. It is worth while to save such material, even from a slave-pen; such as she enrich the community in which they live.

This slave-trade could not go on between Hong Kong and the United States but for the white men who are in it, one way or another. White lawyers defend the traffickers in court, and secure the return of slaves by writ of habeas corpus, or by means of false accusations of various sorts, such as of stealing. It is significant that, with rare exceptions, the policemen

seem not to have been trusted with definite information as to the place about to be searched or raided, when told off to accompany a rescue party, lest word be sent ahead, allowing a chance to spirit away the girl for whom search is instituted. American men are said to go all the way to Hong Kong to get girls and smuggle them into the country, as better able to cope with the strict immigration laws than Chinese. Sometimes they go a long way around to get a girl into San Francisco,—by Victoria, B.C., through Mexico and El Paso (Texas), and by other routes. But the price paid for the slaves assures a good profit to the traders. Since the laws against Chinese immigration became more stringent, the market price of these slaves has risen to three thousand dollars, while the more beautiful ones bring a much higher price. Judges, lawyers, seafaring men, hirelings of the Immigration Bureau, Chinatown guides, "Watch-dogs," officials and policemen, have all been accused of having imbrued their hands at different times in the slaughter of the virtue of Chinese women through this wretched slave business, besides the white patrons of the Chinese slave-pens. But probably none are so guilty of complicity as the property-owners, who build the places for housing the slaves, and make enormous profits in the business.

There seems to be a misapprehension as to the status of these Chinese prostitutes, to which the mind recurs again and again, in spite of careful explanations. Some imagine that only those who are rescued, or at least those who have managed to convey word to the missionaries that they desire to be rescued, are the literal slaves, and that those left behind are free. Such is not the case. We have already shown that nearly all the Chinese prostitutes at Singapore and at Hong Kong are literal slaves, the only exception being, in fact, a small percentage (estimated at 10 per cent by the Chinese merchants at Hong Kong), composed almost entirely of women who have mortgaged their own bodies, or who have been thus mortgaged by relatives, for a limited time in payment for a debt, and who, at the end of the stated time, are generally set free, though sometimes they find

themselves in a trap from which there is no escape. It is through the misfortune of debt, and in countries where Chinese women are cheap, that this mortgaging of the person takes place. Such conditions do not surround Chinese women in America, so that this form of service in houses of ill-fame must be correspondingly rare, and this is according to the testimony of the missionaries. For this reason, therefore, we may rule out the temporary servitude, and assert without fear of contradiction from those who understand the situation, that practically all the Chinese prostitutes in the United States are literal slaves. Some are *willing* slaves, some *unwilling*; and a small fraction of the unwilling slaves have managed by stroke of good fortune, and because of unusual courage, to get a request conveyed to a mission, and thus in some instances they have secured their freedom. But not all who have appealed for help have been rescued, for they cannot always be found upon search, and often, when they have been found and their cases brought up in court, they have been again consigned to the care of their former owners because courage has failed, and they have refused in open court to acknowledge that they wished to go free. One girl who desired to escape fell under suspicion, and her master decided to remove her to Watsonville, and so defeat her rescue. At the San Francisco Ferry Station she made a dash for liberty, pursued by the two men who had her in charge, and ran to a policeman, handing him a crumpled piece of paper, which proved to be a note that a missionary had placed in her hand when she landed in America. The officer could not read the note, in its old and crumpled condition, but divining its nature he hailed a cab and drove with the girl straight to the mission door, where she was welcomed.

There were at least five hundred Chinese brothel slaves in San Francisco before its destruction, and none in Oakland up to that time. Since the calamity, there have been many in Oakland. They have been estimated at as high a figure as 300, and must have numbered until quite recently at least 150. The frontispiece represents a structure erected for their housing. This

building is three stories high, and occupies every foot of one-half square. It contains more than 600 rooms, and is built throughout of rough boards, one inch thick, on flimsy beams and studding. It is unlathed and unplastered, a veritable fire-trap, within four blocks of the County Court House. It could never have passed inspection had it been erected for *decent* purposes. When the photograph was taken the building was not completed. A row of shops has been added at the left, over which is a large Chinese theatre. A respectable Chinese man of literary pursuits informed us that the theatre was "to attract custom there." A very broad stairway, scarcely less imposing than the front entrance to the theatre, leads down into the alley, and to the brothel. The seats for women in the theatre are reached by a special door leading to this alley. The heart of this building is approached through "Washington Place," an alley, at the entrance of which one encounters a sign, "No White Men Admitted Here, Only Chinese." This notice, which has been put up at the entrance of Oriental brothels in Chinatown, has been ordered by the Chief of Police, it is claimed, to prohibit Americans associating with Orientals in vice, so as to prevent demoralization and race quarrels. We do not dispute the motive, but the *effect* is, that those who would work for the rescue of slaves are kept at a distance, and no one who is likely to make a complaint against abuses and law-breaking can approach the place without permission from the police, which gives ample opportunity for getting everything objectionable out of sight. As far as prevention of the commingling of the different races is concerned, that may be hindered at certain points, but American men are on the inside track here, as to making money through these slaves. The building has been erected and is owned by Americans, and one man of European name is a partner in the immediate management of the place. On our first visit to this building we were informed on reliable information that there were 125 Japanese and over 50 Chinese girls in the place, and 100 more were expected to arrive within a few days. Besides these, there are also Chinese slaves in almost

every Chinese settlement throughout the United States. In California, they are to be found largely at San Francisco, Oakland, Sacramento, Stockton, Fresno, Bakersfield, San Jose, Watsonville, Monterey and Los Angeles. Willing or unwilling, the Chinese prostitute is none the less a slave, bought and sold at pleasure from one to another, earning wealth for others and never for herself. Recently, three girls who were taken from a den in San Francisco, declared that they had been sold for three thousand dollars apiece to the keeper, and that they were flogged when their earnings for the keeper fell below three hundred dollars each a month. If the prostitute were not willing to be a slave, that would not procure her liberty,—it would only procure her more abuse than the willing slave. On the ship coming over, the slaves are well drilled in their task on arrival, of swearing themselves into slavery, and well threatened if they dare to disobey. Then they are packed with stories as to the terrible character of Americans, particularly the rescue workers. One Chinese girl concluded she would take all the abuse of the rescue home rather than forego a chance for liberty, though she knew of no reason to disbelieve the fearful warnings she had received. On the first night of her arrival she did not undress nor go to bed when the other girls retired. Someone found her standing about, and asked her why she was not off for bed. She replied pathetically: "I am waiting for my beating." She had been informed that it was in that fashion all the girls were put to bed each night. At a very conservative estimate, there are not less than one thousand Chinese brothel slaves in California alone, besides those in the Chinese settlements all over the United States. When children are born to Chinese prostitutes, they are seized by the brothel keepers as their own property, the girls being sold into domestic slavery to be passed on into brothel slavery at the age of about 15, and the boy babies sold for a good price—several hundred dollars—to become "adopted" sons. Very many Chinese men of the United States secure their wives by purchase from brothels, and as a consequence often have no children by them, hence the high value of a

child who can be purchased for a son. The real wife and family of the Chinese man generally remain in China, the matrimonial relations of the man in America being wholly spurious. This admixture of the brothel element with all Chinese home life in the United States makes this country very undesirable as a residence for virtuous Chinese women, and largely discourages the immigration of respectable Chinese wives, whose presence with their husbands might greatly tend to the uplifting of the entire Chinese community.

There are probably as many domestic slaves as brothel slaves among the Chinese of the United States. Every well-to-do heathen Chinese family keeps a slave or two, and the rich Chinese keep a large number. Polygamy is practiced, as at Hong Kong, to a larger extent than prevails generally in China, and it is not uncommon to find a Chinese in California with from five to seven concubines. The Chinese man in the United States takes his domestic slave, if he wishes, for a concubine, or sells his concubines into brothel slavery, if displeased with them, or wishing to raise a sum of money. It is a burning disgrace to the United States that this polygamy is not stamped out. In one case related to us, a girl was taken from a rescue home by a writ of habeas corpus, and returned by the judge to her position as second wife of a Chinaman.

During President Hayes' administration, Mr. D.H. Bailey, United States Consul-General at Shanghai, sent a message to him relating to Chinese slavery, and the menace to our country from it. He enclosed in his communication a translation of the Chinese laws relating to slavery, which is permitted under certain restrictions in that country. Nothing could exceed their stringency at the point of any resistance on the part of the slave to the condition of servitude. From that set of laws we quote the following:

"If a female slave deserts her master's house she shall be punished with 80 blows." ... "Whosoever harbours a fugitive wife or slave, knowing them to be fugitives, shall participate equally in their punishment." ... "A slave guilty of addressing abusive language to his master shall suffer death by being strangled.... If to his master's relations in the first degree he shall be punished with 80 blows and two years' banishment. If to his master's relations in the second degree, the punishment shall be 80 blows. If in the third degree, 70 blows. If in the fourth degree, 60 blows." "The master or the relations of a master of a guilty slave may ... chastise such slave in any degree short of death, without being liable to punishment. Nevertheless, if a master or his aforesaid relations, in order to correct a disobedient slave or hired servant, should chastise him in a lawful manner on the back of the thighs or on the posteriors, and such slave or hired servant should happen to die, or if he is killed in any other manner accidentally, neither the master nor his aforesaid relations shall be liable to any punishment in consequence thereof."

"All slaves who are guilty of designedly striking their masters shall, without making any distinctions between principals and accessories, be beheaded.

"All slaves designedly killing their masters, or designedly striking so as to kill their masters, shall suffer death by a slow and painful execution.

"If accidentally killing their masters, they shall suffer death by being strangled.

"If accidentally wounding, they shall suffer 100 blows and perpetual banishment to the distance of 3,000 li (1,000 miles).

"Slaves who are guilty of striking their master's relations in the first degree ... shall be strangled.... All slaves who strike so as to wound such persons shall ... be beheaded."

The "painful execution" which is the penalty of killing a master, means execution by slicing the criminal into 10,000 cuts. Foreigners who have witnessed it say it is too horrible to recite.

It is under such slave laws as these that the young girl is trained as a brothel slave before she is brought to California. After such tuition, it seems hardly credible that girls do, in San Francisco, dare to escape from their masters, and flee to the missions for protection. Governor C.C. Smith, who was for years the Registrar General of Hong Kong, previous to being knighted and sent to Singapore as Governor of the Straits Settlements, replied to the Secretary of State for the Colonies, in reference to the freedom of prostitutes, "out of an experience of over a quarter of a century":

"There are no restrictive regulations on the part of the Government which go to prevent or interfere with the entire freedom of the inmates of brothels, and they can go abroad alone. This statement will not, I hope, deceive you into believing that as a consequence they are really free agents ... such is actually not the case. A child who strikes its parent is liable to a death sentence. The girls in brothels are in the position of daughters to the keepers, and ... call them mother. There is no sense of freedom, as we understand the term, possible in such a state of affairs. The women are fearful of the unknown; of what should happen to them if they should disobey their pocket-mothers, and are terribly ignorant of everything connected with the Government under which they nominally live. It is out of the question to educate them up to the English standard of liberty of the subject. They stay but a few short years in an English

Colony, seeing nothing but the worst phases of a life of vice and immorality, and only know of the officers of Government as 'foreign devils' or 'barbarians'."

This is all only too true as regards California also, excepting that the experiment of educating them by just treatment in the "English standard of the liberty of the subject," has certainly never been tried either in Singapore or America. The brothel keepers, however, have learned to understand that matter of "liberty of the subject" only too well, and take advantage of the habeas corpus act at every turn to capture a slave who is trying to escape their clutches.

These words of Governor Smith should be borne in mind and brought to attention every time our law officers in California put brothel girls through the farce of asking them if they are desirous of liberty, and when they say no, proclaim triumphantly to the world that "there isn't a slave girl in Chinatown." These officers deceive others by these falsehoods, but they know too well the conditions to be themselves deceived.

When certain Chinese girls appeared before a committee appointed to investigate conditions at San Francisco, the members of the committee were put under promise not to divulge their names or stories, as "their lives would not be safe for five years to come," if the brothel-keepers and their former owners knew that they had informed against them. It is a little difficult to describe the various secret societies of Chinatown in full, but for practical purposes and as relates to the welfare of Chinese women, it may be said that the secret society, or tong, is a sort of mutual benefit society and has generally a very commendable sort of name; but it exists to divide the profits of the trade in women, among other villainies. When anyone gives any evidence against such a society, or informs a rescue worker where a girl will be found who desires her liberty, then some one from the tong that has

a special interest in the profits of that girl's slavery, deposits a sum of money in a place mutually arranged for, and the highbinder society undertakes for the sum paid to see that the informer is assassinated within twenty-four hours. That is the length of time usually claimed for the act. But sometimes years may pass before the marked victim can be traced and killed.

We will next give a few cases from the records of the Presbyterian and Methodist Mission Rescue Homes of San Francisco, which will clearly show the similarity between the state of affairs in Hong Kong and California.

CHAPTER 17.

STRUGGLES FOR FREEDOM.

A Chinese girl of 14 was brought to this country, and served six months as a domestic slave, and was then put into a brothel. She was rescued. Her Chinese master got out a writ of habeas corpus, went to the Mission with an officer and took the girl away at once to court before a corrupt judge. It was just at noon-time, and the missionary pleaded for a little time in which to summon a lawyer. The judge said: "I have no time to fool with this case." The lawyer arrived in haste and pleaded for a little time in which to prepare the defense. The judge said to the lawyer: "You shut up, or I'll have you imprisoned for contempt of Court." He awarded the slave to the care of her master.

This and other such cases led to a valuable alteration of the law at the point of the protection of minors. We will explain the change in the words of Miss Cameron:

"In years past it was necessary in each case to in a way break the *letter* though not the *spirit* of the law when we rescued a Chinese child, for there was no written law to uphold us in entering a house and carrying off a child—then, too, before it was possible to carry out guardianship proceedings, the ever-available writ of habeas corpus would in many cases deliver the child back into the care of

the Chinese, until the matter could be settled in the Superior Court—in such instances we seldom won our case. Our attorney saw wherein the difficulty lay, and proposed an amendment to the law of the State in the matter of the guardianship of minor children, which would give power to a presiding judge to sign an order to the Sheriff, commanding him immediately to take into custody the child whose name appeared on the warrant and place her in the care of those applying for guardianship, until such time as the hearing could be had."

This means of protection for minors was secured by the combined efforts of mission workers and their friends. This explanation will prepare the way for a rehearsal of some cases of rescue which might puzzle the reader as being carried out by unusual methods of procedure.

The following cases are from the records of the Methodist Home for Chinese Girls, located, since the earthquake, at Berkeley:

No. 1. Made the following statement: "I am 12 years old; born in Canton; father a laborer; mother a nurse; parents very poor. Mother fell sick, and in her need of money sold me. Took me to Hong Kong and sold me to a woman; saw the money paid, but do not know how much; it looked a great deal. This was 3 years ago. The woman promised my mother to make me her own daughter, and little did my mother know I was to be a slave, to be beaten and abused by a cruel mistress. My mother cried when she left me; it was very hard to part. The big ship, 'City of Pekin,' took me soon out of sight. I have heard that she is now dead. On arriving we did not come ashore immediately. I was landed after 4 days. There was trouble in landing me. I had a red paper, bought at Hong Kong, that they called a certificate, and there was trouble about it. The woman who bought

me had no trouble getting ashore because she had lived in California before. She told me what I was to say when I was questioned. She told me I must swear I was her own daughter. The Judge asked, 'Is this your own mother?' and I said, 'Yes.' This was a lie, but I did not know it was wrong to do as I was told, and I was afraid of my mistress. The Judge said, 'Did this woman give you birth?' and I said, 'Yes.' The Judge said, 'Did anybody tell you to say all this?' and I said, 'No,' because my mistress had instructed me how to answer this question, if it was asked me. She taught me on ship-board what to say if I was taken to court. My mistress was an opium smoker, and she and her husband had awful quarrels, which made her bad-tempered, and then she would beat me for no reason. I used to get so tired working hard, and then she would beat me. She beat me with thick sticks of fire-wood. She would lay me on the bench, lift my clothes, and beat me on the back. Another day she would beat me thus with the fire tongs. One day she took a hot flat-iron, removed my clothes, and held it on my naked back until I howled with pain. (There was a large scab on her back from this burn when she came to the Mission.) The scars on my body are proof of my bad treatment. My forehead is all scars caused by her throwing heavy pieces of wood at my head. One cut a large gash, and the blood ran out. She stopped the bleeding and hid me away. She beat my legs one day until they were all swollen up. I thought I better get away before she killed me. When she was having her hair washed and dressed I ran away. I had heard of the Mission, and inquired the way and came to it. A white man brought me here. I am very happy now." While being brought to the Mission by this gentleman, she laid hold of his coat, and would not let go until she was safely inside. It is significant that in this case and the following, methods

of punishment allowed even unto death by Chinese law, are administered by the mistresses of slaves in America.

No. 2. "One day I was playing in the street near my home in Canton, and a man kidnaped me. He said: 'Come with me; your mother told me to take you to buy something for her, and you are to take it back.' I have never seen my father and mother since. In 3 or 4 days I was taken to the Hong Kong steamer. I dared not cry on the street, but on board the steamer I cried very much. The kidnaper said: 'Don't you cry, or you will have the policeman after you, and they'll take you off to the foreign devils' prison.' At Hong Kong he sold me to a woman, and after staying at her house a few days she brought me to California. I had a yellow paper given me, but I don't know what it was. The woman told me I must say I was born in California. I came here last winter. I am 11 years old. I don't remember the name of the steamer. The woman sold me to another woman. I had to work as cook, and nurse her little bound-footed child, who was strapped to my back to carry. The child I carried was 9 years old; and I was 11. My mistress was very cruel. Often she took off all my clothes, laid me on a bench and beat me with a rattan until I was black all over. Then she said: 'I will get rid of you and sell you.' The keeper of a brothel came to buy me, and look me over to see how much I was worth. A Chinaman living next door, knowing how I was treated and that I was going to be put in a brothel, when I saw him in the passageway, asked me if I wished to come to the Mission, and I said 'Yes.' My mistress had gone out into the next room, leaving her daughter and another slave girl in the room. I said I would go at once, and he brought me. I am very glad to live here and lead a good life."

No. 3. The rescuer was requested to meet a girl at the corner of Stockton and Jackson streets. She did so. K—— Y—— was comely and refined looking. She had been sold into a brothel at a tender age. When about 22 she met a young Chinese man who wished to marry her, and he paid down \$600 for her, promising \$1,400 more in time. Another man objected to the sale, because the girl had mortgaged herself to him for \$600. Through the Mission the girl was released from her bondage, and remained at the Mission one year and then married the first man, and they left San Francisco and resided for a time in an inland town. Here an effort was made to kill her in her own garden one evening. Her husband brought her back to San Francisco, and later she went back to China.

No. 4. Came from a brothel on Spofford alley. She was occasionally allowed to attend the (Chinese) theatre. One evening when at the theatre she had word conveyed to the Mission to come get her immediately. The rescuer did so, and the girl promptly arose, when the rescuer entered the room, from the front tier of seats, and seizing the hand of the missionary in the presence of them all climbed over the backs of two seats, regardless of their occupants, and escaped. Later she was married and returned to China.

No. 5. In a dark, dismal room where the sun never shone lay a poor Chinese woman helpless with rheumatism. She had a baby girl 10 months old and was too sick to care for it. The invalid felt forced to put the child in the hands of a friend she trusted, who promised to care for it, and advanced money for the sick woman. When the mother got better she worked two years and saved until she had enough money to buy the child back, but the cruel woman who had got possession of it refused to give it up unless paid three times as much as was originally borrowed. The mother could not do this, and

finally, hearing of the Mission, reported the case there. The baby was traced to a horrible den in Church alley, where it was in the possession of a notorious brothel-keeper. The mother secretly visited the Matron at the Mission, who had secured the child, urging her to keep possession of the baby, saying she would not dare testify against the woman on the witness stand, as it would cost her her life. The case was a long time in court, but after six months the Judge committed the child to the Home, and the mother was made very happy.

No. 6. She ran into the Mission leading her little son. She was chased to the very door of the Mission, but kept her pursuers at bay, by means of a policeman's whistle which she held in her mouth, walking backward and threatening to blow it if they dared touch her child. She was a widow with this only child, and her relatives were bound to sell her into an immoral life and take the boy away. After being in the Mission a few months she became a Christian. Her little boy was placed in an orphanage. Later the widow married respectably.

No. 7. This girl was aged 14 when rescued, and had been placed in a vile life four weeks before. Two days later she was taken to court on a writ of habeas corpus. Her case was put off three times, and finally came to trial. The Judge remanded the girl to the custody of the M.E. Mission Home. He said, on dismissing the case, that never in all his experience had he listened to such perjury, and that the alleged mother should be punished to the fullest extent of the law for her lying. The girl seemed very happy and contented in the Home, but nine days after she was committed to it she was again taken out on a writ of habeas corpus and appeared before another

Judge, who returned her to the brothel-keeper. (This was before the new guardianship law came into operation).

No. 8 proves that the buying and selling of children takes place in America up to the present day. It is but one instance of this sort out of scores of others given by the missionary:

"She was sold when she was but four weeks and five days old. Her parents being very poor and having several other children, she was disposed of to a man who was a friend of the father. The wife, however, was an inmate of an immoral house. Part of the time the child was kept there and part of the time in a family house where we often saw her in our rounds of visiting prior to the earthquake and fire. We did not know but that she belonged to the family in whose care we saw her.

"After the fire the man returned to China, leaving the woman and child. The woman took to abusing the child, and word was brought to us of the condition of things. We appeared on the scene one morning about 10 o'clock with an officer. Leaving him outside, we entered, and found the woman and child eating breakfast. Three other women and two men soon came in. After talking for a while I saw the woman was anxious to get the child away from the table, so I informed her we had come to take her, and proceeded to do so, catching the child up and darting into the street, leaving my interpreter and the officer to follow. We ran several blocks, followed by the irate woman. Finally hailing a man with a horse and wagon, we sprang in and were driven away to where we could take the street cars for home. The child did some screaming and crying, at first. But once we were seated in the street car, her tears were dried

and her little tongue rattled along at a rapid rate; she was delighted to get away.

"The case was in court for some weeks, but the woman was afraid to appear, and had no one to assist her but the lawyer, and as he could not prove any good reason why the child should remain with an immoral woman, we were given the guardianship."

No. 9. A young girl came to San Francisco from China as a merchant's wife, and missionaries used to visit her at her home in Chinatown. Once when they went they were told that the wife had gone to San Jose, but she could not be traced at the latter place, and the missionary was suspicious. A year passed, and one night the door bell at the Mission rang, and when it was opened a Chinese girl fell in a faint from exhaustion, across the threshold. A colored girl stood by her holding her by the cue. The colored girl said she saw her running, and divined where she wished to go, and seizing her by the hair to prevent her being dragged back, rushed her to the Mission. It was the merchant's young wife. She had been confined in a brothel not two blocks from the Mission, and often saw the missionary pass by, but had no means of attracting her attention. The merchant told her one day that he wished to take her to a cousin to learn a different way of dressing her hair, and he would leave her there a day or two while he was away from town on business. The young wife went without fear, but never to return to virtue until she escaped to the Mission. She was tied to a window by day to attract custom, and at night tied to a bed, for she was no willing slave. When rescued she was horribly diseased. Three days before her rescue, the Chief of Police and an interpreter had gone through the house questioning every inmate as to whether they wished to lead a life of shame or not. She was asked the question in the presence of

the brothel-keeper, the head mistress, and all the girls. She had been told beforehand, "If you dare say you want to escape, we will kill you." The Chief of Police had it announced in the papers that he had made this investigation, and that no slaves existed in Chinatown. Immediately after his visit, she was removed to a family house, lest her rescue might be effected, and one man and two women set to watch her day and night. She feigned willingness to lead a bad life, and the two women, lulled into a sense of security, turned aside to gossip, while the man dropped off asleep. She suddenly rushed out of the house, and but for the quick wit and good offices of the colored girl might have missed the way to a safe harbor.

The following are cases of rescue reported from the Mission Home of the Occidental Board of Missions of the Presbyterian Church:

No. 1. Qui Que. This little girl was taken from a gambling den at Isleton, a small town on the Sacramento river. The woman who brought her from China died, and she was thus left to the care of this gang of gamblers. When Miss Cameron and her escort arrived at the house, the little girl of six or seven years sat on a table rolling cigarettes for the men who sat around it gambling. They were taken by surprise, and before they quite understood the situation the rescuers were gone with the little girl. When they discovered this, they fired several shots after the party, but no harm was done. The officer, with one hand on his revolver, drove rapidly for the boat landing, and Qui Que, safe in Miss Cameron's arms, will probably never know the danger risked in securing her freedom.

No. 2. Ngun Fah. This child was a domestic slave in the family of a well-to-do merchant in Chinatown, but so cruelly was the child overworked and abused that the matter was finally reported to the

Mission, and little Ngun Fah rescued. When found at the home of her master, she was in a most pitiable condition. Weary from hard work and worn out with crying, after the cruel punishment which had just been administered, the lonely little girl crawled on to the hard wooden shelf which served as a bed, and with no covering but the dirty, forlorn garment worn through the day, had dropped off to sleep. Thus she was easily captured and carried to the Mission, where upon examination it was found that her head had been severely cut from blows administered with a meat knife, the hair was matted with blood and the child's whole body was covered with filth, and showed signs of former punishments. After the first fears of "being poisoned" were allayed, Ngun Fah expressed herself as being very happy to be rescued from the suffering and weariness of her life in Chinatown. Her master sent many emissaries to the Home with offers of bribes, and many promises of better treatment in the future, but all these overtures were rejected, and when at length the matter of guardianship came up, there was no one present to claim the child but her new friends at the Mission Home.

No. 3. Suey Ying. Our dear baby was surely sent to dispel any clouds of sadness which may be hovering round, for she takes all of life as a huge joke. And where did Suey Ying come from? From a part of Chinatown, dear friend, that you would not dare to enter, and the strangest thing about her coming is that she was carried to the Home by a fugitive slave woman, who was escaping to China. Long ago this woman had spent a day or two in the Mission and was impressed by the happy life of the children here and by the kind treatment she herself received. Later on she purchased for \$120 a little baby girl. She grew to love the tiny waif, and when at length troubles of many kinds drove her to sudden flight across the ocean,

instead of selling the baby she brought it to this Home of happy memory and asked that we keep it always.

No. 4. How Wan. A frail young girl with bound feet was brought to this country to be the wife of a man who had died while she was en route. Refused a landing, she was detained in the Mission by immigration officials, while the young man's parents made frantic efforts to secure her admission to the country. She remained here, a prisoner, for two years. Thousands of dollars were expended without avail, and How Wan was deported. Nothing daunted, they accompanied her as far as Japan, and returned with her, secured a license and landed her as a merchant's wife. She lived with the family in a dark basement on Sacramento street, where the mother-in-law abused her with such cruelty that, shrinking girl as she is, she found courage to send word to us if we did not come to her rescue she must relieve herself by suicide—the Chinese woman's only hope. We began at once to plan to get her taken to the steamer to bid good-bye to some friends, and rescued her at the Pacific Mail dock. She is now a grateful member of our household family, and is unbinding her feet.

No. 5. During the St. Louis Exposition a Chinese company brought from China a large number of women for exhibition in the Fair.

Four of these, upon learning that they were not to be returned at the close of the exposition, as agreed, but were destined to be sold into houses of prostitution in San Francisco, refused to land, and were brought to the Mission by the Commissioners of Immigration.

These Chinese were arrested, the case tried in Federal Court, these girls being the principal witnesses; yet twelve supposedly

good men dismissed the criminals, and the case was lost.

Surrounded by the genial environment of our Mission, the minds of these four girls unfolded in a remarkable manner; fascinated with their studies, they constantly begged us to intercede with the authorities that they might remain in the Mission and obtain an education; but, although every effort was made, they were deported after a seven months' stay.

They had learned to love our Home life, had united with our Christian Endeavor Society and had become interested in all our work, and we would be quite unreconciled to their departure did we not know that our missionaries in Shanghai stand ready to receive and care for them when they arrive.

No. 6. Seen Fah. The first beams of the rising sun shone bright and hopefully into a pleasant room in the Presbyterian Mission Home one morning last autumn. It threw its cheerful radiance over a group of three gathered there to plan an important undertaking, lighting the bright, eager faces of two young Chinese girls, and giving renewed courage to the anxious heart of the Superintendent. What important event had to be discussed? What serious matter decided? News had reached the Mission Home, a few hours before, of a young Chinese girl just landed in San Francisco and sold for three thousand dollars. Plans to save this helpless and innocent child, before it was too late, were the subject of discussion at that early morning meeting. In such a serious undertaking every possibility of failure must be carefully guarded against. Each possible device of the wily Highbinder slave-owner must be conjectured and frustrated. So the three planned this campaign: "When is Detective —— coming?" asked Chan Yuen, as a step

sounded on the quiet street below. "At six he promised to be here with one of his trustiest men. It is best to reach Chinatown early, that our coming may not be signaled by those on the streets at a later hour. If the alarm is given, every slave den will be doubly bolted and barred; and perhaps little Seen Fah, whom we wish to save, will be spirited away beyond reach of help." Well did the questioner know the terrible truth of these words. A sympathetic shade of sorrow and anxiety crossed her bright face. She, too, was a rescued girl and had not forgotten the dark, mysterious ways of Chinatown. The Superintendent rose to answer the summons of a small electric bell. Two trusted detectives had arrived. After a short conference, the rescuing party set forth on its strange mission. One who had eagerly thought and planned for the success of the undertaking felt her heart throbbing between hope and fear, but was reassured when a slender hand slipped into hers and a sweet, encouraging voice whispered: "I have faith to believe God will give us the girl." Faith triumphed that day. Through two of Chinatown's most desolate old tenements, upstairs and downstairs in dark closets and unexpected corners, while Highbinders uttered imprecations in the alleys below, the rescue party kept up a diligent search for many hours. When at last the quest was about to be abandoned as hopeless, suddenly a cry of success echoed through every gloomy corner of the old building—Seen Fah was found! A small, dark closet, overlooked in the earlier hours of the search, was discovered. A lighted candle soon revealed a pile of empty rice bags and broken boxes. Pulling these away, the object of the long search was discovered, nearly smothered beneath the debris. Dazed and terrified, but safe, Seen Fah was at last in the hands of friends—and the slave ring had lost just three thousand dollars. Later on, Seen Fah and her new friends were haled into court. As usual, the sleek, well-paid attorney

appeared for the Chinese owners. But they and he were alike powerless to drag back into slavery the rescued girl. There was but one course for the court to pursue. *Finding that Seen Fah was over fourteen, she was allowed to choose for herself* between the life of Chinatown and that offered by the Mission. She chose the Christian Home; so to its care Judge Cook consigned her. To-day, a free happy girl, Seen Fah joins gayly in the simple, wholesome life of her new surroundings. Rescued before the blight of slavery actually darkened her life, she will never fully understand from how great a danger her guardian angel snatched her. But we who do know thank daily the kind Providence who thus protects His own.

No. 7. Kum Ping. She was married in the American Consulate at Hong Kong in the most approved European way. Her new husband had made a good impression on the old aunt who was her guardian, and for a small consideration in Mexican coin, Kum Ping became his property according to Chinese custom, as well as his legal wife by American law. When these arrangements were completed, passage was immediately engaged on the Korea, bound for that harbor of romance, San Francisco Bay. There was, however, to be little romance in the life of our small Chinese heroine. The man who made her his wife did so simply as a means toward an end, and that end was to be a life of slavery and degradation in California. The landing of slave girls in free America is prohibited by law, thus the slave-dealers must resort to the best means at their command to thwart or circumvent our laws. A witnessed marriage in China gives an American-born Chinaman the right to land his wife in this country, so many an innocent village girl crosses the ocean secure in the belief that she is the honored wife of a respectable husband. She is landed as such, and, alas! often finds out when too late that she is merely the chattel of an evil and unscrupulous Highbinder society,

whose paid agent is the man to whom she is bound. Soon after the Korea's arrival in port, on the voyage in which we are interested, I visited the ship to interview the Chinese women on board, and there for the first time met our little dark-eyed friend, Kum Ping. She had been carefully coached on the way as to the visits she might receive from foreign missionaries, and the replies to all our questions showed a guarded suspicion that seemed quite hopeless. Our cheerful interpreter talked on, nevertheless, and finally won a quiet smile and the offer of some roast duck (a great delicacy among Chinese). All warnings about the dangers and wickedness of Chinatown apparently fell on deaf ears. "I am a married woman, my husband can take care of me. I do not need your protection!" was the rather indignant response. So we presented some bright flowers as a token of good will and friendship, and with them slipped into the small, soft hand a talisman that might help her out of future trouble. Just a slip of paper, but the magic of the name and number written there many an escaped slave girl can bear witness to. Some weeks passed by after our visit to Kum Ping on the steamer. She had landed, and, like hundreds of others, had simply disappeared from view in that place of many mysteries, old Chinatown. One night perhaps a month later, I was called to the reception room to see a strange visitor (Chinese) who refused to divulge either name or business to any one else. On meeting this messenger I noticed his great excitement and nervousness. Only after the door was tightly shut did he tell his errand. We listened with interest to his story of a young girl sold to a very cruel master, who beat her daily and never allowed her to leave the place in which she was closely guarded. Unless relief came soon she must end her life. Would the Mission try to save this poor girl? We gladly promised what help we could give, and our visitor left as quickly and mysteriously as he came,

only leaving for our guidance a roughly sketched diagram of alley and house where the little captive could be found. There followed much planning and plotting. Our staunch friend, Sergeant Ross of the Chinatown squad, was summoned and consulted. The place was a difficult one to reach, but at last satisfactory plans were made, the day and hour set. There were three officers and three Chinese girls from the Mission. It was a good-sized rescue party and divided into three companies, we guarded well the three exits from the low-roofed house on Spofford alley. With Sergeant Ross leading and our courageous young interpreter at our side, we stealthily ascended the dark, narrow stairs to the second floor, where a heavy door barred the way, but for such obstacles our good officer was prepared. A few blows of his strong hammer made bolts and bars yield. We passed through into a small dark passage. From there could be heard on all sides sounds of excitement; light feet running hither and thither to places of escape, only to be turned back by the sight of our guards, who stood on watch. As we cautiously felt our way further in we were met by the baffled and angry keeper of the den—a woman, but not worthy the name. She fiercely demanded our business—there was no need to tell it, for she knew as well as we; but she wished to find some means of hindering our search for her newest and most valuable slave. A room was at length discovered in which we felt sure the treasure was hidden. Again Sergeant Ross had to force open a door. As it gave way, a small, dimly-lighted room opened before us. In the center cowered a Chinese girl. It needed not a second look to recognize in the frightened, anxious face before me Kum Ping of the steamer. Our talisman had worked its charm. She had proved to the depths the terrible truth of our warning, and now gladly entrusted herself to our care, while her almost frantic owner stormed, threatened and at last laid violent hands on the officer who

was helping us. As we led the trembling Kum Ping out, a greatly excited crowd of chattering Chinese met us at the end of the passage at Spofford alley, and the news passed from lip to lip, "The Mission people have taken Woon Ha's new slave girl!" We would be glad to end the story of our little friend's troubles and safe escape with her arrival at last in the Mission Home that day. But how few rescues ever do end in that peaceful and pleasant way! There followed the usual train of lawyers and warrants. To avoid these unpleasant experiences, Kum Ping had to change her place of residence several times, the last time being the night before the fatal eighteenth of April. A warrant was served at ten o'clock that night, but being forewarned, the one named in it was with friends at some distance from the city. The warrant summoned us to court at two o'clock next day. God disposed of that case! No court has ever passed judgment on it. Long after the excitement of these days was over, Kum Ping returned to our Home; country air and a free life are working their spell. It is hard to recognize in the round, sun-tanned, happy face we see today, the unhappy slave girl of Woon Ha's den on Spofford alley.

CHAPTER 18.

PERILS AND REMEDIES.

It is a matter of no small importance that the Christian public of America should realize that in the Oriental slavery of its Pacific Coast it faces a flood. One can gaze with indifference upon a little stream that trickles through a wall, so long as it is thought to be merely a natural spring of water; but when one is informed that this is the trickling of water through a dike which dams out the raging sea, the sensations are changed to a realizing sense of imminent peril. If some are disposed to criticise this book for leading its readers into past history and far distant countries, to tell them harrowing tales, let them know it is intended to take them for a view behind the dike,—that they may understand the source of the trickling stream of brothel slaves that, almost unobserved, flows steadily into our fair land, and know that the stream is the precursor of a flood. No mere wall of immigration restrictions will ever get control of the flow so long as men are permitted to hold slaves after they have once been landed. And for the further reason, that so soon as China and Japan have drilled a little longer with the fire-arms furnished them by Western nations, they will force a free entrance to America. The yellow flood is sure to come, and we must make ready for it. We must realize what may happen to American women if almond-eyed citizens, bent on exploiting women for gain, obtain the ballot in advance of educated American women. We must realize how impossible

it is to throttle this monster, Oriental Brothel-Slavery, unless we take it in its infancy. For these reasons, we wish to sound the cry long and loud: "At once to arms! Not a moment to be lost! We cannot build a dam in the midst of the raging sea. The new dam must be finished before the old one bursts."

And beside the peril arising directly from the flood of Orientals who are accustomed to dealing with women as chattels, there will be the peril from a debased American manhood. Men cannot live in the midst of such slavery as this, tolerate it, defend it, make gain through it, patronize it, without losing all respect for woman and regard for her rights.

And then, the slave business is fast becoming a vested interest of large dimensions to American men as well as to Chinese. There are fully as many (probably more) Japanese slaves as Chinese in the United States, and at the moderate reckoning that they are worth three thousand dollars each, that represents six million dollars in capital; and at the present time the Japanese traffic is more threatening to the United States than the Chinese, with which alone this book deals.[A]

[Footnote A: When we undertook the task of writing this book we intended to include in it also a representation of the Japanese slave-trade, but have been obliged to desist for want of space.]

In these latter days, when everything in the business line tends to take on the form of trusts and combines, bent on defeating all law and exploiting the common people for gain, it casts a shadow of gloom over one's spirits to think of capitalists entering so largely upon the active culture and development of vice for pecuniary profit. This can no longer be looked upon as an evil due to the frailty of human nature and the strength of the sex appetite; it is rather the expression of a greed for gold, and should be actively combated as such. The owners of property, especially those who have a monopoly in the matter of housing vice because of municipal

measures for its segregation, are most potent offenders against decency, and should be punished as such, instead of their being admitted, as too often they are, not only to good society, but to membership on the church roll.

No individual can afford to be indifferent and ignorant as to the existence of social vice in the community. The only escape from moral blight and confusion is by active conflict with the forces of evil. The wrong training of youths who grow up in the presence of tolerated evils, cannot be overcome in a single generation, nor in a single century. There is a confusion of the moral sense in the presence of evil to which one has become accustomed, that is truly terrible.

When it was first learned in England that such an official had been appointed at Singapore and Hong Kong as the inspector of brothels, the matter could scarcely gain credence. Mr. Benjamin Scott, Chamberlain of the City of London, in his valuable book, "A State Iniquity," in mentioning this exclaims: "Her Majesty's Inspector of Brothels! Curiosity is aroused to inquire what were the attributes, duties, rank and status of this official. From the evidence taken by the Commission [at Hong Kong], we gather that he kept a register of 'Queen's Women,' and saw that their names were duly inscribed on the door-posts of the Government establishments, as lawyers' names are inscribed on nests of Chambers in the Temple, and those of merchants and traders are written on offices in the City. He controlled the receipt of the fees paid by the women into the Colonial Treasury.... But, what was the fashion of his uniform? Did he attend the receptions of His Excellency and the Port Admiral? Was he allowed precedence of chaplains, or how otherwise? and was he expected to dine with the Bishop? Was he decorated on the abolition of his office, and allowed a good service pension? or is he still in the service of 'our religious and gracious Queen?'" That officer still remains in the service of the Government, both at Singapore and at Hong Kong. By the ruse of denominating all the tasks

connected with the Government management of immoral houses at Singapore "protection," the Chief Inspector of brothels in this place holds a more honored place in the community than at Hong Kong. As to Mr. Scott's ironical questions in regard to that officer's rank, we cannot answer, nor whether he is invited to the Governor's receptions; but Mr. Scott would have been astounded, indeed, had he, like ourselves, first met the Chief Inspector of brothels at a reception given to ministers of the Gospel and missionaries; had he, like ourselves, been introduced to the official by a minister of the Gospel than whom none stands higher in British India, and that in terms of eulogy of the Inspector's activity in Christian work. How can we explain such a state of affairs? Just as we would explain the religiousness of early days of America and England associated with the monstrous cruelty of the slave traffic. There is often in connection with great human wrong great moral confusion, and without judging the individuals living under such conditions, we can say emphatically, those conditions are most undesirable, and attended by moral peril, especially to the young. It is a truly lamentable thing when prolonged familiarity with vicious conditions leads to such lack of discernment as to a man's true character, even among the best portion of a community. We do not wish such a state of things as this in America.

California does not lack in excellent laws (as they read, in the Statute Book), for the suppression of prostitution. There are laws against procuring; against trading in Oriental women for evil purposes; against buying or selling a female, with or without her consent, for prostitution; against a husband forcing or influencing a wife to lead an evil life; against a husband even consenting to his wife practicing prostitution; against keeping a house of ill-fame; and against knowingly renting a house for a place of prostitution. But all these laws, almost the world over, as well as in California, are weak at one point, namely, that they provide for imprisonment *or* fine, whereas they should provide for imprisonment *and* fine. This is not because the penalty would then be heavier, of necessity, but

in order that the law may not be prostituted into license. The alternative of a fine instead of imprisonment defeats the object the public-spirited citizens have in demanding a law for the discouragement of vice, and places before the police officials a temptation to corruption. A mild sentence, which invariably puts the procurer or brothel-keeper in prison, is worth more than a heavy sentence by way of fine, which can be met by further oppression of his slaves. Besides, the heavier the sentence threatened, if there be an alternative fine, the more potent implement it furnishes for blackmail in the hands of corrupt police officials. Penalties by means of fines invariably tend to degenerate into a monthly squeeze to the police, in payment for toleration, and thus tend to make the police official a defender of social vice, rather than an exterminator.

It has always been considered, among experienced workers, a most difficult thing to attack prostitution itself by means of penalties, for the reason that the punishment is invariably visited with greatest severity upon the head of the female partner in shame, who is often the mere victim, while the male partner goes free. But surely those men who make a business of cultivating vice and vicious practices,—who use every sort of device to corrupt the youth and develop the trade in women, can be reached by just and wholesome laws. We cannot make men moral by act of parliament, but we can restrict their depredations.

It has long been our feeling that every form and kind of spurious marriage, such as bigamy, polygamy, illegal divorce and remarriage, seduction, adultery, and bastardy, besides constituting sometimes cause for civil action, might with good results be lifted into offenses against the State. National development depends not upon the individual but upon the *family unit*, and that family unit is non-existent outside the monogamous relation, or, at least, is so frail as to easily crumble. Nothing could be more vicious in moral education to the youth than the average suit for civil damages, in

which the whole decision of the case is made to depend upon whether some young girl can or cannot be ruined in reputation by lawyers of the defense and by their client, concerning whom there is not a question as to their lack of a decent reputation. When the State rises to defend itself against counterfeit marriage, just as it defends itself against counterfeit coin, then the whole horizon of the life of a profligate woman will not be brought before the public gaze every time she comes into court, but will be kept in deserved obscurity, and the woman will be tried for a *single* offense, just as the man is tried, and not for all the offenses and indiscretions of a life-time. The penalty for such wrong doing may not be placed at even so high a figure in the Statute Book as it now stands, while accounted a civil injury, but the dignity of the trial would give serious lessons in virtue to the youth. No nation can long exist that does not incessantly discourage the practice of every sort of offense against the sanctity of the marriage relation.

But after all, there will be no success in attempting to cope with Oriental prostitution by means of laws against prostitution and kindred vices, for the reason that the evil is a far graver one than this. Innocent children are reared for vice, and at a certain age thrust into the life through no choice of theirs; and not infrequently perfectly respectable women of mature years are kidnaped for the vile service. The effect upon the moral character of a man who resorts to a *slave* class of victims to his evil propensities, must be to make that man a menace to society wherever he goes, through deeds of violence which he is willing to commit, and accustomed to commit, of the worst imaginable sort.

And an attack upon the slave *traffic* alone will never prove adequate. The history of our country's dealing with negro slavery is instructive on this point. There were laws in abundance for the suppression of the *traffic* between Africa and America; it was forbidden to bring slaves into the country, and devices were invented looking to an eventual liberation of all

the slaves in certain regions; but what did all these amount to, so long as slavery could exist? There had to be one sweeping, general emancipation of slaves wherever they were found, under whatever circumstances, and when the state of slavery was abolished, the trade in slaves died a natural death. The words of Mr. Francis concerning conditions at Hong Kong bear directly on this point: "Until the system of prostitution which prevails in this Colony ... is declared to be *slavery*, and treated and punished as such in Hong Kong, no stop will ever be put to the kidnaping of women and the buying and selling of female children in Hong Kong. This buying and selling and kidnaping is only an effect, of which the existing system of Chinese prostitution is the cause."

In 1880, Mr. Berry, a member of the House of Representatives from California, made use, in a debate in the House, of the argument that "if the British authorities had not been able to prevent slavery from being practiced in Hong Kong, there would be great danger that, if an unlimited immigration of Chinese were allowed, it would be followed by the prevalence of slavery in this country."

It is perfectly true that immigration of Chinese, even though it has been greatly restricted, has been followed by the introduction of slavery into the United States, yet the premises laid down in this argument, may not pass unchallenged, for the following reasons: There was never any serious attempt to put down slavery at Hong Kong, excepting in the efforts of Sir John Smale and perhaps one or two others, whose efforts were opposed by others, and in large part defeated. The records go to show that there was at once a growth of healthy moral sentiment created among the Chinese, through Sir John Smale's endeavor, that promised much good for the future had his course of action been continued. This official planted his feet squarely upon the doctrine that all buying and selling of human beings was slavery, and that a human being cannot, in law, "become a slave, even by

his own consent." And moreover this official, with Governor Hennessey's encouragement, prosecuted his cases without any tender consideration as to the demands of European libertines, who would be left with scant opportunities to be self-indulgent unless slaves were placed at their disposal. The truth is, from the foreign standpoint, the plea for brothel slavery was based upon the "necessity" of vice, and from the Chinese standpoint the plea for slavery was based upon so-called Chinese "custom." The Government was impressed that it must have consideration for the demands of libertines, and consideration for Chinese "custom." Neither of these arguments has any worth when applied to the slave conditions of California, and therefore the most serious, baffling obstacles to a removal of the evil are out of the way. Both pretexts, we maintain, were false. There is no necessity for furnishing vice to libertines; there was no lawful Chinese custom to be opposed in opposing brothel slavery. But even if these were claimed to be sufficient arguments across the water, they have no force in California. There are women, alas! willing to make a trade of their virtue for *their own gain*, without forcing Chinese women to make a trade of their virtue for *the gain of masters*. As to Chinese custom: America is not setting forth inducements for the Chinese to come and live in our midst, as did Sir Charles Elliott when he promised the Chinese the privilege of practicing their own social and religious rites and customs, "pending Her Majesty's pleasure." If Chinese or any other class of foreigners come to reside in the United States, it is with the understanding that they must conform to the laws of the country, whatever modification or radical alteration it obliges them to make in their native customs, and if they will not do this they must take the consequences.

No class of people, taken as a whole, are possessed of a greater moral sense or can be reached more readily by moral suasion, than the Chinese. We believe that if a proper condition of public moral sentiment were maintained, by the enforcement of the laws of the United States in Chinese

communities, no class of people would be more delighted than the respectable Chinese themselves, who are now left in a state of terror for their own lives from the highbinders, and who often dare not bring over their lawful wives from China, to live in the midst of this reign of terror, at the mercy of slave-traders and women-stealers. Then Chinese criminals would seek safer shelter elsewhere, and respectable Chinese family life would take the place, in our Chinatowns, of a combination of criminal men and slave women. And Chinese men of weak character, separated far from home influences, would not be met on every hand by temptations of the most potent sort. Such is the real worth of the sort of Chinese character that one meets in other parts of that country from those vitiated by familiar contact with foreign profligates, that the presence of such could not but be a benefit to us, and would afford peaceable, thrifty, useful Chinese settlements in our midst, of which we would feel justly proud.

In order to see that the entrance of Chinese to our country from China is not made a cover for this dreadful slave trade, there is an urgent need of coöperation between rescue workers of the California coast and rescue workers in all the open ports of China. Chinese men are constantly returning to China to "marry," in duly prescribed form, and then return with their wives and reënter the United States, merely to put the women into the brothels. Any man who is willing to run the risk of detection can thus get a trip home to China to see his lawful wife and family, and make it a profitable business trip besides,—with all expenses more than paid by the importation, and sale of a slave. Chinese women are constantly returning to China to bring "daughters" to put in the slave pens. No woman (even lawfully married to a Chinaman), should be allowed to take a ticket at Hong Kong or any of the open ports of China for the United States, whose case has not been thoroughly investigated by days of acquaintance with a woman inspector in a house of detention, if necessary, on the other side. And no Chinese woman should be allowed to enter on this side of the water, until

she has passed the second time under such surveillance in a house of detention. And such rescue workers should have the Government authority signified by a policeman's star.

The evil to be combated should be met with the right remedy. "Fitches are not threshed with a thresher, neither is a cart wheel turned about upon the cummin; but the fitches are beaten out with a staff, and the cummin with a rod." Much of the failure to control brothel slavery has grown out of the application of the wrong remedy, not out of a difficulty in controlling the Chinese. These cases of trading in human flesh have generally been treated in the courts as though coming under the laws against ordinary prostitution. To illustrate:

Within the past month, three Chinese girls were captured by a rescue worker. They were cooped up, with a man who had charge of them, in a tiny closet scarcely sufficient to hold the four, which had been entered by a panel door which was securely nailed up and bags of rice piled against it. The rescuer pulled away the bags, pried open the door of the secret receptacle with her hatchet, and drew out the girls, dripping with perspiration and panting for breath, in consequence of the two hours' confinement, while the brothel was being searched for them. They were conveyed to the mission home, and were very happy, and expressed their eager wish to remain. A Chinese woman came to call at the mission home, in the absence of the superintendent, and, unfortunately, was allowed to get access to an acquaintance of these girls, and she conveyed to them a promise that if they would come back, in a very little while they would all be given their liberty. After that the girls said they wished to go, and for the following reasons: They could not dwell in safety among their Chinese people, if in debt to a brothel-keeper, for he would be always on their track, and if he could not capture them and they would not return, he would certainly secure their death at the hands of high-binders. The case came up

in court. The girls told there all the details of their being recently smuggled into this country; that they were bought by their present owner for \$3,030 each; that they were flogged when their earnings for their owner fell below \$300 a month, and other similar details,—*but* they also declared their wish to go back to the brothel and to their owner. To be sure, they had expressed elsewhere a contrary wish, and the wish to return had been begotten in their hearts by the threats and inducements conveyed to them by the woman who came to the home. The judge was one who could not be bought nor bribed, and who sincerely wished the good of the girls, but they said they chose a life of prostitution, and to that life they were returned.

We do not pretend to understand as well as that judge the laws that were available, on which he rendered his decision, but this we do say: If California has not a law that will not permit the introduction of slavery into the state, even though Chinese women *consent* to slavery, then it needs such a law at once. *Slavery is too formidable an evil for free Americans to allow its existence on the consent of enslaved Chinese women.* Age of consent legislation, as applied to the question of social vice, is one thing, and consent as applied to the question of slavery, quite another thing. Sir John Smale, in the Supreme Court of Hong Kong, quoting from Sir R. Phillimore on International law (vol. I, p. 316), declared that it was not possible for a human being legally to "become a slave *even by his own consent.*" Had the matter of consent or non-consent of slaves been consulted as to negro slavery, we have no reason for believing that the negro would ever have had his freedom. Though prostitution is entangled with the conditions of servitude, under which Chinese women and girls groan in California, yet only about half the slaves are as yet prostitutes, and slavery looms up so large against the western sky, as compared with the mere consent or wish of a creature brought up from babyhood in familiarity with vice, that to consult the option of such an one in determining the existence or non-existence of *slavery* in America, is a thing that ought not to be tolerated for a moment.

We have shown how every Chinese girl who has escaped from her servitude to the city of refuge,—the mission home,—is received and welcomed. How the rescued and rescuer run the race for dear life, and the pursuers are obliged to turn back at the door. But what a state of things in this country which we call free! Should not the entire country be one great city of refuge? Do we not pretend that it is such to all who are oppressed? Why should not the pursuer be turned back at the Golden Gate, rather than at the door of an exceptional home in San Francisco? We are fond of saying that under the stars and stripes slavery cannot exist. We must make it good, or acknowledge, in dust and ashes of repentance, that we are hypocrites. Idle words will not do in place of deeds; we must make good our profession at any cost. Everyone of these Chinese women should be removed from the brothels, wherever these exist, consent or no consent, placed in houses of detention, instructed as to the condition of liberty of the person in which she *must* live, and then, if she *prefers* a slave's life, he deported to China,—a land in which slavery is permitted. Every Chinese man who attempts to interfere with this radical treatment of the situation, should be imprisoned or driven from the country. These "Watch-dogs," who are perfectly known to the police, both by name and by face, should be put behind bars and in stripes, for a long time to come. This is not prostitution, *merely*,—Oh, how tenderly men are inclined to deal with the male harlot! but for once the libertine has not a shadow of a shade of defense,—the patrons of *slaves* are something worse than fornicators; they are guilty of as many offenses of criminal outrage as they are guilty of visits to the slave-pens stocked with Chinese girls, and they deserve a prison sentence for every such visit.

Girls are afraid to come out of Chinese brothels until they have earned their freedom. This is because powerful Chinese societies have been formed that will either kidnap such a girl or kill her. So she declares in court that she consents freely to be returned to the brothel, and an extraordinary misconstruction of the doctrine of the "liberty of the person," leaves the

judge with nothing to do but to deliver the girl over to compulsory voluntariness. Again, Chinese young men do not wish to marry liberated Chinese girls, but they go, rather, to the brothel and buy a wife; and for much the same reason. If a man marries the liberated slave of a brothel keeper, the high-binders will teach the lesson that he has stolen another man's property, by watching their chance and assassinating him. Why are not these societies broken up, root and branch? Cannot? Nonsense; the officers of the law have not made the attempt with any degree of earnestness as yet.

For years, the "Protectors" at Singapore and at Hong Kong have summoned the slaves into their offices and informed them that they were free, and asked them if they freely consented to going into a life of shame, before putting them there? But to what purpose? Let the Police Magistrate, H.E. Wodehouse, reply, as he did concerning a case of suicide: "When registering her name she said she had no pocket-mother, that her parents were both dead, and that she became a prostitute of her own free will. The inspector said that that was the description of themselves that nearly all prostitutes gave, and that it was very rarely that it was true." Remember that, reader, when the columns of your morning paper inform you that all the girls of Chinatown have been interrogated, and that they all said they were there of their own free will? It is "very rarely that it is true." Referring to this case, which we describe on page 118, the Marquess of Ripon wrote to Hong Kong that the brothel-keeper who attempted to extort money from the young man before delivering up his captive to him for marriage, should have been prosecuted, and adds: "A single successful prosecution in a case of this kind would, in all probability, do more to show that the inmates of brothels are free to leave such places when they wish, than could ever be effected by the present system, under which efforts are indeed made to explain their positions to the inmates of brothels." This is a very clear statement of exactly what is needed in California. The public should refuse

to be satisfied with visits of the police officials to the girls, to ascertain the girls' state of mind as to a sense of liberty, and demand to know the official's state of mind,—whether he is ready to *prove* the freedom of the slave by hounding the slave dealers out of the community.

There was recently a war of secret societies in Oakland's Chinatown. One of the "tongs" quarreled with another, and three or four Chinese men were shot on the streets of Oakland,—one fatally, named Lee Bock Dong, in his own house. Lee Bock Dong had a slave girl who saw the shooting, so she was taken into custody by police officers. But the Chinese got her out of jail by means of the usual writ of habeas corpus, and she was sent to Sacramento to another person, who had disputed her ownership with Lee Bock Dong. It seems, Lee Bock Dong had been holding the slave girl for a debt owed to him by her real owner in Sacramento, of \$2,000. The *Oakland Enquirer*, of Feb. 20th, 1907, informed its readers a few days after the affray as follows: "This girl's possession was one of the points in dispute between the two tongs, and it was this that was settled at yesterday's conference." It is interesting to note that other newspapers gave the information that police officials attended the conference of these tongs, to help settle the dispute. The report continues: "Lee Bock Dong's widow demands the return of the girl as security for the money, or the payment of the \$2,000. This the Bing Gongs (one of the tongs) finally agreed to, and it was for them to determine the course they would pursue. The police say that this step is only preliminary to a settlement of the whole affair ... that peace will be declared, the complaint against the alleged murderers withdrawn, and the case dismissed ... it is now expected that within a few days the extra police force, which has been maintained in Chinatown ever since the night of the shooting affray, will be withdrawn and peace reign once more." This article is headed: "Warring Tongs Hold a Conference, and it is Agreed Chinese Maiden is to be Returned, or Equivalent in Cash." The *Enquirer* of March 9th reported that the "Chinese tong men have been dismissed."

"Equivalent in cash" for a Chinese maiden! Can it be possible that this is the United States of America, and the twentieth century! One actual murder, and two murderous assaults on the public streets, all dismissed by an understanding entered into with the police that they could now withdraw their extra force, since the Chinese girl had been passed over as security for a debt, until the "equivalent in cash" is paid! Have we spent hundreds of millions of dollars, and shed the blood of thousands of young men, and widowed and orphaned tens of thousands besides, in a civil war to put down African slavery, introduced from the Atlantic Coast, merely to turn about and welcome Chinese slavery from the Pacific Coast?

"Behold this is a people robbed and spoiled; they are all of them snared in holes, and they are hid in prison houses: they are for a prey, and none delivereth; for a spoil, and none saith, Restore.

"Who among you will give ear to this? Who will hearken and hear for the time to come?"

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